

The History and Romance of Crime

FROM THE EARLIEST TIMES
TO THE PRESENT DAY

by

MAJOR ARTHUR GRIFFITHS

Late Inspector of Prisons in Great Britain

Author of

"The Mysteries of Police and Crime"

"Fifty Years of Public Service," etc.



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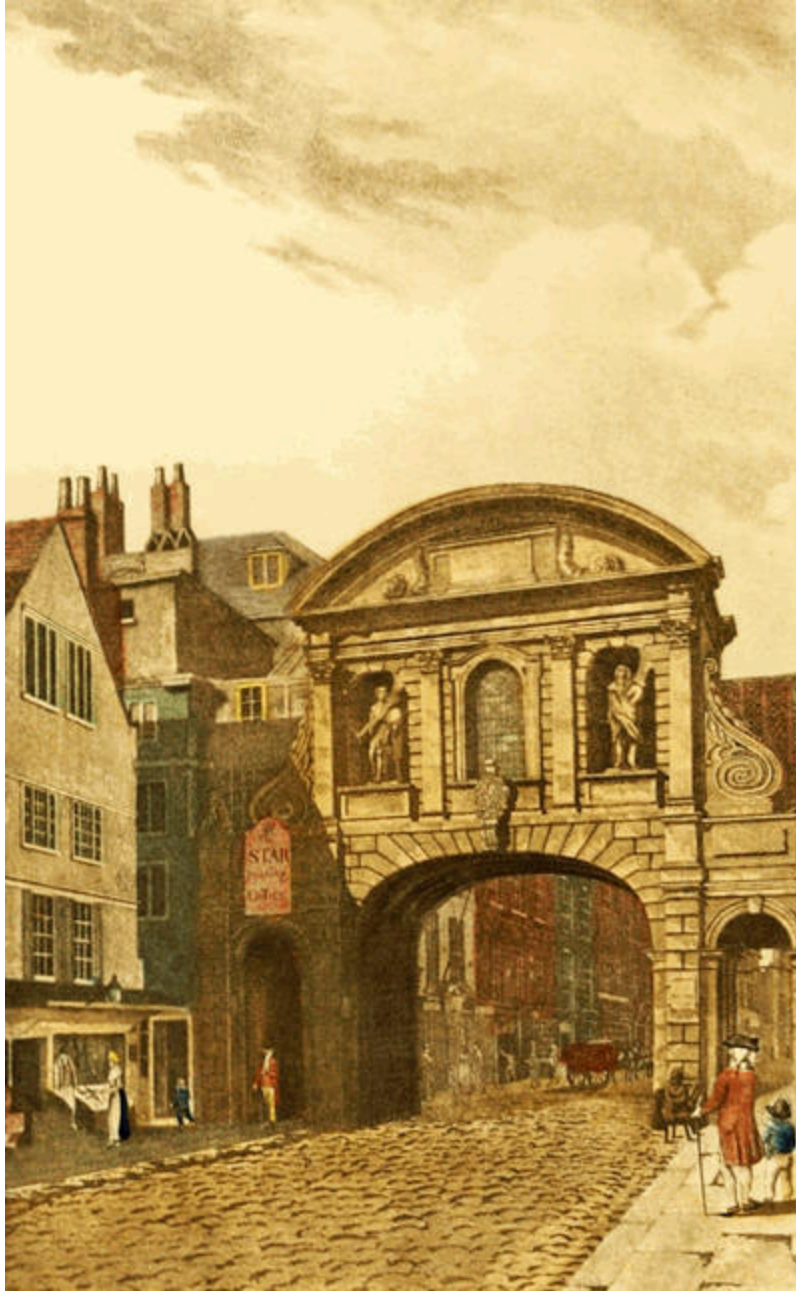
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PENITENTIARY: AN EXPERIMENT IN REFORMATION ***

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Temple Bar

A famous gateway which stood before the Temple in London built by the noted architect, Christopher Wren, in 1670. According to ancient custom when the sovereign wishes to visit the City of London, he asks permission of the lord mayor to pass through this gateway into the city.

Millbank Penitentiary

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INTRODUCTION

MILLBANK PRISON stood for nearly a century upon the banks of the Thames between Westminster and Vauxhall, a well-known gloomy pile by the river side, with its dull exterior, black portals, and curious towers. This once famous prison no longer attracts the wide attention of former days but the very name contains in itself almost an epitome of British penal legislation. With it one intimately associates such men as John Howard and Jeremy Bentham; an architect of eminence superintended its erection; while statesmen and high dignitaries, dukes, bishops, and members of Parliament were to be found upon its committee of management, exercising a control that was far from nominal or perfunctory, not disdaining a close consideration of the minutest details, and coming into intimate personal communion with the criminal inmates, whom, by praise or admonition, they sought to reward or reprove. Its origin and the causes that brought it into being; its object, and the success or failure of those who ruled it; its annals, and the curious incidents with which they are filled,—these are topics of much interest to the general reader.

At this distant time it is indeed interesting to observe how thoroughly John Howard understood the subject to which he had devoted his life. In his prepared plan for the erection of the prison he anticipates exactly the method we are pursuing to-day, after more than a century of experience. “The Penitentiary Houses,” he says, “I would have built in a great measure by the convicts. I will suppose that a power is obtained from Parliament to employ such of them as are now at work on the Thames, or some of those who are in the county gaols, under sentence of transportation, as may be thought most expedient. In the first place, let the surrounding wall, intended for full security against escapes, be completed, and proper lodges for the gatekeepers. Let temporary buildings of the nature of barracks be erected in some part of this enclosure which will be wanted the least, till the whole is

finished. Let one or two hundred men, with their proper keepers, and under the direction of the builder, be employed in levelling the ground, digging out the foundation, serving the masons, sawing the timber and stone; and as I have found several convicts who were carpenters, masons, and smiths, these may be employed in their own branches of trade, since such work is as necessary and proper as any other in which they can be engaged. Let the people thus employed chiefly consist of those whose term is nearly expired, or who are committed for a short term; and as the ground is suitably prepared for the builders, the garden made, the wells dug, and the building finished, let those who are to be dismissed go off gradually, as it would be very improper to send them back to the hulks or gaols again."

Suggestions such as these may have seemed impossible to those to whom they were propounded; but that the plan of action was simple and feasible, is now most satisfactorily proved. Elam Lynds, the celebrated governor of Sing-Sing prison, in the State of New York, acted precisely in this manner, encamping out in the open with his hundreds of prisoners, and compelling them in this way to build their own prison-house, cell by cell, as bees would build a hive. De Tocqueville, commenting on this seemingly strange episode of prison history, observes that "the manner in which Mr. Elam Lynds built Sing-Sing would no doubt raise incredulity, were not the fact quite recent, and publicly known in the United States. To understand it we have only to realize what resources the new prison discipline of America placed at the disposal of an energetic man."

Plans for the new penitentiary buildings were actually prepared, and operations about to commence, when the Government suddenly decided to suspend further proceedings. The principle of transportation had never been entirely abandoned. Western Africa had indeed been selected for a penal settlement, and a few convicts sent there in spite of the deadly character of the climate. But the statesmen of the day had fully recognized that they had no right to increase the punishment of imprisonment by making it also capital; and the Government, despairing of finding a suitable place of exile, was about to commit itself entirely to the plan of home penitentiaries, when the discoveries of Captain Cook in the South Seas drew attention to the vast territories of Australasia. Embarking hotly on the new project, the Government could not well afford to continue steadfast to the principle of penitentiaries, and the latter might have fallen to the ground altogether, but for the interposition of Jeremy Bentham. This remarkable man published, in

1791, his “Panopticon, or the Inspection House,” a valuable work on prison discipline, and followed it, in 1792, by a formal proposal to erect a prison on the plan he advocated.

The outlines on which this model prison was to be constructed were also indicated in a memorandum by Mr. Bentham: “A circular building, an iron cage, glazed, a glass lantern as large as Ranelagh, with the cells on the outer circumference,”—such was his main idea. Within, in the very centre, an inspection station was so fixed that every cell and every part of a cell could be at all times closely observed; but, by means of blinds and other contrivances, the inspectors were concealed, unless they saw fit to show themselves, from the view of the prisoners; by which the feeling of a sort of invisible omnipresence was to pervade the whole place. There was to be solitude or limited seclusion *ad libitum*; but, unless for punishment, limited seclusion in assorted companies was to be preferred. As we have seen, Bentham proposed to throw the place open as a kind of public lounge, and to protect the prisoners from ill-treatment they were to be enabled to hold conversations with the visitors by means of tubes reaching from each cell to the general centre.

Bentham’s project had much to recommend it and it was warmly embraced by Mr. Pitt and Lord Dundas, the Home Secretary. But secret influences were hostile to it. It is believed that King George III opposed it from personal dislike of Bentham who was an advanced radical. Year after year, although taken up by Parliament, the measure hung fire. At last in 1810 active steps were taken to re-open the question, thanks to the vigour with which Sir Samuel Romilly called public attention to the want of penitentiaries. Nothing now would please the House of Commons but immediate action; and this eagerness to begin is in strange contrast with the previous long years of delay.

Negotiations were not re-opened with Bentham, except in so far as he was entitled to remuneration for his trouble and original outlay. Eventually his claims were referred, by Act of Parliament, to arbitration, and so settled. The same Act empowered certain supervisors to be appointed, hereafter to become possessed of the lands in Tothill Fields, which Bentham had originally bought on behalf of the Government. These lands were duly transferred to Lord Farnborough, George Holford, Esq., M. P., and the Rev. Mr. Becher, and under their supervision the Millbank Penitentiary as it now stands was commenced and finished.

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MILLBANK
PENITENTIARY

CHAPTER I

THE BUILDING OF THE PENITENTIARY

Choice of Site—Ancient Millbank—Plan of new Building—Penitentiary described—Committee appointed to Superintend—Opening of Prison in 1816—First Governor and other officers—Supreme Authority—First Arrangements.

THE lands which Jeremy Bentham bought from Lord Salisbury were a portion of the wide area known then as Tothill Fields; speaking more exactly, they lay on either side of the present Vauxhall-bridge Road. This road, constructed after the purchase, intersected the property, dividing it into two lots of thirty-eight and fifteen acres respectively. It was on a slice of the larger piece that the prison was ultimately built, on ground lying close by the river. This neighbourhood, now known as a part of Pimlico, was then a low marshy locality, with a soil that was treacherous and insecure, especially at the end towards Millbank Row. People were alive twenty years ago who had shot snipe in the bogs and quagmires round about this spot. A large distillery, owned by a Mr. Hodge, stood near the proposed site of the prison; but otherwise these parts were but sparsely covered with houses. Bentham, speaking of the site he purchased, declared that it might be considered “in no neighbourhood at all.” No house of any account, superior to a tradesman’s or a public-house, stood within a quarter of a mile of the intended prison, and there were in this locality one other prison and any number of almshouses, established at various dates. Of these the most important were Hill’s, Butler’s, Wicher’s, and Palmer’s—all left by charitable souls of these names; and Stow says, that Lady Dacre also, wife of Gregory Lord Dacre of the South, left £100 a year to support almshouses which were built in these fields “more towards Cabbage Lane.” Here, also, stands the Green Coats Hospital, erected by Charles I, but endowed by Charles II for twenty-five boys and six girls, with a schoolmaster to teach

them. Adjoining this hospital is a bridewell described by Stow as “a place for the correction of such loose and idle livers as are taken up within the liberty of Westminster, and thither sent by the Justices of the Peace, for correction—which is whipping, and beating of Hemp (a punishment very well suited for idlers), and are thence discharged by order of the Justices as they in their wisdom find occasion.” Again, Stow remarks: “In Tothill Fields, which is a large spacious place, there are certain pest-houses; now made use of by twelve poor men and their wives, so long as it shall please God to keep us from the Plague. These Pest-houses are built near the Meads, and remote from people.” Hospitals, bridewells, alms and pest-houses—the chief occupants of these lonely fields, formed no unfitting society for the new neighbour that was soon to be established amongst them.

As the prison, when completed, took its name from the mill bank, that margined the Thames close at hand, I must pause to refer to this embankment. I can find no record giving the date of the construction of this bank, which was no doubt intended to check the overflow of the river, and possibly, also, to act as one side of the mill-race, which served the Abbot of Westminster’s mill. This mill, which is in fact the real sponsor of the locality, is marked on the plan of Westminster from Norden’s survey, taken in Queen Elizabeth’s reign, in 1573. It stands on the bank of the Thames, almost opposite the present corner of Abingdon and Great College Streets; but it is not quite clear whether it was turned by water from the river, brought along Millbank, or by the stream that came from Tothill Street, which, taking the corner of the present Rochester Row, flowed along the line of the present Great College Street, and under Millbridge to the Queen’s slaughter-house. “The Millbank,” says Stow, “is a very long place, which beginneth by Lindsey House, or rather by the Palace Yard, and runneth up to Peterborough House, which is the farthest house. The part from against College Street unto the Horse Ferry hath a good row of buildings on the east side, next to the Thames, which is mostly taken up with large wood-mongers’ yards, and Brew-houses; and here is a water house which serveth this side of the town; the North Side is but ordinary, except one or two houses by the end of College Street; and that part beyond the Horse Ferry hath a very good row of houses, much inhabited by the gentry, by reason of the pleasant situation and prospect of the Thames. The Earl of Peterborough’s house hath a large courtyard before it and a fine

garden behind it, but its situation is but bleak in the winter, and not over healthful, as being so near the low meadows on the South and West Parts.” But it was on one edge of these low, well-wooded meadows that Millbank Penitentiary was to be built.

The first act was to decide upon the plan for the new prison buildings. It was thrown open to competition by public advertisement and a reward was offered for the three best tenders. Mr. Hardwicke was eventually appointed architect and he estimated that £259,725 would be required for the work with a further sum of £42,690 for the foundations. Accommodation was to be provided at this price for six hundred prisoners, male and female, in equal proportions; and the whole building was intended solely for the confinement of offenders in the counties of London and Middlesex. By subsequent decisions, arrived at after the work was first undertaken, the size of Millbank grew to greater proportions, till it was ultimately made capable of containing, as one great national penitentiary, all the transportable convicts who were not sent abroad or confined in the hulks. Of course its cost increased *pari passu* with its size. By the time the prison was finally completed, the total expenditure had risen as high as £458,000. And over and above this enormous sum, the outlay of many additional thousands was needed within a few years, for the repairs or restoration of unsatisfactory work.

The Penitentiary, as it was commonly called, looked on London maps like a six-pointed star-fort, as if built against catapults and old-fashioned engines of war. The central point was the chapel, a circular building which, with the space around it, covered rather more than half an acre of ground. A narrow building, three stories high, and forming a hexagon, surrounded the chapel, with which it was connected at three points by covered passages. This chapel and its annular belt, the hexagon, form the keystone of the whole system. It was the centre of the circle, from which the several bastions of the star-fort radiated. Each of these salients was in shape a pentagon, and there were six of them, one opposite each side of the hexagon. They were built three stories high, on four sides of the pentagon, having a small tower at each external angle; while on the fifth side a wall about nine feet high ran parallel to the adjacent hexagon. In these pentagons were the prisoners’ cells, while the inner space in each, in area about two-thirds of an acre, contained the airing yards, grouped round a tall, central watch-tower. The ends of the pentagons joined the hexagon at certain points

called junctions. The whole space covered by these buildings has been estimated at about seven acres; and something more than that amount was included between them and the boundary wall, which took the shape of an octagon, and beyond it was a moat.

Such is a general outline of the plan of the prison. Any more elaborate description might prove as confusing as was the labyrinth within to those who entered without such clues to guide them as were afforded by familiarity and long practice. There was one old warder who served for years at Millbank, and rose through all the grades to a position of trust, who was yet unable, to the last, to find his way about the premises. He carried with him always a piece of chalk, with which he blazed his path, as does the backwoodsman the forest trees. Angles at every twenty yards, winding staircases, dark passages, innumerable doors and gates,—all these bewildered the stranger, and contrasted strongly with the extreme simplicity of modern prison architecture. Indeed Millbank, with its intricacy and massiveness of structure, was suggestive of an order that has passed. It was one of the last specimens of an age to which Newgate belonged; a period when the safe custody of criminals could be compassed, people thought, only by granite blocks and ponderous bolts and bars. Such notions were really a legacy of mediævalism, bequeathed by the ruthless chieftains, who imprisoned offenders within their own castle walls. Many such keeps and castles long existed as prisons; having in the lapse of time ceased to be great residences, and they served until recently cleared as gaols or houses of correction for their immediate neighbourhood.

On the 9th February, 1816, the supervisors reported that the Penitentiary was now partly ready for the reception of offenders, and begged that a committee might be appointed to take charge of the prison, under the provisions of an act by which the king in Council was thus empowered to appoint “any fit and discreet persons, not being less than ten or more than twenty, as and for a Committee to Superintend the Penitentiary House for the term of one year, then next ensuing, and until a fresh nomination or appointment shall take place.” Accordingly, at the court at Brighton, on the 21st of February of the same year, his Royal Highness the prince regent in Council nominated the Right Hon. Charles Abbot, Speaker of the House of Commons, and nineteen others to serve on this committee, and it met for the first time at the prison on the 12th of March following. The Right Hon. Charles Long, George Holford, Esq., and the Rev. J. J. Becher, were among

the members of the new committee, but they continued their functions as supervisors distinct from the other body, until the final completion of the whole building in 1821.

The first instalment of prisoners did not arrive till the 27th of July following. In the interval, however, there was plenty of work to be done. The preparation of rules and regulations, the appointment of a governor, chaplain, matron, and other officials, were among the first of them; and the committee took up each subject with characteristic vigour. It was necessary also to decide upon some scale of salaries and emoluments; to arrange with the Treasury as to the receipts, custody, and payments of the public moneys; and to ascertain the sorts of manufactures best suited to the establishment, and the best method of obtaining work for the convicts, without having to purchase the materials.

On the 10th of March Mr. John Shearman was appointed governor. This gentleman was strongly recommended by Lord Sidmouth, who stated in a letter to the Speaker that, having been induced to make particular inquiries respecting his qualifications and his character, he had found them well adapted to the office in question. Mr. Shearman's own account of himself was, that he was a native of Yorkshire, but chiefly resident in London; that he was aged forty-four, was married, had eight children, and that he had been brought up to the profession of a solicitor, but for the last four years had been second clerk in the Hatton Garden police office. Before actually entering upon his duties, the committee sent Mr. Shearman on a tour of inspection through the provinces, to visit various gaols, and report on their condition and management.

He eventually resigned his appointment, however, because he thought the pay insufficient, and because the committee found fault with his frequent absences from the prison. He seems to have endeavoured to carry on a portion of his old business as solicitor concurrently with his governorship. His journals show him to have been an anxious and a painstaking man, but neither by constitution nor training was he exactly fitted for the position he was called upon to fill as head of the Penitentiary.

At the same time, on the recommendation of the Bishop of London, the Rev. Samuel Bennett was appointed chaplain. Touching this appointment the bishop wrote, "I have found a clergyman of very high character for great activity and beneficence, and said to be untainted with fanaticism.... His

answer is not yet arrived; but I think he will not refuse, as he finds the income of his curacy inadequate to the maintenance of a family, and is precluded from residence on a small property by want of a house and the unhealthiness of the situation.”

Mr. Pratt was made house-surgeon, and a Mr. Webbe, son of a medical man, and bred himself to that profession, was appointed master manufacturer; being of a mechanical turn of mind, he had made several articles of workmanship, and he produced to the committee specimens of his shoe-making, and paper screens.

There was more difficulty in finding a matron. “The committee,” writes Mr. Morton Pitt, “was fully impressed with the importance of the charge, and with the difficulty of finding a fit person to fill this most essential office.” Many persons were of opinion that it would be impracticable to procure any person of credit or character to undertake the duties of a situation so arduous and so unpleasant, and the fact that no one had applied for it was strong proof of the prevalence of such opinions. Mr. Pitt goes on: “The situation is a new one. I never knew but two instances of a matron in a prison, and those were the wives of turnkeys or porters. In the present case it is necessary that a person should be selected of respectability as to situation in life. How difficult must it be to find a female educated as and having the feelings of a gentlewoman, who would undertake a duty so revolting to every feeling she has hitherto possessed, and even so alarming to a person of that sex.”

Mr. Pitt, however, had his eye on a person who appeared to him in every way suitable. He writes: “Mrs. Chambers appears to me to possess the requisites we want; and I can speak of her from a continued knowledge of her for almost thirty years, since she was about fifteen. Her father was in the law, and clerk of the peace for the county of Dorset from 1750 to 1790. He died insolvent, and she was compelled to support herself by her own industry, for her husband behaved very ill to her, abandoned her, and then died. She has learned how to obey, and since that, having kept a numerous school, how to command. She is a woman forty-three years of age, of a strong sense of religion and the most strict integrity. She has much firmness of character with a compassionate heart, and I am firmly persuaded will most conscientiously perform every duty she undertakes to the utmost of her power and ability.” Accordingly Mrs. Chambers was duly appointed.

The same care was exhibited in all the selections for the minor posts of steward, turnkeys male and female, messengers, nurses, porters, and patrols; and most precise rules and regulations were drawn up for the government of everybody and everything connected with the establishment. All these had, in the first instance, to be submitted for the approval of the Judges of the Court of King's Bench, and subsequently reported to the king in Council and both Houses of Parliament.

The supreme authority in the Penitentiary was vested in the superintending committee, who were required to make all contracts, examine accounts, pay bills, and make regular inspection of prison and prisoners. A special meeting of the committee was to be convened in the second week of each session of Parliament, in order to prepare the annual report. Under them the governor attended to the details of administration. He was to have the same powers as are incident to a sheriff or gaoler,—to see every prisoner on his or her admittance; to handcuff or otherwise punish the turbulent; to attend chapel; and finally, to have no employment other than such as belonged to the duties of his office. The chaplain was to be in priest's orders, and approved by the bishop of the diocese, and to have no other profession, avocation, or duty whatsoever. Besides his regular Sunday and week-day services, he was to endeavour by all means in his power to obtain an intimate knowledge of the particular disposition and character of every prisoner, male and female; direct them to be assembled for the purposes of religious instruction in such manner as might be most conducive to their reformation. He was expected also to allot a considerable portion of his time, after the hours of labour, to visiting, admonishing and instructing the prisoners, and to keep a "Character-Book," containing a "full and distinct account from time to time of all particulars relating to the character, disposition, and progressive improvement of every prisoner." Intolerance was not encouraged, for even then the visitation of ministers other than those of the Established Church was permitted on special application by the prisoners. Such ministers were only required to give in their names and descriptions, and were admitted at such hours and in such manner as the governor deemed reasonable, confining their ministrations to the persons requiring their attendance. No remuneration was, however, to be granted to these additional clergymen. The duties prescribed for the house-surgeon were of the ordinary character, but in cases of difficulty he was to confer with the consulting physician and other non-resident medical men.

The master manufacturer was to act as the governor's deputy if called upon, and was charged more especially with the control and manufacture of all materials and stores. It was his duty to make the necessary appraisement of the value of work done, and to enter the weekly percentage. The total profit was thus divided: three-fourths to the establishment, or 15s. in the pound; one twenty-fourth to the master manufacturer, the taskmaster of the pentagon, and the turnkey of the ward; leaving the balance of one-eighth, or 2s. 6d. in the pound to be credited to the prisoner.

For the rest of the officers the rules were what might be expected. The steward took charge of the victualling, clothing, etc., and superintended the cooking, baking, and all branches of the domestic economy of the establishment; the taskmasters overlooked the turnkeys, and were responsible for all matters connected with the labour and earnings of the prisoners; and the turnkeys, male and female, each having charge of a certain number of prisoners, were to observe their conduct, extraordinary diligence, or good behaviour. The turnkey was expected to enforce his orders with firmness, but was expected to act with the utmost humanity to all prisoners under his care. On the other hand, he was not to be familiar with any of the prisoners, or converse with them unnecessarily, but was to treat them as persons under his authority and control, and not as his companions or associates. The prisoners themselves were to be treated in accordance with the aims and principles of the establishment. On first arrival they were carefully examined by the doctor, cleansed, deprived of all money, and their old clothes burned or sold. Next, entering the first or probation class, they remained therein during half of the period of their imprisonment. Their time in prison was thus parcelled out: at the hour of daybreak, according to the time of the year, they rose; cell doors opened, they were taken to wash, for which purpose soap and round towels were provided; after that to the working cells until 9 A.M., then their breakfast—one pint of hot gruel; at half-past nine to work again till half-past twelve; then dinner—for four days of the week six ounces of coarse beef, the other three a quantity of thick soup, and always daily a pound of bread made of the whole meal. For dinner and exercise an hour was allowed, after which they again set to work, stopping in summer at six, and in winter at sunset. They were then again locked up in their cells, having first, when the evenings were light, an hour's exercise, and last of all supper—another pint of gruel, hot.

The turnkeys were to be assisted by wardsmen and wardswomen, selected from the more decent and orderly prisoners. These attended chiefly to the cleanliness of the prison, and were granted a special pecuniary allowance. "Second class" prisoners were appointed also, to act as trade instructors. Any prisoner might work extra hours on obtaining special permission. The general demeanour of the whole body of inmates was regulated by the following rule: "No prisoner shall disobey the orders of the governor or any other officer, or shall treat any of the officers or servants of the prison with disrespect; or shall be idle or negligent in his work, or shall wilfully mismanage the same; or absent himself without leave from divine service, or behave irreverently thereat; or shall be guilty of cursing or swearing, or of any indecent expression or conduct, or of any assault, quarrel, or abusive words; or shall game with, defraud, or claim garnish, or any other gratuity from a fellow-prisoner; or shall cause any disturbance or annoyance by making a loud noise, or otherwise; or shall endeavour to converse or hold intercourse with prisoners of another division; or shall disfigure the walls by writing on them, or otherwise; or shall deface, secrete, or destroy, or pull down the printed abstracts of rules; or shall wilfully injure any bedding or other article provided for the use of prisoners." Offences such as the foregoing were to be met by punishment, at the discretion of the governor, either by being confined in a dark cell, or by being fed on bread and water only, or by both such punishments; more serious crimes being referred to the committee, who had power to inflict one month's bread and water diet and in a dark cell. Any extraordinary diligence or merit, on the other hand, was to be brought to the notice of the Secretary of State, in order that the prisoner might be recommended as an object for the royal mercy. When finally discharged, the prisoners were to receive decent clothing, and a sum of money at the discretion of the committee, in addition to their accumulated percentage, or tools, provided such money or such tools did not exceed a value of three pounds. Moreover, if any discharged prisoner, at the end of twelve months, could prove on the testimony of a substantial housekeeper, or other respectable person, that he was earning an honest livelihood he was to be entitled to a further gratuity not exceeding three pounds.

The early discipline of the prisoners in Millbank, as designed by the committee, was based on the principle of constant inspection and regular employment. Solitary imprisonment was not insisted upon, close

confinement in a punishment cell being reserved for misconduct. All prisoners on arrival were located at the lodge, and kept apart, without work, for the first five days; the object in view being, to awaken them to reflection, and a true sense of their situation. During this time the governor visited each prisoner in the cell for the purpose of becoming acquainted with his character, and explaining to him the spirit in which the establishment had been erected. No pains were spared in this respect. The governor's character-books, which I have examined, are full of the most minute, I might add trivial, details. After the usual preliminaries of bathing, hair-cutting, and so forth, the prisoners passed on to one of the pentagons and entered the first class.

The only difference between first and second class was, that the former worked alone, each in his own cell; the latter in company, in the work rooms. The question of finding suitable employment soon engaged the attention of the committee. At first the males tried tailoring, the females needlework. Great efforts were made to introduce various trades. Many species of industry were attempted, skilled prisoners teaching the unskilled. Thus, at first, one man who could make glass beads worked at his own trade, and had a class under him; another, a tinman, turned out tin-ware, in which he was assisted by his brother, a "free man" and a more experienced workman; and several cells were filled with prisoners who manufactured rugs under the guidance of a skilful prison artisan. But Mr. Holford, one of the committee, in a paper laid before his colleagues, in 1822, was forced to confess that all these undertakings had failed. The glass-bead blower misconducted himself; the free tinman abused the confidence of the committee, probably by trafficking, and the rug-maker was soon pardoned and set at large. By 1822 almost all manufactures, including flax breaking, had been abandoned, and the prisoners' operations were confined to shoemaking, tailoring, and weaving. Mr. Holford, in the same pamphlet, objects to the first of these trades, complaining that shoemakers' knives were weapons too dangerous to be trusted in the hands of prisoners. Tailoring was hard to accomplish, from the scarcity of good cutters, and weaving alone remained as a suitable prison employment. In fact, thus early in the century, the committee were brought face to face with a difficulty that even now, after years of experience, is pressing still for solution.

CHAPTER II

EARLY MANAGEMENT

System proposed and Discipline to be enforced—Conduct of Prisoners; riotous in Chapel
—Outbreak of Females—Revolt against Dietary—Millbank overgoverned—Constant
interference of Committee—Life inside irregular and irksome.

THE system to be pursued at the Penitentiary has now been described at some length. Beyond doubt—and of this there is abundant proof in the prison records—the committee sought strenuously to give effect to the principles on which the establishment was founded. Nevertheless their proceedings were more or less tentative, for as yet little was known of so-called “systems” of prison discipline, and those who had taken Millbank under their charge were compelled to feel their way slowly and with caution, as men still in the dark. The Penitentiary was essentially an experiment—a sort of crucible into which the criminal elements were thrown, in the hope that they might be changed or resolved by treatment into other superior forms. The members of the committee were always in earnest, and they spared themselves no pains. If they had a fault, it was in over-tenderness towards the felons committed to their charge. Millbank was a huge plaything; a toy for a parcel of philanthropic gentlemen, to keep them busy during their spare hours. It was easy to see that they loved to run in and out of the place, and to show it off to their friends; thus we find the visitor, Sir Archibald Macdonald, bringing a party of ladies to visit the pentagon, when “the prisoners read and went through their religious exercises,” which edifying spectacle gave great satisfaction to the persons present. Again, at Christmas time the prisoners were regaled with roast beef and plum pudding, after which they returned thanks to the Rev. Archdeacon Potts, the visitor (who was present, with a select circle of ladies and gentlemen), “appearing very grateful, and singing ‘God save the King.’”

With such sentiments uppermost in the minds of the superintending committee, it is not strange that the gaoler and other officials should be equally kind and considerate. No punishment of a serious nature was ever inflicted without a report to the visitor, or his presence on the spot. All of the female prisoners, when they were first received, were found to be liable to fits, and the tendency gave Mr. Shearman great concern, till it was found that by threatening to shave and blister the heads of all persons so afflicted immediate cure followed. Two Jewesses, having religious scruples, refused to eat the meat supplied, whereupon the husband of one of them was permitted to bring in for their use "coarse meat and fish, according to the custom of the Jews;" and later we find the same man came regularly to read the Jewish prayers, as he stated, "out of the Hebrew book." Many of the women refused positively to have their hair cut short; and for a time were humoured. In February, 1817, all the female prisoners were assembled, and went through a public examination, before the Bishops of London and Salisbury, to show their progress in religious instruction, and acquitted themselves greatly to the satisfaction of all present.

Judith Lacy, having been accused of stealing tea from a matron's canister, which had been put down, imprudently, too near the prisoner, was so hurt at the charge, that it threw her into fits. She soon recovered, and it was quite evident she had stolen the tea. Any complaint of the food was listened to with immediate attention. Thus the gruel did not give satisfaction and was repeatedly examined.

"A large number of the female prisoners still refuse to eat their barley soup," says the governor in his journal on the 23rd April, 1817, "several female prisoners demanding an increase of half a pound of bread," being refractory. Next day some of them refused to begin work, saying they were half-starved.

Mary Turner was the first prisoner released. She was supposed to be cured of the criminal taint. Having equipped her in her liberty clothing, "she was taken into the several airing grounds in which were her late fellow-prisoners. The visitor (Sir Archibald Macdonald) represented to them in a most impressive manner the benefits that would result to themselves by good behaviour. The whole were most sensibly affected, and the event," he says, "will have a very powerful effect on the conduct of many and prove an incentive to observe good and orderly demeanour."

Next day all of the female prisoners appeared at their cell windows, and shouted vociferously as Mary Turner went off. This is but one specimen of the free and easy system of management. Of the same character was a petition presented by a number of the female prisoners, to restore to favour two other convicts who had been punished by the committee. Indeed, the whole place appears to have been like a big school, and a degree of license was allowed to the prisoners consorting little with their character of convicted criminals.

This mistaken leniency could end but in one way. Early in the spring the whole of the inmates broke out in open mutiny. Their alleged grievance was the issue of an inferior kind of bread. Change of dietary scales in prisons is always attended with some risk of disturbance, even when discipline is most rigorously maintained. In those early days of mild government riot was, of course, inevitable. The committee having thought fit to alter the character of the flour supplied, soon afterwards, at breakfast-time, all the prisoners, male and female, refused to receive their bread. The women complained of its coarseness; and all alike, in spite of the exhortations of the visitor, Mr. Holford, left it outside their cell doors. Next day, Sunday, the bread was at first taken, then thrown out into the passages. The governor determined to have Divine Service as usual, but to provide against what might happen, deposited within his pew "three brace of pistols loaded with ball." To make matters worse, the Chancellor of the Exchequer arrived with a party of friends to attend the service. The governor (Mr. Shearman's successor) immediately pointed out that he was apprehensive that in consequence of the newly adopted bread the prisoners' conduct would not be as orderly as it had ordinarily been. At first the male prisoners were satisfied by raising and letting fall the flaps of the kneeling benches with a loud report, and throwing loaves about in the body of the chapel, while the women in an audible tone cried out, "Give us our daily bread." Soon after the commencement of the communion service, the women seated in the gallery became more loudly clamorous, calling out most vociferously, "Better bread, better bread!" The men below, in the body of the church, now rose and stood upon the benches; but again seated themselves on a gesture from the governor, who then addressed them, begging them to keep quiet. Among the women, the confusion and tumult was continued, and was increased by the screams of alarm from the more peaceable. Many fainted, and others in great terror entreated to be taken away. These were suffered to

go out in small bodies, in charge of the officers, and so continuously removed, until all of the women had been withdrawn. About six of them, as they came to the place where they could see the men, made a halt and most boisterously assailed them, calling them cowards, and such other opprobrious names. After the women had gone the service proceeded without further interruption, after which the Chancellor of the Exchequer (who was present throughout) addressed the men, giving them a most appropriate admonition, but praising their orderly demeanour, which he promised to report to the Secretary of State. Afternoon service was performed without the female congregation, and was uninterrupted except by a few hisses from the boys.

Next morning the governor informed the whole of the prisoners, one by one, that the new brown bread would have to be continued until the meeting of the committee; whereupon many resisted when their cell doors were being shut, and others hammered loudly on the woodwork with their three-legged stools; and this was accompanied by the most hideous shouts and yells. In one of the divisions, four prisoners, who were in the same cell, were especially refractory, "entirely demolishing the inner door, every article of furniture, the two windows and their iron frames; and, having knocked off large fragments from the stone of the doorway, threw the pieces at, and smashed to atoms the passage windows opposite." One of them, by name Greenslade, assaulted the governor, on entering the cell, with part of the door frame; but he parried the blow, drove the prisoner's head against the wall, and was also compelled, in self-defence, to knock down one Michael Sheen. Such havoc and destruction was accomplished by the prisoners, that the governor repaired to the Home Secretary's office for assistance. Directed by him to Bow Street, he brought back a number of runners, and posted them in various parts of the building, during which a huge stone was hurled at his head by a prisoner named Jarman, but without evil consequences. A fresh din broke out on the ringing of the bell on the following morning, and neither governor nor chaplain could permanently allay the tumult; the governor determined thereupon to handcuff all the turbulent males immediately. The effect was instantaneous. Although there were still mumblings and grumblings, it was evident that the storm would soon be over. In the course of the day all the refractory were placed in irons, and all was quiet in the male pentagon. Yet many still muttered, and all was still far from quiet. There was little doubt at the time that a general rising of

the men was contemplated, and the governor felt it necessary to use redoubled efforts to make all secure, calling in further assistance from Bow Street. The night passed, however, without any outbreak, and next morning all the prisoners were pretty quiet and orderly. Later in the day the committee met and sentenced the ringleaders to various punishments, chiefly reduction in class, and by this time the whole were humble and submissive. Finally five, who had been conspicuous for good conduct, were pardoned.

It is satisfactory to find that the committee firmly resisted all efforts to make them withdraw the objectionable bread, and acted on the whole with spirit and determination. How far the governor was to blame cannot clearly be made out, but the confidence of the committee was evidently shaken, and a month or two later he was called upon to resign. He refused; whereupon the committee informed him that they gave him “full credit for his capacity and talents in his former line of life, but did not deem he had the talent, temper, or turn of mind, necessary for the beneficial execution of the office of governor of the institution.” There was not the slightest imputation against his moral character, the committee assured him; but they could not retain him. He would not resign, and they were consequently compelled to remove him from office.



Bow Street Office, London

The principal police court of the City of London, established on Bow Street in 1749.

There can be no doubt but that Millbank in these early days was over much governed. The committee took everything into their own hands, and allowed but little latitude to their responsible officers. Governor Shearman complained the visitors (members of the committee) who, he says, “went to the Penitentiary, and gave orders and directions for things to be done by inferior officers, which I thought ought to come through me.... Prisoners were occasionally removed from one ward to another, and I knew nothing of it—no communication was made to me; and if the inferior officers had a request to make, they got too much into the habit of reserving it to speak to the visitors; so that I conceived I was almost a nonentity in the situation.” The prisoners, even, were in the habit of saying they would wait till the visitor came, and would ask him for what they wanted, ignoring the governor altogether. Indeed it appears from the official journals that the visitors were constantly at the prison. A Mr. Holford admits that “for a considerable time he did everything but sleep there.” But their excuse was that they were not fortunate in their choice of some of their first officers; and knew therefore they must watch vigilantly over their conduct, to keep those who fulfilled expectations, and to part with those who appeared unfit for their situations. Besides which it was necessary to see from time to time how the rules first framed worked in practice, and what customs that grew up should be prohibited, and what sanctioned, by the committee, and adopted into the rules.

It must be confessed that the committee do not appear to have been well served by all their subordinates. The governors were changed frequently; the first “expected to find his place better in point of emolument, and did not calculate upon the degree of activity to be expected in the person at the head of such an establishment; the second was not thought by the committee to have those habits of mind—particularly those habits of conciliation—which are required in a person at the head of such an establishment;” the third was seized with an affection of the brain, and was never afterwards capable of exercising sufficient activity. The first master manufacturer, who as will be remembered was appointed because he was of a mechanical turn of mind, was removed because he was a very young man, and his conduct was not thought steady enough for the post he occupied. The first steward was charged with embezzlement, but was actually dismissed for borrowing money from some of the tradesmen of the establishment. The first matron was also sent away within the first twelve

months, but she appears to have been rather hardly used, although her removal also proves the existence of grave irregularities in the establishment. The case against Mrs. Chambers was that she employed certain of the female prisoners for her own private advantage. Her daughter was about to be married; and to assist in making up bed furniture a portion of thread belonging to the establishment was used by the prisoners, who gave also their time. The thread was worth a couple of shillings, and was replaced by Mrs. Chambers. A second charge against the matron was for stealing a Penitentiary Bible. Her excuse was that a number had been distributed among the officers,—presents, as she thought, from the committee,—and she had passed hers on to her daughter. But for these offences, when substantiated, she was dismissed from her employment.

Entries made in the Visitors' Journal, however, are fair evidence that matters were allowed by the officials to manage themselves in rather a happy-go-lucky fashion. One day new prisoners were expected from Newgate; but nothing was ready for them. "Not a table or a stool in any working cell; and one of those cells where the prisoners were to be placed, in which the workmen had some time since kept coals, was in the dirty state in which it had been left by them. Not a single bed had been aired." The steward did not know these prisoners were expected, and had ordered no rations for them. But he stated he had enough, all but about two pounds. Upon which the visitor remarks, "If sixteen male prisoners can be supplied without notice, within two pounds, the quantity of meat sent in cannot be very accurate." Again, the visitor finds the doors from the prison into the hexagon where the superior officers lived "not double-locked as they ought to be, and two prisoners together in the kitchen without a turnkey." The daily allowance of food issued to the prisoners was not the right weight. He says: "There are in the bathing-room at the lodge several bundles of clothes belonging to male prisoners who have come in between the 1st and 21st of this month; they are exactly in the state in which they were when the subject was mentioned to the committee last week; some of them are thrown into a dirty part of the room—whether intended to be burned I do not know; the porter thinks they are not. I do not believe any of the female prisoners' things have been yet sold. I understand from the governor he has not yet made any entry in the character-book concerning the behaviour of any male prisoner since he came into the prison, or relative to any occurrence connected with such prisoner."

All this will fairly account for any extra fussiness on the part of the committee. Doubtful of the zeal and energy of those to whom they confided the details of management, they were continually stepping in to make up for any shortcomings by their own activity. But the direct consequence of this interference was to shake the authority of the ostensible heads. Moreover, to make the more sure that nothing should be neglected, and no irregularity overlooked, the committee encouraged, or at least their most prominent member did, all sorts of talebearing, and a system of espionage that must have been destructive of all good feeling among the inmates of the prison. Mr. Pitt, when examined by the Select Committee, said, "Mr. Holford has mentioned to me: 'I hear so and so; such and such an abuse appears to be going forward; but I shall get some further information.' I always turned a deaf ear to these observations, thinking it an erroneous system, and that it was not likely to contribute to the good of the establishment." He thought that if the committee members were so ready to lend a willing ear to such communications, it operated as an encouragement to talebearing; the consequences of which certainly appeared to have been disputes, cabals, or intrigues. Mr. Shearman remarks at some length on the same subject: "I certainly did think there was a very painful system going on in the prison against officers, ... by what I might term 'spyism.' I have no doubt it all arose from the purest motives, thinking it was the best way to conduct the establishment, setting up one person to look after another." The master manufacturer and the steward in this way took the opportunity of vilifying the governor; and there is no doubt the matron, Mrs. Chambers, fell a victim to this practice. She was the victim of insinuation, and the evil reports of busybodies who personally disliked her.

It is easy to imagine the condition of Millbank then. A small colony apart from the great world; living more than as neighbours, as one family almost—but not happily—under the same roof. The officials, nearly all of them of mature age, having grown-up children, young ladies and young gentlemen, always about the place, and that place from its peculiar conditions, like a ship at sea, shut off from the public, and concentrated on what was going on within its walls. Gossip, of course, prevalent—even malicious; constant observation of one another, jealousies, quarrels, inevitable when authority was divided between three people, the governor, chaplain, and matron, and it was not clearly made out which was the most worthy; subordinates ever on the look-out to make capital of the differences

of their betters, and alive to the fact that they were certain of a hearing when they chose to carry any slanderous tale, or make any underhand complaint. For there, outside the prison, was the active and all-powerful committee, ever ready to listen, and anxious to get information. One of the witnesses before the committee of 1823 stated, "From the earliest period certainly the active members of the Superintending Committee gave great encouragement to receive any information from the subordinate officers, I believe with the view of putting the prison in its best possible state; that encouragement was caught with avidity by a great many, simply for the purpose of cultivating the good opinion of those gentlemen conducting it; and I am induced to think that in many instances their zeal overstepped perhaps the strict line of truth; for I must say that during the whole period I was there, there was a continual complaint, one officer against another, and a system that was quite unpleasant in an establishment of that nature."

Of a truth the life inside the Penitentiary must have been rather irksome to more people than those confined there against their will.

CHAPTER III

THE GREAT EPIDEMIC

Failure threatens the great experiment—General sickness of the Prisoners—Virulent disorder attacks them—The result of too high feeding and ill-chosen dietary—Disease succumbs to treatment—Majority transferred to hospital ships at Woolwich—Very imperfect discipline maintained—Conduct of prisoners often outrageous—Sent by Act of Parliament to the Hulks as ordinary Convicts.

THE internal organization of Millbank, which has been detailed in the last chapter, is described at some length in a Blue Book, bearing date July, 1823. But though Millbank was then, so to speak, on its trial, and its value, in return for the enormous cost of its erection, closely questioned, it is probable that its management would not have demanded a Parliamentary inquiry but for one serious mishap which brought matters to a crisis. Of a sudden the whole of the inmates of the prison began to pine and fall away. A virulent disorder broke out, and threatened the lives of all in the place. Alarm and misgiving in such a case soon spread; and all at once the public began to fear that Millbank was altogether a huge mistake. Here was a building upon which half a million had been spent, and now, when barely completed, it proved uninhabitable! Money cast wholesale into a deadly swamp, and all the fine talk of reformation and punishment to give way to coroners' inquests and deaths by a strange disease. No wonder there was a cry for investigation. Then, as on many subsequent occasions, it became evident Millbank was fulfilling one of the conditions laid down as of primary importance in the choice of site. Howard had said that the Penitentiary House must be built near the metropolis, so as to insure constant supervision and inspection. Millbank is ten minutes' walk from Westminster, and from the first has been the subject of continual inquiry and legislation. The tons of Blue Books and dozens of Acts of Parliament

which it has called into existence will be sufficient proof of this. It was, however, a public undertaking, carried out in the full blaze of daylight, and hence it attracted more than ordinary attention. What might have passed unnoticed in a far-off shire, was in London magnified to proportions almost absurd. This must explain state interference, which now-a-days may seem quite unnecessary, and will account for giving a national importance to matters oftentimes in themselves really trivial.

But this first sickness in the Penitentiary was sufficiently serious to arrest attention, and call for description in detail.

In the autumn of 1822, the physicians appointed to report on the subject state that the general health of the prisoners in Millbank began visibly to decline. They became pale and languid, thin and feeble; those employed in tasks calling for bodily exertion could not execute the same amount of work as before, those at the mill ground less corn, those at the pump brought up less water, the laundry-women often fainted at their work, and the regular routine of the place was only accomplished by constantly changing the hands engaged. Throughout the winter this was the general condition of the prisoners. The breaking down of health was shown by such symptoms as lassitude, dejection of spirits, paleness of countenance, rejection of food, and occasional faintings. Yet, with all this depression of general health, there were no manifest signs of specific disease; the numbers in hospital were not in excess of previous winters, and their maladies were such as were commonly incident to cold weather. But in January, 1823, scurvy—unmistakable sea scurvy—made its appearance, and was then recognized as such, and in its true form, for the first time by the medical superintendent, though the prisoners themselves declared it was visible among them as early as the previous November. Being anxious to prevent alarm, either in the Penitentiary itself or in the neighbourhood, the medical officer rather suppressed the fact of the existence of the disease; and this, with a certain tendency to make light of it, led to the omission of many precautions. But there it was, plainly evident; first, by the usual sponginess of the gums, then by “ecchymosed” blotches on the legs, which were observed in March to be pretty general among the prisoners.

Upon this point, the physicians called in remarked that the scurvy spots were at their first appearance peculiarly apt to escape discovery, unless the attention be particularly directed towards them, and that they often existed for a long time entirely unnoticed by the patient himself. And now with the

scurvy came dysentery, and diarrhœa, of the peculiar kind that is usually associated with the scorbutic disease. In all cases, the same constitutional derangement was observable, the outward marks of which were a sallow countenance and impaired digestion, diminished muscular strength, a feeble circulation, various degrees of nervous affections, such as tremors, cramps, or spasms, and various degrees of mental despondency.

With regard to the extent of the disease, it was found that quite half of the total number were affected, the women more extensively than the men; and both the males and females of the second class, or those who had been longest in confinement, were more frequently attacked than the newest arrivals. Some few were, however, entirely exempt; more especially the prisoners employed in the kitchen, while among the officers and their families, amounting in all to one hundred and six individuals, there was not a single instance of attack recorded.

Such then was the condition of the prisoners in the Penitentiary in the spring of 1823. To what was this sudden outbreak of a virulent disorder to be traced? There were those who laid the whole blame on the locality, and who would admit of no other explanation. But this argument was in the first instance opposed by the doctors investigating. Had the situation of the prison been at fault, they said, it was only reasonable to suppose that the disease would have shown itself in earlier years of the prison's existence; whereas, as far as they could ascertain, till 1822-3 it was altogether unknown. Moreover, had this been the real cause, all inmates would alike have suffered; how then explain the universal immunity of the officers in charge? Again, if it were the miasmata arising upon a marshy neighbourhood that militated against the healthiness of the prison, there should be prevalent other diseases which marsh miasmata confessedly engender. Besides which, the scurvy and diarrhœa thus produced are associated with intermittent fevers, in this case not noticeable; and they would have occurred during the hot instead of the winter season. Lastly, if it were imagined that the dampness of the situation had contributed to the disease, a ready answer was, that on examination every part of the prison was found to be singularly dry, not the smallest stain of moisture being apparent in any cell or passage, floor, ceiling, or wall.

But indeed it was not necessary to search far afield for the causes of the outbreak; they lay close at hand. Undoubtedly a sudden and somewhat ill-judged reduction in diet was entirely to blame. For a long time the luxury of

the Penitentiary had been a standing joke. The prison was commonly called Mr. Holford's fattening house. He was told that much money might be saved the public by parting with half his officers, for there need be no fear of escapes; all that was needed was a proper guard to prevent too great a rush of people in. An honourable member published a pamphlet in which he styled the dietary at Millbank "an insult to honest industry, and a violation of common sense." And evidence was not wanting from the prison itself of the partial truth of these allegations. The medical superintendent frequently reported that the prisoners, especially the females, suffered from plethora, and from diseases consequent upon a fulness of habit. Great quantities of food were carried out of the prison in the wash-tubs; potatoes, for instance, were taken to the pigs, which Mr. Holford admitted he would have been ashamed to have seen thus carried out of his own house. It came to such a pass at last that the committee was plainly told by members of the House of Commons, that if the dietary were not changed, the next annual vote for the establishment would probably be opposed. In the face of all this clamour the committee could not hold out; but in their anxiety to provide a remedy, they went from one extreme to the other. Abandoning the scale that was too plentiful, they substituted one that was altogether too meagre. In the new dietary solid animal food was quite excluded, and only soup was given. This soup was made of ox heads, in the proportion of one to every hundred prisoners; it was to be thickened with vegetables or peas, and the daily allowance was to be a quart, half at midday, and half in the evening. The bread ration was a pound and a half, and for breakfast there was also a pint of gruel. It was open to the committee to substitute potatoes for bread if they saw fit, but they do not seem to have done this. The meat upon an ox head averages about eight pounds, so that the allowance per prisoner was about an ounce and a quarter. No wonder then that they soon fell away in health.

The mere reduction in the amount of food, however, would not have been sufficient in itself to cause the epidemic of scurvy. Scurvy will occur even with a copious dietary. Sailors who eat plenty of biscuit and beef are attacked, and others who are certainly not starved. The real predisposing cause is the absence of certain necessary elements in the diet, not the lowness of the diet itself. It is the want of vegetable acids in food that brings about the mischief. The authorities called in were not exactly right, therefore, in attributing the scurvy solely to the reduced diet. The siege of

Gibraltar was quoted as an instance where semi-starvation superinduced the disease. Again, the scurvy prevalent in the low districts round Westminster was traced to a similar deficiency and the severe winter, also to the want of vegetable diet. This last was the real explanation; of this, according to our medical knowledge, there is not now the faintest doubt. Long enforced abstinence from fresh meat and fresh vegetables is certain sooner or later to produce scurvy. At the same time it must be admitted that the epidemic of which I am writing was aggravated by the cold weather. It had its origin in the cold season, and its progress kept pace with it, continued through the spring, actually increasing with summer.

During the months of May and June the disorder was progressive, but the early part of July saw a diminution in the numbers afflicted. At this time the prison population amounted to about eight hundred.

There was a total of thirty deaths. In spite of this slight improvement for the better, it is easy to understand that the medical men in charge were still much troubled with fears for the future. Granting even that the disease had succumbed to treatment, there was the danger, with all the prisoners in a low state of health, of relapse, or even of an epidemic in a new shape. Hence it was felt that an immediate change of air and place would be the best security against further disease. But several hundred convicts could not be sent to the seaside like ordinary convalescents; besides which they were committed to Millbank by Act of Parliament, and only by Act of Parliament could they be removed. This difficulty was easily met. An Act of Parliament more or less made no matter to Millbank—many pages in the statute book were covered already with legislation for the Penitentiary. A new act was immediately passed, authorizing the committee to transfer the prisoners from Millbank to situations more favourable for the recovery of their health. In accordance with its provisions one part of the female prisoners were at once sent into the Royal Ophthalmic Hospital in Regent's Park, at that time standing empty; their number during July and August was increased to one hundred and twenty, by which time a hulk, the *Ethalion*, had been prepared at Woolwich for male convicts, and thither went two hundred, towards the end of August. Those selected for removal were the prisoners who had suffered most from the disease. This was an experiment; and according to its results the fate of those who remained at Millbank was to be determined. "The benefit of the change of air and situation," says Dr. Latham, "was immediately apparent." Within a fortnight there was less

complaint of illness, and most of the patients already showed symptoms of returning health. Meanwhile, among the prisoners left at Millbank there was little change, though at times all were threatened with a return of the old disorder, less virulent in its character, however, and missing half its former frightful forms. By September, a comparison between those at Regent's Park or the hulk and those still in Millbank was so much in favour of the former that the point at issue seemed finally settled. Beyond doubt the change of air had been extremely beneficial; nevertheless, of the two changes, it was evident that the move to the hulks at Woolwich had the better of the change to Regent's Park. On board the *Ethalion* the prisoners had suffered fewer relapses and had gained a greater degree of health than those at Regent's Park. On the whole, therefore, it was considered advisable to complete the process of emptying Millbank. The men and women alike were all drafted into different hulks off Woolwich. These changes were carried out early in December, 1823, and by that time the Millbank Penitentiary was entirely emptied, and it remained vacant till the summer of the next year.

The inner life of the Penitentiary went on much as usual in the early days of the epidemic. There are at first only the ordinary entries in the governor's Journal. Prisoners came and went; this one was pardoned, that received from Newgate or some county gaol. Repeated reports of misconduct are recorded. The prisoners seemed fretful and mischievous. Now and then they actually complained of the want of food. One prisoner was taken to task for telling his father, in the visiting cell, that six prisoners out of every seven would die for want of rations. But at length the blow fell. On the 14th February, 1823, Ann Smith died in the infirmary at half-past nine. On the 17th, Mary Ann Davidson; on the 19th, Mary Esp; on the 23rd, William Cardwell; on the 24th, Humphrey Adams; on the 28th, Margaret Patterson. And now, by order of the visitor, the prisoners were allowed more walking exercise. Then follow the first steps taken by Drs. Roget and Latham. The governor records, on the 3rd March, that the doctors recommend each prisoner should have daily four ounces of meat and three oranges; that their bread should be divided into three parts, an orange taken at each meal. Accordingly the steward was sent to Thames Street to lay in a week's consumption of oranges.

An entry soon afterwards gives the first distinct reference to the epidemic. "The medical gentlemen having begged for the bodies of such

prisoners as might die of the disorder now prevalent in the prison, in order to make post-mortem examinations, the same was sanctioned if the friends of the prisoner did not wish to interfere." Deaths were now very frequent, and hardly a week passed without a visit from the coroner or his deputy.

On the 25th of March the governor, Mr. Couch, who had been ailing for some time past, resigned his charge into the hands of Captain Benjamin Chapman. Soon afterwards there were further additions to the dietary—on the 26th of April two more ounces of meat and twelve ounces of boiled potatoes; and the day after, it was ordered that each prisoner should drink toast-and-water,—three half-pints daily. Lime, in large tubs, was to be provided in all the pentagons for the purpose of disinfection.

About this period there was a great increase of insubordination among the prisoners. It is easy to understand that discipline must be relaxed when all were more or less ailing and unable to bear punishment. The sick wards were especially noisy and turbulent. One man, for instance, was charged with shouting loudly and using atrocious language; all of which, of course, he denied, declaring he had only said, "God bless the king, my tongue is very much swelled." Upon this the turnkey in charge observed that it was a pity it was not swelled more, and Smith (the prisoner) pursued the argument by hitting his officer on the head with a pint pot. Later on they broke out almost into mutiny. The governor writes as follows: "At a quarter to eight o'clock Taskmaster Swift informed me that the whole of the prisoners in the infirmary ward of his pentagon were in the most disorderly and riotous state, in consequence of the wooden doors of the cells having been ordered by the surgeon to be shut during the night; that the prisoners peremptorily refused to permit the turnkeys to shut their doors, and made use of the most opprobrious terms, threatening destruction to whoever might attempt to shut their doors. Their shouts and yells were so loud as to be heard at a considerable distance. I immediately summoned the patrols, and several of the turnkeys, and making them take their cutlasses, I repaired to the sick ward. I found the wooden doors all open, and the prisoners, for the most part, at their iron gates, which were shut. The first prisoner I came to was John Hall. I asked him the reason he refused to shut his door when ordered. He answered in a very insolent tone and manner, 'Why should I do so?' I then said, 'Shut your door instantly,' but he would not comply. I took him away and confined him in a dark cell. In conveying him to the cell he made use of most abusive and threatening language, but did not make any

personal resistance.” Five others who were pointed out as prominent in the mutiny were also punished on bread and water in a dark cell, by the surgeon’s permission.

Nor were matters much more satisfactory in the female infirmary wards. “Mrs. Briant, having reported yesterday, during my absence at Woolwich, that Mary Willson had ‘wilfully cut her shoes,’ and, having stated the same verbally this morning, I went with her into the infirmary, where the prisoner was, and having produced the shoes to her (the upper-leather of one of them being palpably cut from the sole), and asked her why she cut them, she said she had not cut them, that they had come undone whilst walking in the garden. This being an evident falsehood, I told her I feared she was doing something worse than cutting her shoes by telling an untruth. She answered in a very saucy manner, they were not her shoes, and that she had not cut them. She became at length very insolent, when I told her she deserved to be punished. She replied she did not care whether she was or not. I then directed the surgeon to be sent for; when not only the prisoner, but several others in the infirmary, became very clamorous, and evinced a great degree of insubordination. I went out with the intention of getting a couple of patrols, when I heard the crash of broken glass and loud screams. I returned as soon as possible with the patrols into the infirmary. The women generally attempted to oppose my entrance, and a group had got Willson amongst them, and said she should not be confined. I desired the patrols to lay hold of her, and take her to the dark cell (I had met with Dr. Hugh when going for the patrols, who under the circumstances sanctioned the removal of the prisoner). In doing so, Betts and Stone were assaulted with the utmost violence; I myself was violently laid hold of, and my wrist and finger painfully twisted. I had Willson, however, taken to the dark cell, when, having summoned several of the turnkeys and officers of the prison, I with considerable difficulty succeeded in taking six more of them who appeared to be most forward in this disgraceful riot. Several of the large panes in the passage windows were broken; and the women seized everything they could lay their hands on, and flung them at the officers, who, in self-defence, were at length compelled to strike in return. I immediately reported the circumstance to Sir George Farrant, the visitor, who came to the prison soon after. I accompanied him, with Dr. Bennett (the chaplain) and Mr. Pratt (the surgeon), through the female pentagon and infirmary, when a strong spirit of insubordination was obvious. Sir George addressed them, and so

did Dr. Bennett, and pointed out the serious injury they were doing themselves, and that such conduct would not pass unpunished. We afterwards visited the dark refractory cells, where the worst were confined; two of whom, on account of previous good-conduct and favourable circumstances, were liberated. For myself, I never beheld such a scene of outrage, nor did I observe a single individual who was not culpably active.”

As a general rule, the prisoners in the Penitentiary were in these days so little looked after, and had so much leisure time, that they soon found the proverbial mischief for idle hands. Having some suspicions, the governor searched several, and found up the sleeves of five of them, knives, playing cards (made from an old copy-book), two articles to hold ink, a baby’s straw hat, some papers (written upon), and an original song of questionable tendency. The hearts and diamonds in the cards had been covered with red chalk, the clubs and spades with blacking. “Having received information that there were more cards about, he caused strict search to be made, and found in John Brown’s Bible, one card and the materials for making more, also a small knife made of bone. In another prisoner’s cell was found another knife and some paste, ingeniously contrived from old bread-crumbs.” But even these amusements did not keep the prisoners from continually quarrelling and fighting with one another. Any one who had made himself obnoxious was severely handled. A body of prisoners fell upon one Tompkins, and half killed him because he had reported the irreverent conduct of several of them while at divine service. The place was like a bear-garden; insubordination, riots, foul language, and continual wranglings among themselves—it could hardly be said that the prisoners were making that rapid progress towards improvement which was among the principal objects of the Penitentiary.

And now the scene shifts to the Woolwich hulks, whither by this time the whole of the inmates were being by degrees transferred. The first batch of males were sent off on the 16th August, embarking at Millbank, and proceeding by launch to Woolwich. Great precautions were taken. All the disposable taskmasters, turnkeys, and patrols being armed and stationed from the outer lodge to the quay (River Stairs), the prisoners were assembled by six at a time, and placed without irons in the launch. The same plan was pursued from time to time, till at length the entire number were removed. The hulks were the *Ethalion*, *Narcissus*, *Dromedary*. A master was on board in charge of each, under the general supervision of

Captain Chapman, the governor of the Penitentiary. There was immediately a further great deterioration in the conduct of the prisoners. Not only were they mischievous, as appeared from their favourite pastime, which was to drag off one another's bedclothes in the middle of the night, by means of a crooked nail attached to a long string, but the decks which they occupied were for ever in a state of anarchy and confusion. "All the prisoners below," says the overseer of the *Ethalion*, "conducted themselves last night in a most improper manner, by singing obscene songs and making a noise. When summoned to appear on the upper deck, they treated the master with defiance and contempt, so that the ringleaders had to be put in irons." But it was a mere waste of time to confine prisoners below. There was no place of security to hold them. "A number of prisoners broke their confinement by forcibly removing the boards of the different cabins in which they were placed in the cockpit, and got together in the fore hold, where they were found by Mr. Lodge at half-past nine at night." Another prisoner, a day or two later, confined in the hold, broke out, and proceeded through the holds and wings of the ship till he arrived at the fore hold, where another prisoner, Connor, was confined for irreverent behaviour during chapel. Connor tore up the boards fastened on to the mast-hatch, and admitted Williams to him. "When Williams' escape was discovered," says the overseer, "I searched for him in the bottom of the ship. On my arriving at the bulkhead of the fore hold I inquired of Connor if Williams was with him. He declared he was not, calling on God to witness his assertion; but on opening the hatch, to my astonishment I found him there. I ordered him back to the place in which he was first confined; on which he used the most abusive language, saying, by God, when he was released he would murder me and every officer in the ship. I talked mildly to him, and desired him to return to the place in which he had been confined. He at last complied, using the most abusive and threatening language. When he had returned to the after hold, I put the leg-irons on him to prevent his forcing out a second time, giving him at the same time to understand, that if he would behave himself they would soon be taken off. But he was still turbulent, breaking everything before him. I then put handcuffs on him, notwithstanding which he broke out at 9 P.M., disengaged himself from the handcuffs, and got a second time to the fore hold, where I again found him, and insisted on his returning. He kicked me very much in the legs, using, as before, threatening language. I then found it necessary to use force, and taking guards Wadeson and Clarke with the

steward, we again removed him to his first place of confinement. He appeared so resolute and determined to commit further depredations, that I fastened his leg-irons to a five-inch staple in the timber of the hold, which staple he tore up during the night, and again passed to Connor in the fore hold."

On the 27th November it was found that some prisoners had made their escape from the *Ethalion* hulk. On mustering the prisoners in the morning three were missing. Search was immediately made, but they were not to be found. All the hatches on the lower deck were secure; but it was ascertained, on examination of the after hold, that the prisoners must have made their way into the steward's store-room, where they had taken out the window. One of them then swam off to the *Shear* hulk, secured the boat, brought it to the after windows, and by that means, assisting each other, the three effected their escape. The boat belonging to the *Shear* hulk was found at the Prince Regent's Ferry House, on the Essex coast. After a close investigation it was not possible to bring the blame home to any one. All the guards proved, of course, that they were on the alert all night. The steward said he had had a blister on, and could not sleep a wink, but he never missed hearing the bell struck (by the watch) every quarter of an hour. Stevenson, one of those who had escaped, had always been employed in the steward's store-room, hence he knew his way about the ship. Being a sailor and a good swimmer, it was probably he who had gone to the *Shear* hulk and got a boat, taking with him one end of a rope made of hammock nettings, the other being fast to a beam in the store-room. By this rope the *Shear* hulk boat was hauled gently to the *Ethalion*; then the other two prisoners got into it, and it was allowed to drift down for some distance with the tide. No sound whatever of oars had been heard during the night by the sentries on board or on shore. The escape must have been made between one and two o'clock in the morning, as at three the men were seen landing from a boat on the Essex coast.

Information of the escape soon spread among the other prisoners, and it was pretty certain that many would attempt to follow. They were reported to be ripe for any mischief. The fire-arms were carefully inspected by the governor, who insisted on their being kept constantly in good order and "well flinted." At the same time a strict search was made through the ship, particularly of the lower deck, for any implements that might be secreted to facilitate escape. False keys were reported to be in existence, but none

could be found; only a large sledge-hammer, a ripping chisel, and some iron bolts which were concealed in the caboose. A few days afterwards the master of the *Ethalion* reported the discovery of a number of other dangerous articles in various parts of the ship, several more sledge-hammers, chisels, iron bars, spike nails, etc., all calculated to do much mischief, and endanger the safety of the ship. At the same time, four prisoners were overheard planning another escape. They were to steal the key of a closet on the deck, and alter it so as to fit the locks of the bulk heads into the infirmary wards, and pass by this means to the cabin, and out through one of the ports. The key was immediately impounded, and a strict watch kept all night. Between eleven and twelve the guard reported that he heard a noise like filing through iron bars; so the master got into a boat with two others and rowed round the ship. They were armed with a cutlass and blunderbus, "which," says the master, "I particularly requested might be put out of sight." But everything was perfectly quiet on the lower deck, and on going through the upper deck the only discovery made was a prisoner sitting by a lamp, manufacturing a draught board, which he refused to part with. They left the deck quite quiet; yet at half-past three the whole place was in an uproar. A regular stand-up fight took place between two prisoners, Elgar and Blore, in which the former got his eyes blackened and face damaged in the most shameful manner. This Elgar was the man who gave information of the projected escape, thereby incurring the resentment of the rest. It is improbable, however, that any attempt was actually intended this time, though escape was in every mouth, and had been since the event of the previous Thursday.

Speaking of the hulks at this time, the governor says, "It is but too true that little if any discipline exists among the prisoners, and that the state of insubordination is extremely alarming. This may, in a great degree, be attributed to the lamentable state of idleness, the facility of communicating with each other, concerning and perpetrating mischief, and the inadequate means of punishment when contrasted with the hulks establishment."

But by this time news had come of the missing three. At nine o'clock one night a person called at the Penitentiary and asked to see the governor in private. He was shown into the office. "You had three prisoners escape from Woolwich lately? One of them is my brother, Charles Knight. I am very anxious he should be brought back. What is the penalty for escaping?" He was informed; also that there was a charge of stealing from the

steward's store. Knight's brother said he would willingly pay the damage of that, and wished to make conditions for the fugitive if he was given up. The governor would not promise beyond an assurance of speaking in Knight's favour to the committee; and said all would depend upon his making a full and candid disclosure of all the circumstances connected with the escape, and giving all the information in his power which would lead to the arrest of the other two. The visitor then observed that his brother was very young, and by no means a hardened offender; that he was led into this act and was sorry for it; that none of his relations would harbour him, and that he was quite ready to return. Next morning he was brought back by his mother and brother, and gave immediately a full account of the affair. The escape had been concerted a full week before it was carried into effect, and had been arranged entirely by Stevenson, who having been employed in the store-room, had purloined a key, filed out the wards and made a skeleton key, with which he opened the hatches. The rope was made out of spun yarn, found in the hold by Stevenson, who also got there the sledge-hammer, chisel, and iron spikes. There was not a soul moving or awake on the lower deck, and no one knew of their intention to escape. They then got away in a boat, just as had been surmised. On landing at the new ferry on the Essex coast, they went across the chain pier, Payne changing a shilling to pay the toll. This was all the money they had amongst them, and had been conveyed to Payne by some person in the ship. They then proceeded to London, and were supplied with hats by a Jew named Wolff, living in Somerset Street, Whitechapel, to whose house they were taken by Stevenson. Afterwards they went to the West End. Payne separated from them in Waterloo Place, saying he meant to go to a brother living at Stratford-on-Avon. Stevenson then took Knight to his brother's, who was a working jeweller, and who gave them money to buy clothes. They hid together for the night in a house in George Street, St. Giles; and then Knight went home to his aunt's in Hanover Street, Long Acre, but was refused admittance. The same happened with all his other relatives, and at last he was compelled to give himself up in the manner described. Through information which he gave the others also were apprehended.

The numbers on board the several ships at this time were over six hundred; they were not classified; the distinctions of the Penitentiary, as well as the dress, were done away with. All alike were clothed in a coarse brown suit. They were kept in divisions of seventy-five, with a wardsman in

charge of each division; besides which, a number of well-conducted prisoners were appointed to keep watch during the night, who were to report any irregularity that might occur during the watch. There was no employment for the prisoners: the making of great-coats was tried, but it did not succeed. There was no work to be got on shore, and it was doubtful whether these prisoners could be legally employed for that. In fact the whole establishment was considered a sort of house of recovery, and all the prisoners were more or less under hospital treatment throughout. The general conduct of the prisoners was “unruly to a degree, and in some instances to the extent of mutiny.” This continued month after month through the winter till well into the spring of 1824, when for a time, indeed, the conduct of all improved. They were in hopes that they were about to get some remission of their sentences, and feared lest misconduct should militate against their release. They were all in full expectation that something would be done for them by Parliament, in consequence of their very great sufferings. The tenor of all their letters to their friends was to the same effect. They were, however, doomed to disappointment; for on the 14th April, Mr. Kellock states, “This morning I received information that the bill for the labour and removal of the male convicts under the Penitentiary rules, and at present on board the prison ships, had received the royal assent. When informed that they were to be removed to labour at the hulks, they received the news with some degree of surprise and astonishment.” But the same day the exodus took place, and they are reported to have gone away “very quietly and resigned.”

CHAPTER IV

THE PENITENTIARY REOCCUPIED

Improved Ventilation and Drainage—Revised dietary—Provision of Hard Labour—Mild rule of Governor Chapman—Constant warfare between Prisoners and Authorities—Feigned suicides—Repeated Offences—Turbulence developed into open mutiny—Cells barricaded—Furniture demolished—Officers assaulted—Resistance to Authority culminates in murderous affray—Act permitting corporal punishment passed.

No pains were spared to make the Penitentiary wholesome for re-occupation. A Parliamentary Committee—that great panacea for all public ills—had however already reported favourably upon the place. They had declared that no case of local unhealthiness could be made out against it; nor had they been able to find “anything in the spot on which the Penitentiary is situated, nor in the construction of the building itself, nor in the moral and physical treatment of the prisoners confined therein, to injure health or render them peculiarly liable to disease.”

Yet to guard against all danger of relapse, they advised that none of the old hands should return to the prison, and recommended also certain external and internal improvements. Better ventilation was needed; to obtain this they called in Sir Humphrey Davy, and gave him *carte blanche* to carry out any alterations. Complete fumigation was also necessary; and this was effected with chlorine, under the supervision of a Mr. Faraday from the Royal Institution. To render innocuous the dirty ditch of stagnant water—dignified with the name of moat—which surrounded the buildings just within the boundary wall, it was connected with the Thames and its tides. Additional stoves were placed in the several pentagons, and the dietary reorganized on a full and nutritive scale, in quality and quantity equal to that in force before the epidemic. Provision was also made to secure plenty of hard labour exercise for the prisoners daily, by increasing the number of

crank mills and water machines in the yards. More schooling was also recommended, as a profitable method of employing hours otherwise lost, and breaking in on the monotony and dreariness of the long dark nights. The cells, the committee thought too, should be lighted with candles, and books supplied "of a kind to combine rational amusement, with moral and religious instruction." Indeed there was no limit to the benevolence of these commissioners. Adverting to the testimony of the medical men they had examined, who were agreed that cheerfulness and innocent recreation were conducive to health, they submitted for consideration, whether some kind of games or sports might not be permitted in the prison during a portion of the day. Fives-courts and skittle-alleys were probably in their minds, with cricket in the garden, or football during the winter weather. As one reads all this, one is tempted to ask whether the objects of so much tender solicitude were really convicted felons sentenced to imprisonment for serious crimes.

The rule of Governor Chapman was essentially considerate and mild. There was no limit to his long-suffering and patience. Though by all the habits of his early life he must have learned to look at breaches of discipline with no lenient eye, we shall find that he never punished even the most insubordinate and contumacious of the ruffians committed to his charge till he had first exhausted every method of exhortation or reproof; and when he had punished he was ever ready to forgive, on a promise of future amendment, or even a mere hypocritical expression of contrition alone. It is now generally admitted that felons cooped up within four walls can be kept in bounds only under an iron hand. Captain Chapman acted otherwise, the committee which controlled him fully endorsing his views. For a long time to come the prison was like a bear garden; misconduct was rife in every shape and form, increasing daily in virulence, till at length the place might have been likened to Pandemonium let loose. Then more stringent measures were enforced, with satisfactory results, as we shall see; but for many years there was that continuous warfare between ruffianism and constituted authority which is inevitable when the latter savours of weakness or irresolution.

Feigned suicides were among the earliest methods of annoyance. It is not easy to explain exactly what end the prisoners had in view, but doubtless they hoped to enlist the sympathies of their kindhearted guardians, by exhibiting a recklessness of life. Those who preferred death to continued imprisonment must indeed be miserably unhappy, calling for

increased tenderness and anxious attention. They must be talked to, petted, patted on the back, and taken into the infirmary, to be regaled with dainties, and suffered to lie there in idleness for weeks. So whenever any prisoner was thwarted or out of temper, often indeed without rhyme or reason, and whenever the fancy seized him, he tied himself up at once to his loom, or laid hands upon his throat with his dinner-knife, or a bit of broken glass. Of course their last idea was to succeed. They took the greatest pains to insure their own safety, and these were often ludicrously apparent; but now and then, though rarely, they failed of their object, and the wretched victim suffered by mistake. Happily the actually fatal cases were few and far between.

This fashion of attempting suicide was led by a certain William Major, who arrived from Newgate on the 8th October, 1824. A few days afterwards he confided to the surgeon this determination to make away with himself; “that, or murder some one here; for I’d sooner be hanged like a dog than stay in the Penitentiary.” Such terrible desperation called of course for immediate expostulation, and Captain Chapman proceeded at once to Major’s cell. The prisoner’s knife and scissors were first removed; then the governor spoke to him. Major replied sullenly; adding, “I’ve made up my mind: I’d do anything to get out of this place; kill myself or you. I’d sooner go to the gallows than stay here.” “I reasoned with him,” says Captain Chapman in his Journal, “for a length of time on the wickedness of such shocking expressions; telling him there was only one way of shortening his time, and that was by good conduct. I told him his threats were those of a silly lad, which I should however punish him for.” So Major was carried off to a dark cell, but not before the governor had said all he could think of, to reason him out of his evil frame of mind. He remained in the dark two days, and then, having expressed himself penitent and promising faithfully better behaviour, he was released. For three weeks nothing further occurred, and then, “Suddenly,” says the governor, “as I was passing through a neighbouring ward, a turnkey called to me, ‘Here, here, governor! bring a knife. Major has hanged himself.’ He had made himself fast to the cross beam of his loom. The action of his heart had not, however, ceased, though the circulation was languid and his extremities cold. He was removed at once to the infirmary, and as soon as animation was restored, the governor returned to the prisoner’s cell, and then found that “the hammock lashing was made fast in two places to the cross beam from the loom to the wall; in

one was a long loop, in which Major had placed his feet; in the other a noose, as far distant from the loop as the length of the beam would permit, in which he had put his head; a portion of the rope between noose and loop he had held in his hand." It was quite clear, therefore, that he had no determined intention of committing suicide; besides which he had chosen his time just as the turnkey was about to visit him, and he had eaten his supper, "which," says the governor, "was no indication of despair." Major soon recovered, and pretended to be sincerely ashamed of his wicked behaviour.

Not long afterwards a man, Combe, in the refractory cell, tried to hang himself with a pocket handkerchief. Placing his bedstead against the wall, he had used it as a ladder to climb up to the grating of the ventilator in the ceiling of his cell. To this he had made fast the handkerchief, then dropped; but he was found standing calmly by the bed, with the noose not even tight. Next a woman, Catherine Roper, tried the same trick, and was found lying full length on the floor, and evidently she was quite uninjured. Then came a real affair; and from the hour at which the act was perpetrated all doubt of intention was unhappily impossible. Lewis Abrahams, a gloomy, ill-tempered man, was punished for breaking a fly-shuttle; again for calling his warder a liar. That night he hung himself. He was found quite dead and cold, partly extended on the stone floor, and partly reclining as it were against the cell wall. He had suspended himself by the slight "nettles" (small cords) of his hammock, which had broken by his weight. The prisoner in the next cell reported that between one and two in the morning he had heard a noise of some one kicking against the wall; and then no doubt the deed was done.

After this unhappy example attempts rapidly multiplied, though happily none were otherwise than feigned. One tried the iron grating and a piece of cord; another used his cell block as a drop, but was careful to retain the halter in his hands; a third, Moses Josephs, tried to cut his throat, but on examination nothing but a slight reddish scratch was found, which the doctor was convinced was done by the back of the knife. In all these cases immediate and anxious attention was afforded by all the officials of the Penitentiary. The governor himself, who never gave himself an hour's relaxation, and was always close at hand, was generally the first on the scene of suicide. If there was but a hint of anything wrong he was ready to spend hours with the intending *felo-de-se*. Thus in Metzger's—a fresh case: a

man who would not eat, was idle too, morose and sullen, “though spoken to always in the kindest manner.” No sooner was it known that he was brooding over the length of his confinement—his was a life sentence—and had hinted at suicide, than the governor spent hours with him in exhortation. Metzger, being a weaver by trade, had been placed in a cell furnished with a loom; from this he was to be changed immediately to another, lest the beam should be a temptation to him; but the governor, being uneasy, first visited him again, and found him, though late at night, in his clothes perambulating his cell. On this his neighbour was set to watch him for the rest of the night, and the doctor gave him a composing draught. Next morning, when they told him he was to leave his cell for good, he became outrageously violent, and assaulted every one around. He was now taken forcibly to the infirmary, and put in a strait-waistcoat; whereupon he grew calmer and promised to go to his new cell, provided he was allowed to take his own hammock with him. It struck the governor at once that something might be concealed in it, and it was searched minutely. Inside the bedclothes they found a couple of yards of hammock lashing, one end of which was made into a noose, “leaving,” the governor remarks, “little doubt of his intention.”

But to meet and frustrate these repeated attempts at suicide were by no means the governor’s only trials. The misconduct of many other prisoners must have made his life a burthen to him. Thefts were frequent: these fellows’ fingers itched to lay their hands on all that came in their way. The tower wardsman—a prisoner in a place of trust—steals his warder’s rations; others filch knives, metal buttons, bath brick, and food from one another. Then there was much wasteful destruction of materials, with idleness and carelessness at the looms, aggravated often by the misappropriation of time in manufacture of trumpery articles for their own wear: one makes himself a pair of green gaiters, another a pair of cloth shoes, a third an imitation watch of curled hair, rolled into a ball, which hangs in his fob by a strip of calico for guard.

These were doubtless offences of a trivial character. The anxiety evinced by many to escape from durance was a much more serious affair. Surprising ingenuity and unwearied patience are exhibited by prisoners in compassing this, the great aim and object of all who are not free. As yet, however, the efforts made were tentative only and incomplete. To break a hole in the wall or manufacture false keys was the highest flight of their

inventive genius, and the plot seldom went very far. One of the first cases was discovered quite by chance. On searching a prisoner's cell, some screws, a few nails, and two pieces of thick iron wire were found concealed in his loom; and in one of his shoes as it hung upon the wall, a piece of lead shaped so as to correspond with the wards of a cell key. This the prisoner confessed he had made with his knife from memory, and altogether without a pattern. "I have a very nice eye," he said, "and I have always carefully observed the keys as I saw them in the officers' hands." "And what did you mean to do with the key?" he was further asked. "To get away, of course." "How?" "I can open the wooden door when I please, and then I should have unlocked my gate."^[1] On examination a hole was found in his door, just below the bolt and opposite the handle; through this, by means of a narrow piece of stuff, a knitting needle in fact, he could move back the bolt whenever he pleased. Once out in the ward, he meant, with a file he had also secreted, to get through the bars of the passage window. The wards of this key were fastened into a wooden handle, which was also found in his cell. Another prisoner, having been allowed to possess himself of a large spike nail, which had been negligently left about in the yard, worked all night at the wall of his cell, and soon succeeded in removing several bricks. The hole he made was large enough to allow him passage. Besides this, from the military great-coats, on which he was stitching during the day, he had made himself a coat and trousers. He might have actually got away had not a warder visited his cell to inspect his work, and taking up the great-coats as they lay in a heap in the corner, discovered the disguise beneath, also the spike nail, and the rubbish of bricks and mortar from the hole. More adventurous still, a third prisoner proposed to escape by stealing his warder's keys. Failing an opportunity, he too turned his attention to making false ones; and for the purpose cut up with scissors his pewter drinking can into bits. By holding the pieces near the hot irons he used for his tailoring, he melted the metal, and ran it into a mould of bread. Information of this project was given by another prisoner in time to nip it in the bud. Another, again, had been clever enough to remove a number of bricks, and would have passed undetected, had not the governor by chance, when in his cell, touched the wall and found it damp. A closer inspection showed that the mortar around the bricks had been picked out, and the joints filled in by a mixture of pounded mortar and chewed bread. On the outside was laid a

coating of whiting, such as was issued to the prisoners to help them in cleaning their cans.

In some mischief of this kind, one or other of the prisoners was perpetually engaged. Cutting up their sheets to fabricate disguises; melting the metal buttons, as the man just mentioned had melted his pewter can; laying hold of files, rasps, old nails, scissors, tin, copper wire, or whatever else came handy; and working always with so much secrecy and despatch, that their plans were discovered more by fortune generally, than good management. In those days the best methods of prison discipline were far from matured. We know now that the surest preventives against escape, are repeated and unexpected searchings, with continuous vigilant supervision. A prisoner to carry out his schemes must have leisure, and must be left to himself to work unperceived. By the practice of the Penitentiary, prisoners had every facility to escape; and we shall find ere long, that they knew how to make the most of their advantages. For the present, all the good luck was on the side of the gaolers.

But at this juncture a new trouble threatened all the peace and comfort of the place. The prisoners seem to have grown all at once alive to the power they possessed of combination. It had been suspected for some time that a conspiracy was in progress among the denizens of D Ward, Pentagon two, and a minute search of the several cells brought to light a number of clandestine communications. These, written mostly on the blank pages of prayer-books, and spare copy-book leaves, were all to the same effect: exhortations to riot and mutiny. A certain George Vigers was the prime mover; all the letters, which were very widely disseminated, having issued from his pen. It had long been openly discussed among the prisoners that the hulks were pleasanter places than the Penitentiary. Here, then, was an opportunity of removal. All who joined heartily in the projected commotion would draw upon themselves the ire of the committee, and would certainly be drafted to the hulks. To explain what might otherwise appear unintelligible, it must be mentioned here, that the punishment implied by a sentence to the hulks was by no means of a terrifying character, as is evidenced by the choice of the prisoners.

A year or two later (1832), the report of the Parliamentary Committee on Secondary Punishments laid bare the system, and expressed their unqualified disapprobation of the whole treatment of convicts on board the hulks. It being accepted that the separation of criminals, and their severe

punishment, are necessary to make crime a terror to the evil doer, the committee pointed out that in both these respects the system of management of the hulks was not only necessarily deficient, but actually inimical. All that has been said of the miserable effects of the association of criminals in the prisons on shore, the profaneness, the vice, the demoralization that are its inevitable consequences, applied in the fullest sense to the hulks. The numbers in each ship varied from eighty to eight hundred. The ships were divided into wards of from twelve to thirty persons; in these they were confined when not at labour in the dockyard, and the evil consequences of such associations may easily be conceived, even were the strictest discipline enforced. But the facts are stated as follows: "The convicts after being shut up for the night are allowed to have lights between decks, in some ships as late as ten o'clock; although against the rules of the establishment, they are permitted the use of musical instruments; flash songs, dancing, fighting, and gaming take place; the old offenders are in the habit of robbing the newcomers; newspapers and improper books are clandestinely introduced; a communication is frequently kept up with their old associates on shore; and occasionally spirits are introduced on board. It is true that the greater part of these practices are against the rules of the establishment; but their existence in defiance of such rules shows an inherent defect in the system. But the indulgence of purchasing tea, bread, tobacco, etc., is allowed, the latter with a view to the health of the prisoners; the convicts are also allowed to receive visits from their friends, and during the time they remain, are excused working, sometimes for several days. Such communications can only have the worst effect. It is an improper indulgence to anyone in the position of a convict, and keeps up a dangerous and improper intercourse with old companions. The most assiduous attention on the part of the ministers of religion would be insufficient to stem the torrent of corruption flowing from these various and abundant sources; and but little attention is paid to the promotion of religious feelings, or to the improvement of the morals of the convicts." It was plainly seen that the convicts were also allowed to earn too much money—threepence a day to convicts in the first class, three halfpence to those in the second; out of which the former got sixpence a week, and the latter threepence, to lay out in the purchase of tea, tobacco, etc., and the remainder was laid by to be given to them on their release. They were supposed to work during the day at the arsenals and dockyards, but "there was nothing in the nature or severity of their

employment which deserves the name of punishment or hard labour.” The work lasted from eight to ten hours, according to season; but so much time was lost in musters, and going to and from labour, that the summer period was never eight hours, and winter only six and a half. As common labourers work ten hours, and when at task work or during harvest much longer, the convicts could hardly be said to do more than was just sufficient to keep them in health and exercise; indeed, their situation could not be considered penal; it was a state of restriction, but hardly of punishment.

Thus, as the committee described, the criminal sentenced to transportation for crimes to which the law affixed the penalty of death, passed his time, well fed, well clothed, indulging in riotous enjoyment by night, vexed with but moderate labour by day. No wonder that confinement on the hulks failed to excite a proper feeling of terror in the minds of those likely to come under its operation. The hulks were indeed not dreaded; prisoners described their life in them as a “pretty jolly life.” If any convict could but overcome the sense of shame which the degradation of his position might evoke, he would feel himself to be better off than large numbers of the working-classes, who have nothing but their daily labour to depend on for subsistence. At the dockyards, among the free men the situation of a convict was looked upon with envy; and many labourers would have been glad to change places with him, in order that they might better their situation. It was not strange, then, that the discontented denizens of the Penitentiary found even the moderate rigour of that establishment too irksome, and that they were eager to be transferred to the hulks.

Towards the end of September, 1826, came the first indications of disturbance. A prisoner having smashed his bedstead, demolished also the iron grating to his window, and thrust through it his handkerchief, tied to a stick, shouting and hallooing the while loud enough to be heard in Surrey. The same day, Hussey, another notorious offender, returning from confinement in the dark, was given a pail of water to wash his cell out, but instead, discharged the whole contents over his warder’s head. Before he could be secured he had destroyed everything in his cell, and had thrown the pieces out of the window. Next, a number of prisoners during the night took to rolling their cell-blocks and rattling their tables about. By this time the dark cells had many occupants, who spent the night in singing, dancing, and shouting to each other.

Early next morning, about 5 A.M., in this same ward from which all the rioters came, Stephen Harman broke everything he could lay hands on—the window frame and all its panes of glass, his cell table, stool, shelf, trencher, salt-box, spoon, drinking-cup, and all his cell furniture. He had first barricaded his door, and could not be secured till all the mischief was done. Later in the day from another cell came a long low whistle, followed by the crash of broken glass. The culprit here, when seized, confessed he had been persuaded by others; all were to join after dinner, the whistle being the signal to commence. The governor was now really apprehensive, anticipating something of a serious nature. He had a strong force of spare warders and patrols posted in the tower of the pentagon; but though the whistle^[2] was frequently heard during the night, nothing occurred till next day, at half-past eight, when George Vigers and another followed Harman's lead and destroyed everything in their cells. They joined their companions in the dark cells, all of whom, being outrageously violent, were now in handcuffs. In the dark they continued their misconduct; using the most shocking and revolting language to all officials who approached them; assaulting them, deluging them with dirty water, resolutely refusing to give up their beds, and breaking locks, door panels, and windows, and this although they were restrained in irons. These handcuffs having failed to produce any salutary effect, they were now removed; although several of the prisoners did not wait for that, and had riddled themselves of their bracelets. For the next few days "the Dark," as these underground cells were styled in official language, continued to be the scene of the most unseemly uproar. When Archdeacon Potts, one of the committee, visited it he was received with hoots and yells; and this noise was kept up incessantly day and night. But at length, after nearly a fortnight of close confinement, the strength of the rioters broke down, several of them being removed to the hospital, while the others went back to their cells. But there was no lack of reinforcements: fresh offenders took up the game, and the dark cells were continually full. As soon as those first punished were sufficiently recovered, they broke out again. The cases of misconduct, generally of the same description, were varied now and then by a plot to break the water-mill by whirling round the cranks too fast, continuous noise, insolence, dancing defiantly the double shuffle, attempts to incite a whole ward, when in the corridor at school, to rise against their warders, overpower them, and take possession of their keys.

Throughout the long nights of the dreary winter months these disturbances continued; a time of the utmost anxiety and annoyance to worthy Captain Chapman, who was invariably the foremost in the fray. Nothing can exceed the pluck and energy with which he tackled the most truculent. When a prisoner, mad with rage, dares any man to enter his cell, it is Governor Chapman who always enters without a moment's hesitation; when another, armed with a sleeveboard, threatens to dash out everybody's brains, it is Captain Chapman who secures the weapon of offence; when a body of prisoners on the mill break out into open mutiny, and the warder in charge is in terror for his personal safety, it is Governor Chapman who repairs at once to the spot and collars the ringleaders. Perhaps it would have been better if so much resolute courage had not been tempered with too much kindness of heart. No one can read of Captain Chapman's proceedings without admitting that he was brave; but for his particular duties he was undoubtedly also amiable to a fault. Had he been more unrelenting it is probable that the worst offenders would never have gone such lengths in their insubordination. A word or two of contrition, often the merest sham, was sufficient generally to secure his pardon. Thus when a man has worked himself into a fury and appears ready for any act of desperation, the mere appearance of the governor calms him, and the prisoner, softened, says, "You, sir, use me much better than I deserve. Put me in the dark." "I left him," says Captain Chapman, on one occasion, "saying I trusted my lenity would have a much better effect than a dark cell. I therefore admonished and pardoned him." Had such kindness been productive of good results no one could have questioned his wisdom; almost invariably it was worse than futile, and the malcontents soon worse than ever, and devising fresh schemes.

It was in this winter that the superintending committee became convinced that the methods of coercion they possessed were hardly so stringent as the case required. They reported to the House of Commons that "there were among the prisoners some profligate and turbulent characters for whose outrageous conduct the punishments in use under the rules and regulations of the Penitentiary were by no means sufficient." They found by experience that "confinement in a dark cell, though in most cases a severe and efficacious punishment, operates very differently on different persons. It appears to lose much of its effect from repetition; it cannot always be carried far without the danger of injuring health; and on some men as well

as boys it has no effect.” Many of the ringleaders in the disturbances just described were subjected to twenty-five, twenty-eight, and even to thirty days of uninterrupted imprisonment in the dark, and certainly with little effect. In view of this want of some more salutary punishment the committee expressed a wish for power to flog. They were convinced that “the framers of the statute under which the Penitentiary is now governed acted erroneously in omitting the power to inflict corporal punishment when they re-enacted most of the other provisions of the 19th Geo. III. And they are satisfied that a revival of this power (a power possessed in every other criminal prison in this country) would be highly advantageous to the management of this prison, provided such power were accompanied by regulations adequate to control the exercise of it, and to guard against its being abused.”

Soon after these lines were in print, and presented to the House, it became more than ever apparent that to tame these turbulent characters some serious steps must be taken soon. During the early months of 1827 there had been no cessation of misconduct of the kind already described, but the cases were mostly isolated, and generally succumbed to treatment. But as March began a storm gathered which soon burst like a whirlwind on the place. It was heralded by a riot in chapel on Sunday, the 3rd of March. Previous to the sermon, during evening service, a rumbling noise was heard, as if the prisoners assembled were stamping in unison with their feet. The sound ceased with the singing of the psalm, and recommenced during the sermon, and increased in violence. It was discovered that the noise was made by the prisoners knocking with their fists against the sheet iron that separated the several divisions. As the uproar continued to increase to a shameful and alarming extent, the governor left the chapel to fetch the patrols, and other spare officers, all of whom, with drawn cutlasses, were posted near the chapel door. The prisoners were then removed to their cells, and, in the presence of this exhibition of force, they went quietly enough. The ringleaders were afterwards singled out and punished: the chief among them being a monitor, long remarkable for his piety, who on this occasion had distinguished himself by mimicking the chaplain, by commenting in scandalous terms upon the sermons, and using slang expressions instead of responses.

After this, in all parts of the prison there are strong symptoms of mutiny. Loud shouts, laughter, and the thieves’ whistle on every side. For the next

few days there is much uneasiness; and at length, about midnight on the 8th, the governor is roused from his bed. Pentagon six is in an uproar. As Captain Chapman hurries to the scene he is saluted with the crash of glass, interspersed with loud cries of triumph and of encouragement. The airing-yard below is strewn with fragments; broken window-frames, fragments of glass, utensils, and tables smashed to bits. Two notorious offenders in B Ward, Hawkins and John Caswell, are busy at the work of destruction, and already everything is in ruins. The tumult is so tremendous, so many others contribute their shouts, and the thieves' whistle runs so quickly from cell to cell, that sleep is impossible to any one within the boundary wall; and presently all officials, chaplain, doctor, manufacturers, and steward, have joined the governor, and are helping to quell the disturbance. It is quelled, but hardly has the governor got back to bed, at two in the morning, when the uproar recommences: the same noise and loud shouts from one side of the pentagons of prisoners, inciting each other to continue the riot. Next day, from various other wards come reports that a spirit of insubordination is on the increase; and the offenders in the dark, ten in number, are violent in the extreme. Again, at midnight, the governor is aroused by a tremendous yelling from Pentagon six, followed by the smashing of glass. The offenders are seized at once, and, the governor remarks, "from what I could learn, were pretty roughly handled by their captors." During this night, too, in noise and violence the several prisoners in the dark exceeded, if possible, their accustomed mutinous conduct. One, by some extraordinary effort, broke the part of his door to which the lock was attached, and got it into his cell, swearing he would brain the first person who approached him. There was much answering to and from the dark cells and the upper stories of the pentagons opposite. There was evidently discontent also in other parts of the prison. Those prisoners who had no hope of gaining any remission of their sentences, having no inducement to behave well, were on the point of insurrection. In addition to these alarms, on the night of the 14th it was reported to the governor that the prisoners were making their escape from the dark cells. The noise was so tremendous that it could be heard all over the prison.

And now mysterious documents emanating from the prisoners were picked up, containing complaints mostly of the treatment they received, and full of terrible threats. As time passed, the worst of these threats found vent in the hanging of the infirmary warder's cat. The halter was a strip of round

towel from behind the door, and a piece of paper was affixed to it, with these portentous words:—

“you see yor Cat is hung And
you Have Been the corse of it
for yoor Bad Bavior to Those
arond you. Dom yor eis, yoo’l
get pade in yor torn yet.”

Next were several closely written sheets, full of inflammatory matter, which gave the authorities so much uneasiness that several hundred prisoners were closely examined as to their contents. As these letters afford curious evidence of the importance prisoners arrogate to themselves, it may be interesting to publish one *in extenso*. It was found on the road back from chapel. There was no signature attached. It was addressed to the visitor.

“SIR,—Four instances of brutality have occurred in this Establishment within the last week; the which we, as men (if we do our duty towards God and man), cannot let escape our notice, and hope and trust you will not let them pass without taking them into your serious consideration. We will take the liberty of putting a few questions to you, which we hope you will not be offended at. Who gave Mr. Bulmer authority to strike a lad named Quick almost sufficient to have broken his arm, indeed so bad that the lad could not lift his hand to his head? and who gave Mr. Pilling the same authority to smite a lad to the ground, named Caswell, with a ruler, the same as a butcher would a Bullock, without him (Caswell) making the least resistance? On Saturday night last there was brutal and outrageous doings, Mr. Pilling as desperate as ever, assisted by that villain Turner (we cannot give him a better term—we wish we could). Who would have thought a man could have been so cruel as to lift a poker against a fellow-creature? A ruler, we have heard, was broken into two pieces, a thing that is made of the hardest of wood. Was there ever, in the annals of treachery and oppression, facts more scandalous than these! No. To hear their cries was sufficient to make the blood run cold of any man, if he was possessed of the least animal feeling (‘For God’s sake have compassion, and do not quite kill me,’ etc., etc.). And we do not hesitate to say, had not the wise Creator, that sees and hears all, put it into the heart of a man to be there and stop them in their bloody actions, homicide would have been committed: then God knows what would have been the result. We will admit that these men committed

themselves in the most provoking manner; but still, who are, what are these men, that they should take the law in their own hands? You are the person they should have applied to, and we are satisfied you would not have given them such authority. Many men have committed as bad, or worse crimes than either of these, and in less than one minute afterwards have been sorry for it. How did these men know but this was the case here? but without speaking to them, as Christians would do, knocks them down, as we have stated before, as a Butcher would do an Ox—we cannot make a better comparison—Messrs. Pilling and Turner in particular. The governor, too, who professes to fear God, we think if he would study the great and principal commandment, that is, to do to others as he would be done unto, it would be much more to his credit; especially, sir, as you and other gentlemen of this establishment expect when there is a discharge of prisoners (and it is to be hoped that soon will be the case) that they will give the establishment a good name. They cannot do it, unless there is a stop put to such brutal actions; they will most likely speak the sentiments of their hearts; they will say they have seen some of their fellow-creatures driven like wrecks before the rough tide of power till there was no hold left to save them from destruction. That will be a pretty thing for the public to hear. And, sir, we do not wish to be too severe, but unless Pilling and Turner are dismissed from the Establishment, and that shortly, we will fight as long as there is a drop of blood in us; for it is evident, many men have expired from a much lighter blow than either of those delivered; therefore necessity obliges us—we must do it for our own safety; but depend upon it, sir, it is far from our wish to do anything of the kind, for your sake, and for the sake of what few good ones we have (and God knows it is but few). There is 3 good men in the Pentagon—Messrs. Newstead, Rutter, and Hall, and we wish we could speak well of the others—but we cannot.

“N.B. We do not wish to give the last new warder a bad name, for we have not seen sufficient of him to speak either way, but what little we have seen leads us to believe he is a good man. We hope, sir, you will excuse us, but we will ask you another question. If you were in Mr. Pilling’s situation, and a man committed himself, would you not reason with him on the base impropriety of what he had done? We know you would. Instead of that, Mr. Pilling takes a delight in aggravating the cause with a grin, or a jeer of

contempt, not only before you see him (the prisoner), afterwards the same; which, without the least doubt, makes a man commit acts of violence which at other times he would tremble at the idea. We hope, sir, you will take this into your worthy and serious consideration, and by so doing you will greatly oblige,

“Your Obedient Humble Servants,

“FRIENDS TO THE OPPRESSED.”

This letter indicates the prisoners' attitude. On another occasion a few of them go to the governor's office to remonstrate with him on one of his punishments. We might as well imagine—to compare great things with small—a deputation from the criminal classes waiting on a judge to complain of his sentence on a thief. As soon as the protesters are ushered in, one says that Davis, the culprit, is very sorry for what he has done; another says that he was unwell at the time, and all unite in hoping the governor will let him off. Fortunately the governor is not so weak as they fancied. He says: “On my remarking to them—which I did with much indignation—their highly improper conduct in presuming to remonstrate with me in the execution of my duty, Boak (one of the three) remarked, that by their rules they were to apply to the governor or visitor if they had any complaint. To which I answered, ‘Most certainly,’ but that my confining Timothy Davis could not possibly be any grievance to them; and repeated that their presuming to dictate to me was of such a reprehensible and insubordinate nature that I should confine them in the dark cells.” But as they were penitent, and promised for the future to mind their own business, they were released the same day.

Meanwhile, the rioting and destruction proceeded without intermission. A frequent device now was for prisoners to barricade their cell doors, so as to work the more uninterruptedly. For this purpose the cell-blocks or some of the fragments from the demolished furniture served; and, as a brilliant idea, one or two prisoners invented the practice of filling their keyholes with sand and brick rubbish, or hampering the locks with their knives. But in March the riot exceeded anything in previous experience. It was prefaced by the usual exhibitions of defiance and insubordinate conduct, and the uproar as before broke out in the middle of the night. A dozen or more of the prisoners dressed themselves, barricaded their doors, and then set to

work. By and by the whole ward was in a tumult. The dark cells were already full, and there was no other place of punishment. The shouting and yelling could not therefore be checked, and continuing far into the day excited other prisoners at exercise, so that they were on the point of laying violent hands upon their warders. One scoundrel took off his cap and tried to cheer on his fellows to acts of violence; and some followed the warder into a corner, swearing they would have his life. The condition of the whole prison was now so alarming that the governor, with permission of the visitor, sought extraneous help. Application was made to the Queen's Square police office for a force of constables to assist in maintaining order and insuring the safe custody of the prisoners. As soon as these reinforcements arrived they were marched to the airing-yard of Pentagon five—the scene of the recent riots.

Here a large body of prisoners were at exercise. The governor and the visitor in turn addressed them, pointing out “the shame and disrepute they were bringing on themselves and the institution by their mutinous conduct.” Several in reply were most insolent in speech and manner, declaring they did not deserve to be treated with suspicion. One addressed a warder close at hand with loud abuse, another the taskmaster, swearing he was starved to death, and both had to be removed. These constables remained on duty during the night, and for several weeks to come continued to give their assistance. On the return of the prisoners to their wards, the governor spent four hours, from seven to eleven o'clock, going patiently from cell to cell, impressing on each man the necessity for orderly and subordinate conduct. “My time and efforts,” he says next day, “were, I regret to say, quite thrown away, for the noise and shouting continued during the night, though not quite to the same extent.” Nothing very serious, however, happened till three o'clock the following day, when Hickman, a prisoner in the infirmary, began to break his windows, and with loud huzzahs endeavoured to incite the others in the yards to “acts of violence and insubordination.” He was answered by many voices, and the tumult soon became general. Meanwhile, the governor and the visitor had repaired to Hickman's cell as soon as the smashing of glass was heard, but the man had cunningly made fast his door, and could not be interfered with. It appeared that he had complained of want of exercise, and had accompanied this complaint with so much contrition for previous violent conduct, that the surgeon had allowed his cell door to be unlocked, so that he might walk when he liked in the passage.

Directly the officers had gone to dinner he got out, and, using his knife, which had imprudently been left in his possession, hampered the locks at both ends of the passage. His next act was to slice into ribbons the whole of his bedding and that of several cells adjoining his own, which were unoccupied and proved not to be locked. This business satisfactorily arranged, he began to shout and to smash all the windows within his reach. Before he could be secured he had demolished eighty-two panes of glass and several sashes complete. He was found brandishing his broom, and offering to fight the lot of his captors, one of whom promptly knocked him down, when he was quickly handcuffed and carried back to his cell. But the noise he made that night, with others, was so great that the governor declared he never closed his eyes during the night. Night after night the misconduct of the prisoners continued, and grew worse and worse. Wards hitherto well behaved became infected. In C Ward, Pentagon six, "they commenced at 4 A.M. shouting and bellowing like the rest." The visitor on going to "the dark" was again most grossly insulted and abused. Another evening the noise and shouting that broke out was so loud that many officers going off duty heard the disturbance at the other end of Vauxhall Bridge, and returned to the prison.

All through the months of April and May the violence of the malcontents continued unabated. They had found out their strength, no doubt, and laughed at all attempts to coerce them. Neither dark cells nor irons exercised the least effect, and the only remaining punishment—the lash, the committee were not as yet empowered to enforce. It must be confessed that one reads with regret that a parcel of unruly scoundrels should thus be allowed to make a mockery of the punishment to which they were sentenced by the law, and that they should be suffered unchecked to set all order and discipline at defiance. And all this deliberate insolence and open insubordination could have but one end, and culminated at length in a murderous affray, in which a couple of prisoners fell upon the machine-keeper and nearly killed him. The plot had been well laid, and brewing for some time. About seven o'clock one morning, while working quietly at the crank, prisoner Salmon rushed at Mr. Mullard, the machine-keeper, and knocked him off the platform by a tremendous blow, which caught him just behind the ear, and cut his head open. Crouch, another prisoner, struck Mr. Mullard at the same moment. When on the ground he was kicked by Salmon in the mouth. No one but the wardsman, another prisoner, came to

poor Mullard's assistance; but this man acted with great spirit, and it was mainly owing to his prompt interference that the machine-keeper escaped with his life.

At the moment the attack was made all the other officers were at a distance. One warder said he saw Mr. Mullard fall, but thought it was accidental, and that the prisoner Salmon had stooped over to pick him up. However, when the other prisoners crowded round, shouting, "Give it him! Give it him! Lay on," this warder, perceiving their evil intentions, took to his heels—to get assistance, for he afterwards indignantly disclaimed all idea of quitting the yard through personal apprehension. At the tower he found the taskmaster coming out cutlass in hand; Rogan, the warder, got one also, and both hurried back to the yard. Smith, the wardsman, was fighting with Crouch, and Mr. Mullard, who had got again to his feet, with Salmon; the other prisoners looking on, being, as they afterwards asserted, afraid to stir, "particularly after seeing the warder, Rogan, run away." Crouch now came at the taskmaster "with fury in his looks;" upon which the latter drew his cutlass and warned him to stand off, and then both Crouch and Salmon were secured. There was no doubt the greater part of the prisoners were concerned in this mutiny, for although Mullard called aloud for assistance, not a soul but Smith, the wardsman, stirred a finger to help him. These miscreants were subsequently tried at the Old Bailey, and sentenced to increased imprisonment.

Not long after this the new Act, authorizing the committee to flog for aggravated misconduct, was passed, and then a clearance was made of the worst subjects by sending them from the Penitentiary to the hulks. This was really yielding to the prisoners. But it gained a certain lull of peace within the walls—no slight boon after the disturbances, and it was hoped that the new powers of punishment would check any further outbreak amongst those who remained.

CHAPTER V

SERIOUS DISTURBANCES

Irregularities continued—Intrigues between male and female prisoners—Women conspire to be removed—Their unceasing misconduct—Plot to murder the Matron—Renewed trials of Governor—A number of suicides—A serious assault—First flogging under new Act—One hundred and fifty lashes inflicted—An effectual warning—Assaults checked.

IRREGULARITIES of an entirely new character appeared at Millbank after the exodus of the worst-behaved had taken place. An intrigue was discovered to have been in progress for many months, between the women in the laundry and certain of the male prisoners. This had not gone further than the interchange of correspondence, but its existence is in some respects a proof of the laxity of the discipline maintained in the Penitentiary. It was customary to make up the clothes of the male prisoners sent to the wash in kits, or small parcels, which were opened in the laundry by a female prisoner, called the "kitter." One day the kitter, by name Margaret Woods, found among the clothes a slip of paper—a prayer-book leaf—on which some man had written that he came from Glasgow, and that he hoped the women were all well. Woods not being able to read, showed it to another woman, who showed it to a third, a Scotch girl, Ann Kinnear, who came also from Glasgow. "Yes," she said, "I know him well. It's John Davidson—a very nice young man; and if you won't answer it, I'll write myself." The acquaintance, on paper, soon deepened between Kinnear and Davidson. One of her tributes of affection was a heart, which she worked with gray worsted on a flannel bandage belonging to Davidson. At another time she sent him a lock of her hair.

It is easy to understand the flutter throughout the laundry caused by this flirtation, which was known and talked of by all the women. They were all

eager to have correspondents, having husbands “outside” being no obstacle seemingly; nor was age, for an old woman, with grown-up children, entered herself as eagerly as the girls barely in their teens. John Davidson was in all cases the channel of communication. He promised to do his best for each of his correspondents: to find out a nice sweetheart for Mary Ann Thacker, and to tell Elizabeth Trenery how fared her friend Combs, with whom she had travelled up from Cornwall. He expressed his regret to his own friend Kinnear, that he was likely soon to be set at large; but that before going he would “turn her over” to another nice young man, in every way similar to himself. How long this clandestine intercommunication might have continued, it would be difficult to say; but at length the wardswoman came to know of it, and she instantly reported it to the matron. One fine morning the whole of the kits were detained, and a general search made in the tower. Several letters were discovered. They were written mostly with blue ink made of the blue-stone used for washing, and contained any quantity of rubbish: questions, answers, gossips, vows of unalterable affection, promises to meet “outside” and continue their acquaintance.



Millbank Penitentiary

The name of Jeremy Bentham is forever associated with Millbank Penitentiary. In his plans for its erection nearly a century ago he anticipated exactly the modern methods of to-day. During the time that Millbank was used as a prison, nearly a century, among the inmates were many notorious rogues and criminals. As a reformatory it was not a success, but the expensive experiment served as a lesson to the government and it paved the way for the model prison of to-day.

All this of itself was harmless enough, the reader may say: and such it would have been undoubtedly in a boys' school next door to some seminary for young ladies, in the suburbs; but it was hardly in accordance with the condition of prisoners, or the seclusion that was a part of their punishment. And no sooner was this intrigue detected, and put an end to, than another of similar character was discovered between the male convicts in the kitchen and certain maid-servants kept by the superior officers. The steward on searching the kitchen drawer of his housemaid—it does not appear what led him to ransack the hiding-places of his servants' hall—found a letter addressed to the girl by the prisoner named Brown. Brown, when taxed with it, admitted the letter, but declared that the first overtures had come from the maid. He had been cleaning the steward's door-bell, when this forward young person nodded to him from the passage, and he nodded back. At the same time another prisoner was caught at the same game with the female servant of the resident surgeon. On searching the prisoner-cooks a letter from the girl was found in this man's pocket, and a lock of long hair, neatly plaited. The first-mentioned girl had not confined her smiles to Brown, for in her possession was another letter from John Ratcliffe, a prisoner who had been working in the starching yard close by the steward's quarters. Betsy S., the surgeon's second maid, had become also the object of the affections of a prisoner named Roberts, who had thrown a letter to her through the open window. But Betsy would not encourage his advances, and took the letter at once to her master. Moreover the chaplain's maid was always at her kitchen window, making signs.

The chief lesson to be learned from these nefarious practices is, that it is a grave error to permit officers and their families to reside within the walls of a prison. In the old constructions the "gaoler's" house was always placed in the very centre of the buildings, from whence he was supposed to keep a watchful eye on all around. But the gain was only imaginary; and even if there had been any advantage it would have been more than nullified by the introduction of the family, or unprofessional element, within the walls. A prison should be like a fortress in a state of siege: officers on duty, guards posted, sentries always on the alert, every one everywhere ready to meet any difficulty or danger that may arise. No "free" person should pass the gates but officials actually on duty inside. In this way the modern practice of placing all residences and private quarters in close proximity to, but outside, the prison is a distinct improvement on the old. By it the moral

presence of the supreme authority with his staff is still maintained, and no such irregularities as those I have just described could possibly occur.

So far I have made but little reference to the female convicts. Indeed, during the first years after the reopening of the Penitentiary, except in isolated cases, they appear to have conducted themselves quietly enough. But the contagion from the male pentagons could not but spread, sooner or later. The news of the removal of the worst men to the hulks no doubt acted as a direct incitement to misconduct. Had not this power of removal been accompanied, in the case of the males, with authority to inflict corporal punishment, we should have seen a great and continuous increase of the riotous disturbances described already. A certain number, it is true, had gained their ends; but if those who remained were ambitious to tread the same path, it was possible that sound flogging would be tried before removal to the hulks. With the women it was different—they could not be flogged, so they had it much their own way. It was the same then as now: the means of coercion to be employed against females are limited in the extreme, and a really bad woman can never be tamed, though she may in time wear herself out by her violence. We shall see more than one instance of the seemingly indomitable obstinacy and perversity of the female character, when all barriers are down and only vileness and depravity remains.

Long before the women broke out into open defiance of authority there were more than rumours that all was not right in the women's pentagon. "Irregularities are on the increase there," observes the governor in his journal. The object of the agitation was no secret. The women wanted to get away from the Penitentiary as the men had done. One having abused a matron in the most insolent terms, swore, if not sent at once to the hulks, or abroad, she would have some one's life. Another sent for the governor, saying she had something particular to confide to him. "Well?" asked Captain Chapman. "You must send me to the hulks or to New South Wales," she answered. Other women made the same request, pleading that they had not a friend on earth, and when released they must return to their old vicious courses. "I told them," says the governor, "they could only be sent to the hulks when they were incorrigible, and to qualify for that they must pass months in the dark. Then I exhorted them to return to their work and better thoughts." But they both at once flatly refused either to work or

to think better of it, demanding to be sent immediately to the dark, a wish which was gratified without further delay.

It now appeared evident that the discipline of the female side was most unsatisfactory, and there had been great remissness on the part of the officers. It was discovered, too, among other things, that the religious exercises had been greatly neglected: the reading of the lesson in the morning service in the wards had been “either shamefully slurred over, or neglected altogether.” For this, and other omissions, the visitor assembled the matrons in a body, and lectured them in plain terms.

That very afternoon occurred the first real outbreak. All at once the whole of one of the wards was found to be in an uproar. The shouts and yells of the women could be heard all over the prison, and for a great distance beyond. The disturbance arose in this wise: there had been great misconduct that morning in chapel, but the offenders had eluded detection, as they thought; therefore when the matron reprimanded them, they concluded that one of their number had “rounded” or “put them away,”—in other words, had turned informer. Elizabeth Wheatley was suspected, and upon her the whole of her companions fell, tooth and nail, when let out for exercise. It was with the utmost difficulty she was rescued from their clutches. Then the ringleaders, having been again confined to their cells, commenced a hideous din and continued it for hours.

Soon after this a violent attack is made upon the chief matron: a woman assaults her, and deals her a blow that makes her nose bleed. This is the signal for a general disturbance. All the ward join in the uproar: those not under lock and key crowd round the matron with frightful yells and imprecations, and from those in their cells, come shouts through the bars, such as “Give it her! give it her. I’d make a matron of her, if I was out. I’d have her life.” The unfortunate officer is only saved from serious injury by the prompt interposition of the wardswoman, a well-conducted prisoner; the excitement now becomes tremendous.

Let us look at a scene enacted in another part of the prison on that very same evening. It is towards dusk in the “Long Room,” where there are beds for nearly forty. Half a dozen women, unattended by a turnkey, are discussing the topics of the day. One, Nihill, is lamenting in bitter terms the want of pluck exhibited by the others. None of the women were “game,” she said. She was ready to do anything, but none of the others would give

her a helping hand. There were men in the prison, too, who were willing and able to join in a mutiny if they only got a lead. It might be done in chapel, where the whole of the population of the Penitentiary collected together twice a day for prayers. At this moment comes a new arrival, bearing the news of the murderous assault upon the matron, to which reference has been already made.

“How many were in it?” Nihill asks, she being the leading malcontent of those mentioned above.

“Five.”

“That’s three too many. I wish I’d been there. Wait till I get my green jacket,^[3] I’ll carry a knife, and I’ll stick it into her.”

“She’s a brute,” adds another. “I’d serve her so too.”

Here a woman interposed on the other side and a fierce quarrel ensued and there was a hand to hand fight. The other prisoners gave the alarm; assistance arrived; and the combatants were secured and carried off to the dark cells.

The next affair occurred at school time. A prisoner, Smith, was checked by the matron for quarrelling with the monitress, whereupon Smith, seizing her stool, swore she would make away with the matron. Two other prisoners came to the rescue, and, pushing the matron into a cell close by, got in with her, and pulled the door to. Smith in a fury raced after them, but the cell gate was locked before she arrived, and she had to be satisfied with the grossest abuse from the further side. But Sara Smith was now mistress of the ward, and ranged up and down with uplifted stool, and fury in her looks, till the governor, bold Captain Chapman, came to the spot with his patrols, and she was, with some difficulty, overpowered.

So determined were the women to misconduct themselves, that they took in bad part the advice of the few who were well-disposed. When one Mary Anne Titchborne begged her companions to behave better, they turned at her *en masse*, pursuing her to her cell with horrid threats, brandishing their pattens over their heads, and swearing they would have her life. The following feminine feat at first sight appeared most extraordinary. One of the female prisoners, it was declared, had in the night jumped out of her window, on the second floor, into the airing-yard below, a height of seventeen feet; and the governor, who visited her about 7 A.M., four hours after the accident, found her sitting in her cell again, quietly at work, and

“with the exception of a sprain, or a contusion of the fingers of the right hand, quite unhurt.” According to this woman’s story, she determined to take her life about ten o’clock and threw herself out of her window. “It seems incredible,” remarks Captain Chapman, “that she could have effected this, as the sash of the window opens from the bottom with the hinge, forming thus an acute angle—in fact a V—having an aperture about ten inches wide. Not a single pane of glass was broken, and Miller, for all her fall, was unhurt, beyond a scratch or two upon her fingers.” Miller when questioned further stated that on reaching *terra firma* she was at first quite stunned. By and by she got up and walked about the yard for several hours; then, finding it cold, she returned to her ward, which she accomplished easily, as all the external doors and passage gates had been left unlocked. This carelessness with reference to “security” locks, as they are called, or the gates that interpose between the prisoners and fresh air, might easily make the hair of a modern gaoler stand on end; and even the considerate Governor Chapman was forced to reprimand the matrons for this gross neglect of duty. A little later Miller confessed her fraud. After school at night, she had managed to secrete herself in an unoccupied cell. No one missed her; and about eleven, coming out, she commenced to wander up and down the ward, going from cell to cell knocking.

“Who’s there?”

“Miller.”

“Where have you come from?”

“I have jumped out of the window, and got back through the gates, which were left open.”

“Go back to your cell, for goodness’ sake.”

“I can’t get in, the door is locked.”

“Call up the matron then.”

“I daren’t.”

Such was the conversation overheard by others. About three o’clock, Miller could stand it no longer, and woke the matron of the ward.

One other case of misconduct among the females which occurred some months afterward may be mentioned here. This was the discovery of a conspiracy which at first sight seemed of rather serious dimensions. Its apparent object was to murder the chaplain, the matron, and a female officer

named Bateman, all of whom had incurred the rancour of certain of the worst prisoners. One day in chapel an officer noticed much nudging and winking between two or three of the women, one of whom afterwards came up to her, as she stood by the altar rails, and said, "There's a conspiracy going on."

"Where?" asked the matron.

"In a bag."

"A bag? Who's got it?"

"Jones."

And in effect, upon Jones was found a bag of white linen, six inches by four, and inside it a strip of bright yellow serge, such as the "first class" women wore. On this yellow ground was worked in black letters, as a sampler might be, the following:—

"Stab balling (bawling) Bateman, dam matron too, and parson; no justis now, may they brile in hell and their favrits too. God bless the governor; but this makes us devils. Shan't care what we do—20 of us sworn to drink and theve in spite—get a place—rob and bolt. Make others pay for this. Shan't fear any prison or hel after this. Can't suffer more. Some of us meen to gulp the sakrimint, good blind: they swear they'll burk the matron when they get out, and throw her in the river. No justis. Destroy this. No fear. All swer to die; but don't split, be firm, stic to yor othe, and all of ye, stab them all. Watch yor time—stab am to the hart in chaple; get round them and they can't tell who we mean to stab."

This bag was akin somewhat to the mysterious *chuppaties*, which were the forerunner of the Indian Mutiny. It was passed from hand to hand, each prisoner opening, reading, and then sending it on. Jones, on whom it was found, declared she had picked it up in the passage. She was lame, and returning from exercise had put her crutch on something soft. "Why, here is some one's swag," she cried, and thereupon became possessed of it. But she had intended to give it up to the matron; "Oh yes, directly she had read it." However, another prisoner forestalled her, and Jones got into trouble. Then, with the instinct of self-preservation, which is stronger, perhaps, among prisoners than in other human beings, Jones "rounded" at once, in other words, gave full information of the plot. Hatred of the matron was at the bottom of it.

This great conspiracy was of a piece with many such plots in modern experience—mere empty threats and rank bombastic talk. Prisoners are very fond of bragging what they mean to do, both inside and outside when again free. In the present case there was supposed to be much more in store for the matron than the actual assault with which they threatened her. One of the conspirators swore that if she (the matron) escaped now, later on vengeance should overtake her. “As soon as I’m free I’ll do for that cat of destruction. I’ll send her first a dead dog with a rope round its neck, made up into a parcel. That’ll frighten her. Curse her, I’ll give her a bitter pill yet. If it’s ten years hence, I’ll never forget her. I’ll watch her, and track her outside; and I have friends of the right sort that’ll help me.” But threatened men and women live long, and nothing much happened to the matron then or afterwards.

Let us now return to the male side. Here the worries and annoyances of the governor were still varied and continuous. Hardly had misconduct in one shape succumbed to treatment, than it broke out in another. Many attempts to escape—one of which, to be detailed hereafter, went very near complete success; a couple of very serious assaults, and a fresh suicidal epidemic, still kept his energies on the stretch. It was his practice, as we know, to give his immediate attention to anything and everything, as soon as it occurred; and although he must now have been alive to the preponderance of imposture in the attempts prisoners made upon their own lives, still so kindhearted a man could not but be greatly exercised in spirit, whenever the suicides seemed of a *bonâ fide* nature.

The following case called at once for his most anxious interference. One Thomas Edwards was reported to have it in contemplation to do himself a mischief. Another prisoner detected him in the act of concealing a piece of hammock lashing in his bosom, gave information, and the halter was seized at once by the officer in charge. It was found to be nearly two yards in length. In Edwards’ pocket was also a letter, an old letter from his brother, across which in red chalk was written:

“To Captain Chapman. The last request of an innocent, and injured man is, that this note may be delivered to a much loved brother.

“I can no longer bear my unfortunate situation. Death will be a relief to me, though I fain would have seen you once more; but I was fearful it might

heighten your grief. The privations of cold and hunger, I can no more suffer. I now bid you an eternal farewell. God forgive me for the rash act I am about to commit—the hour is fast approaching when I must leave this troublesome world. Write to my dear sister, but never let her know the truth of my end, and comfort her as well as you can. God forgive me.

Farewell for ever,

Farewell.”

“I immediately sent for Edwards,” says Captain Chapman in his journal. “He appeared much distressed. The tears rolled down his cheeks, but he would not speak. I said everything I could think of to soothe and console him, and had him taken by the surgeon to the infirmary.” The case seemed to require full investigation, which it received; and the result is recorded a little further on by the governor. “It appeared that up to two or three days before he had been remarkably cheerful. But one day some extra soup had disagreed with him, after which he hardly spoke, not even to his partner with whom he walked in the yard.” Then, when he thought he was unobserved, he had secreted the hammock lashing which was to put an end to his wretched existence.

Bile or indigestion have doubtless driven many to desperation; but though the saying is common enough, that life under such afflictions is barely worth having, actual cases of suicide from stomachic derangements are comparatively rare. Perhaps the soup story opened the governor’s eyes a little to the prisoner’s real character, and then, later on, a second detection of fraud proved beyond doubt that Edwards was an impostor.

He was caught in a clandestine correspondence with his relatives outside, and for this he was transferred to “the dark.” Fifteen minutes afterwards they find him suspended from the top of his cell gate by his pocket handkerchief. They cut him down at once. He pretends to be unable to speak, yet it is clear that he has not done himself the slightest injury. Nevertheless, to keep him out of mischief, he is removed to the infirmary and put into a strait jacket. To escape from this restraint he embarks upon a new line of imposture. He sends an urgent message to the chaplain, having, as he asserts, a weighty sin upon his conscience, which he wishes at once to disclose.

“Some four years ago, sir, I murdered a young woman. She was the one I kept company with. I was jealous. I threw her into the New River. Sir, I have never had a happy moment since I committed the deed. My life is a burthen to me; and I would gladly terminate it upon the scaffold.”

“Are you quite sure you are telling me the truth?” the chaplain asks.

“The truth, sir—God’s truth. If I am not, may I,” etc.

He detailed the circumstances of the murder with so much circumstantiality that it was thought advisable to take all down in writing, so as to make full inquiry; but both governor and chaplain were “fully convinced that the prisoner had fabricated the whole story in the hopes of getting himself removed to Newgate.” No sort of corroboration was obtained outside, of course, and by and by the matter dropped. I have merely quoted this as a sequel and commentary upon the conduct of Edwards, proving that he was clearly an impostor from first to last.

But not long after this a fatal case occurred. The suicide was a man long suspected of being wrong in his head. Early one morning he was found hanging to the cross beam of his loom, from the framework of which he had jumped, and thereby dislocated his neck. It appeared on inquiry, that the mental derangement of which this man showed symptoms had been kept quite a secret from the governor and medical officer; so also had his frequent requests to see the chaplain; and the officer in charge of the ward was very properly suspended from duty “for culpable neglect, as probably, with timely interference, the prisoner’s life might have been saved.” But whether it might or might not, the news of his death spread rapidly through the prison, and from having occurred but rarely, real or feigned suicides became again quite the fashion. The gossip of an incautious matron took the intelligence first into the female pentagon. That very evening, after the women had been locked up, one yelled to another in the next cell that she meant to hang herself directly, and had a rope concealed, which she dared any one to discover. This woman was made safe at once; but next morning another was found tied up by her apron to the pegs of the clothes rack behind her cell door. She had failed to come out with the rest to wash, and as the officers approached to examine her cell they heard a noise of groaning within. A sort of feeble barricade had been made by the prisoner, with her mattress and pillows, to prevent entrance; but the door was easily opened, and behind it hung Hannah Groats by the neck, to one peg, while

she carefully kept herself from harm by holding on by her hands to the two pegs adjoining. She was instantly taken down, when it was seen that she had not sustained the slightest damage. She had, of course, chosen her time just when she knew the cell doors were about to be opened, and she was sure to be quickly discovered.

Next the men took up the contagion. One announced that unless he be removed without delay from the cell he occupied he should forthwith make away with himself, as he was tired of life. "He appeared so much dejected, and spoke with such apparent earnestness, that I ordered him to the infirmary," says the governor. Another man writes on his slate that the authorities treat him with such severity, he shall certainly commit suicide. He is seen at once by both chaplain and governor, but continues "dogged and intractable." Then a certain impudent young vagabond, notorious for his continual misconduct, is found one morning seated at his table, reading the burial service aloud from his prayer-book, and sharpening his knife on a bit of hearth-stone; a woman is discovered with a piece of linen tied tightly round her neck, and nearly producing strangulation; men, one after another, are found suspended, but always cut down promptly, and proved unhurt in spite of pretended insensibility: cases of this kind really occurred so frequently, that I should fill many pages were I to recount a tithe of them.

I will describe the first instance in which it was found necessary to inflict corporal punishment in Millbank, which was as a punishment for a brutal assault. One of the prisoners, David Sheppard, checked mildly by his officer for walking in his wrong place, replied, "I'll walk as I have always done, and not otherwise."

"You must walk with your partner."

"What is that you say? I'll partner you," exclaimed Sheppard most insolently; an answer that is conclusive evidence as to the sort of discipline maintained in the prison.

The officer made no further remark, but walked away to unlock a gate. Sheppard followed him quickly, and without the least notice, struck him a tremendous blow behind the ear, striking him again and again till other officers came to the victim's assistance. Many of the prisoners cried "Leave off!" but none offered to interfere. As soon as the prisoner had been secured, he was carried before the governor. The assault was brutal and unprovoked, and seemed to call for immediate example. Under the recent

Act, it had become lawful to inflict corporal punishment in serious cases, and now for the first time this power was made available. The prisoner Sheppard was sent to the Queen's Square police office, and arraigned before the sitting magistrate, who sentenced him forthwith to "one hundred and fifty lashes on the bare back." The whole of the prisoners of the D ward, to which Sheppard belonged, were therefore assembled in the yard, and the culprit tied up to iron railings in the circle. "Having addressed the prisoner," says the governor, "on this disgraceful circumstance, I had one hundred lashes applied by Warder Aulph, an old farrier of the cavalry, and therefore well accustomed to inflict corporal punishment, who volunteered his services. The surgeon attended, and he being of opinion that Sheppard had received enough, I remitted the remainder of his sentence, on an understanding to that effect with Mr. Gregory (the sitting magistrate). The lashes were not very severely inflicted, but were sufficient for example. Sheppard, when taken down, owned the justice of his sentence, and, addressing his fellow-prisoners, said he hoped it would be a warning to them. He was then taken to the infirmary." A strong force of extra warders was present to overawe the spectators; but all the prisoners behaved well, except one who yelled "Murder" several times, which was answered from the windows above, whence came also cries of "Shame." Another, who had been guilty some months before of a similar offence, witnessed the operation. It affected him to tears. "He was much frightened, and promised to behave better for the future."

It is impossible to read this account of the infliction of what seemed a highly necessary chastisement without noticing the peculiar sensitiveness of the prison authorities on the subject. In these days there are crowds of thin-skinned philanthropists, ever ready to loudly rail against the use of the lash, even upon garroters and the cowards who beat their wives. But in the time of which I am writing—in 1830 that is to say, when soldiers, for purely military offences, were flogged within an inch of their lives, and the "cat" alone kept the slave population of penal colonies in subjection—it is almost amusing to observe what a coil was raised about a single instance of corporal punishment. Were proof required of the exceeding mildness of the rule under which Millbank was governed, we should have it here.

Between this and the next assault there was a long interval. But after a little more than twelve months had elapsed, the ferocity of these candidates for reformation again made itself apparent. This time it was a concerted

affair between two prisoners who fancied themselves aggrieved by the stern severity of their officer, Mr. Young. These men, Morris and King, had been reported for talking to each other from cell to cell. Next day both were let out to throw away the water in which they had washed. They met at the trough, and recommenced conversation which had been interrupted the day before.

“At your old tricks, eh?” cried Mr. Young. “I shall have to report you again.”

“You lie, you rascal,” shouted Morris, suddenly drawing a sleeveboard which he had concealed behind his back. Holding this by the small end with both hands, he aimed several tremendous blows at Mr. Young’s head, which the latter managed to ward off partly, with his arms. But now King, armed with a pewter basin in one hand and a tailor’s iron in the other, attacked him from behind. Soon Mr. Young’s keys were knocked away from him, and he himself brought to the ground. However, he managed to regain his legs, and then made off, closely pursued by his assailants, who, flourishing their weapons and smashing everything fragile in their progress, drove him at length into a corner, got him down, beat him unmercifully, and left him for dead, King throwing the basin behind him as a parting shot.

Mr. Young’s cries of “Murder!” had been continuous. They were re-echoed by the shouts of the many prisoners who, standing at their open cell doors, were spectators of the scene. One man, Nolan, climbing up to his window, gave the alarm to the tower below. Assistance soon arrived—the taskmaster followed by two others, who met first Morris and King as they were returning to their cells. “What has happened?” they asked. “I haven’t an idea,” Morris replied coolly. King, too, is equally in the dark. The officers pass on and come to other cells, in which the prisoners are seen grinning as if in high glee, and when questioned they only laugh the more. But at length Nolan is reached. “Oh, sir,” says Nolan at once, through the bars of his gate, “they’ve murdered the officer, Mr. Young, sir. There lie his keys, and his body is a little further on.” At this moment, however, Mr. Young is seen dragging himself slowly towards them, evidently seriously injured and hardly able to walk. He just manages to explain what has happened, and as the governor has by this time also arrived, the offenders are secured and carried off to the refractory cells.

Here was another case in which a prompt exhibition of the “cat” would probably have been attended with the best results. But for some reason or other this course was not adopted; the prisoners Morris and King were remanded for trial at the next Clerkenwell Assizes, where, many months afterwards, they were sentenced to an additional year’s imprisonment. So far as I can discover, in these times the power to inflict corporal punishment in the Penitentiary was very sparingly employed. No other case beyond that which I have just described appears recorded in the journals till some four years afterwards, in 1834, when a prisoner having attacked his officer with a shoe frame, the sitting magistrate ordered him to be flogged with as little delay as possible. For this purpose the services of the public executioner were obtained from Newgate, and one hundred out of the three hundred lashes ordered were laid on “not very severely.” A large gathering of the worst behaved prisoners witnessed the punishment; but all were very quiet. “Not a word was spoken, though many were in tears.” “I fervently hope,” says Captain Chapman, “that this painful discharge of my duty may be productive of that to which all punishment tends—the prevention of crime.”

CHAPTER VI

A NEW REGIME

Present system faulty everywhere—Reforms contemplated—Too great intercourse among prisoners condemned—Labour for the spiritual welfare of the prisoners becomes a leading idea—Unwearied zeal and activity of the chaplain—Succeeded by Mr. Nihil who combines the offices of chaplain and governor—Admonition and persuasion are the leading principles of the new Penal Discipline—The chaplain-governor's difficulties and vexations.

WE now come to another stage in the onward career of the Penitentiary. The committee, compelled to admit that the discipline was not sufficiently severe, resolved to tighten the reins. In order to understand this decision we must take into consideration certain influences at work outside the walls.

There was, about this time, a sort of panic in the country at the alarming prevalence of crime in England. Its continuous and extraordinary growth was certainly enough to cause uneasiness. In the years between December, 1817, and December, 1831, it had increased one hundred and forty per cent. For this there was more than one reason, of course. One, and no insignificant cause, was the comparative immunity enjoyed by offenders. It came now to be understood that the lot of the transgressor was far from hard. The system of secondary punishments in force for their correction was felt to be inadequate, either to reform criminals or deter from crime. Here was an explanation: evidently a screw was loose in the way in which the sentence of the law was executed. The judges and the juries did their duty, but the criminal snapped his fingers at the ordeal to which they subjected him. This discontent with the system of imprisonment grew and gained strength, till at last the whole question of secondary punishments was referred to a Select Committee of the House of Commons.

All prisoners found guilty of non-capital crimes were at that time disposed of by committal for short periods to the county gaols and houses of correction, or they were sentenced to transportation for various terms of years. Those whose fate brought them within the latter category were further disposed of, according to the will of the Home Secretary, in one of three ways: either, by committal to Millbank Penitentiary; or, by removal to the hulks; or, finally, by actual deportation to the penal colonies beyond the seas. There were therefore four outlets for the criminal. How he fared in each case, according as his fate overtook him, I shall describe hereafter.

The county gaols were in these days still faulty. They made no attempt to reform the morals of their inmates, nor could they be said to diminish crime by the severity of their discipline. Indeed, they held out scarcely any terrors to offenders. Of one of the largest, Coldbath Fields, Mr. Chesterton, who was appointed its governor in 1829, speaks in the plainest terms. "It was a sink of abomination and pollution. The female side was only half fenced off from the male—evidently with an infamous intention; its corrupt functionaries played into each other's hands to prevent an inquiry or exposure. None of the authorities who ruled the prison had acquired any definite notion of the wide-spread defilement that polluted every hole and corner of that Augean stable. Shameless gains were promoted by the encouragement of all that was lawless and execrable." The same writer describes Newgate, which he visited, as presenting "a hideous combination of all that was revolting." The thieves confined therein smoked short pipes, gamed, swore, and fought through half the night: the place was like a pandemonium. Again, when he saw them, "The prisons of Bury St. Edmund's, Salford, and Kirkdale created in my mind irrepressible disgust. I wondered why such detestable haunts should be tolerated." Gaolers and criminals were on the best of terms with each other. At Ilchester the governor was in the habit of playing whist with his prisoners, and at Coldbath Fields the turnkeys shook hands with new arrivals and promised to take "all possible care" of them. With all this there was such a deficiency of control that unlimited intercourse could not be prevented, and there followed naturally that corruption of innocent prisoners by the more depraved which was a bugbear even in the time of John Howard.

Indeed, it was a wonder that Howard did not rise from his grave. Half a century had elapsed since his voice first was heard, and yet corrupt practices, idleness, and wide-spread demoralization characterized the

greater part of the small prisons in the country. Herein were confined the lesser lights of the great army of crime, and if they escaped thus easily, it could not be said that the more advanced criminals endured a lot that was much more severe. The reader has, perhaps, some notion by this time of the kind of punishment to be met with in the walls of the Penitentiary; the hulks, too, have already been mentioned. The third method of coercion, by transportation, that is to say, beyond the seas, remains to be described; but this I reserve for a later page, recording only here the opinion of the committee of 1831, that as a punishment transportation held out to the dangerous classes absolutely no terrors at all. "Indeed, from accounts sent home, the situation of the convict is so comfortable, his advancement, if he conducts himself with prudence, so sure, as to produce a strong impression that transportation may be considered rather an advantage than a punishment."

After a long and careful investigation, the committee wound up their report with the following pregnant words: "Your committee having now passed in review the different modes of secondary punishment known to the practice of this country, wish once more to direct the attention of the House to their obvious tendency. If it is a principle of our criminal jurisprudence, that the guilty should escape rather than the innocent suffer, it appears equally a principle, in the infliction of punishment, that every regulation connected with it, from the first committal of a prisoner to gaol to the termination of his sentence of transportation, should be characterized rather by an anxious care for the health and convenience of the criminal than for anything which might even by implication appear to bear on him with undue severity."

The authorities at Millbank now wished to set their house in order. With the publication of this parliamentary report, the managers of Millbank awoke all at once to the true condition of the prison. On account of the repeated "irregularities" laid before them, they now considered it necessary to ascertain whether any, and what abuses existed; and whether there were any and what defects in the system upon which the prison was conducted. The whole subject was therefore entrusted to a sub-committee, which, after some months of patient investigation, was of opinion that all the irregularities arose from "the too great intercourse which the present system permits prisoners to hold with one another. The comparatively ignorant are thus instructed in schemes and modes of vice by the hardened and the

depraved; and those upon whom good impressions have been made are ridiculed and shamed out of their resolutions by associating with the profligate." We have here an admission that one of the old evils of prison life—indiscriminate association—which was to have been abolished by the Penitentiary system, was still in full vigour, and that in fact it had never been interfered with.

The committee arrived therefore at the conviction "that the prosperity and well-being of the establishment must depend upon effecting a more strict seclusion of the prisoners, one from another." At the same time a new chaplain, Mr. Whitworth Russell, who became largely identified with prisons and penal discipline, urgently recommended a greater development of religious instruction. He proposed that in future the open part of the Millbank chapel should be provided with benches, so that he might assemble daily, large classes for religious instruction. To these classes he was to devote three hours every morning, the schoolmaster performing the same duty in the afternoon. During the morning instruction by the chaplain this schoolmaster had to visit the prisoners, cell by cell, either collecting information, as to the previous habits and connections of the prisoners, or carrying on the instruction commenced at school or the lectures in chapel. In this we find the key-note of the new system that was from now on to prevail with increasing strength, till by and by, as we shall see, it grew to be altogether supreme.

Never since the opening of Millbank, in 1817, had the spiritual welfare of the prisoners been forgotten, nor the hope abandoned of reforming them by religious influences. But now, and for years to come, the chaplain was to have the fullest scope. Whether much tangible benefit followed from his increasing ministrations, will be best shown in the later development of the narrative; but it cannot be denied that the efforts of Mr. Whitworth Russell, and of his successor, Mr. Nihil, who in himself combined the offices of governor and chaplain, were praiseworthy in the extreme. Speaking, however, with all due reverence, I cannot but think that their zeal was often misdirected; that conversion, such as it is, obtained by force almost, could never be either sincere or lasting; and in short, that the continued parade of sacred things tended rather to drag them into the mire, while the incessant religious exercises—the prayers, expositions, and genuflexions, were more in keeping with a monastery of monks than a gaol full of criminals.

There are numberless instances scattered up and down among the records of the sort of spirit in which the prisoners received their sacred instruction. It was the custom for a monitor, specially selected from among the prisoners, to read aloud the morning and evening service in each ward. He was frequently disturbed. Once when Balaam's name appeared in the lesson, it was twisted into "Ba—a—Lamb!" and as such went echoing along with peals of laughter from cell to cell. The monitor was frequently called upon for a song just before he gave out the hymn; others mocked him as he sang, and sang ribald verses so loud as to drown the voices of the rest; many said they couldn't sing, and nothing should compel them; often they would not join in the Lord's Prayer—there was no law, they said, to make them say their prayers against their will. Then a certain Joseph Wells, an old offender, was reported for writing on his pint cup these lines:—

"Yor order is	but mine is
for me to go	that I'll go to
to chapel,	Hell first";

and when remonstrated with, he merely laughed in the governor's face. There was constant antagonism between the prisoners and their comrade the monitor, generally over the church catechism, in which, as a species of chaplain's assistant, the latter had to instruct the others. "What's your name?" he asked one. "George Ward; and you know it as well as I do," replied the prisoner. Another read his answers out of the book. The monitor suggested that by this time he ought to know the catechism by heart. "Ah, every one hasn't got the gift of the gab like you have. And look here, don't talk to me again like that, or you'll be sorry for it." Again, as a proof of the glibness with which they could quote scriptural language, I must insert here a strange rhapsody found on a prisoner's slate. He pretended to be dumb, and when spoken to, he merely shook his head and pointed to the writing, which was as follows:

"MY KIND GOVERNOR,—I hope you will hearken unto me, as your best friend; in truth I am no prophet, though I am sent to bear witness as a prophet. For behold my God came walking on the water, and came toward me where I stood, and said unto me, Fear not to speak, for I am with you.

Therefore I shall open my mouth in prophecies, and therefore do not question me too much; but if you will ear my words, call your nobles together, and *then* I will speak unto you of all he has given me in power, and the things I shall say unto you shall come to pass within 12 months; therefore be on your guard, and mind what you say unto me, for there be a tremor on all them that ear me speak, for I shall make your ears to tingle. And the first parable I shall speak is this: Behold, out of the mire shall come forth brightness against thee.”

This man, when brought before the governor, continued obstinately dumb. The surgeon consulted was satisfied he was shamming, but still the prisoner persisted in keeping silence. “Is there any reason why he should not go to ‘the dark?’” the surgeon was asked. “Certainly not; on the contrary, I think it would be of service to him,” answered the surgeon; and to the dark he was sent, remaining for six days, till he voluntarily relinquished the imposture.

The energy and determination of the new chaplain, who was appointed about the time the new system was established, were very remarkable. He was a man of decided ability, and his influence could not fail to be soon felt throughout the prison. Perhaps in manner he was somewhat overbearing, and disposed to trench on the prerogative of the governor as to the discipline of the establishment. He soon came into collision with the prisoners. Many “tried it on,” as the saying was, with him, but signally failed; and any who were guilty of even the slightest disrespect were immediately punished. Mr. Russell constantly reported cases of misconduct. Thus, having asked at school, whether any present had been unable to write on coming into prison, a man named Fleming, answered, “Yes! I could not.”

“You have every cause to be thankful, then, for the opportunities afforded you here.”

“Not at all,” replied Fleming. “I have reason to curse the Penitentiary and everybody belonging to it.”

“Be silent,” said the chaplain, “I shall not stand by and listen to such reprehensible language.”

“I’ll not be gagged, I shall speak the truth,” persisted Fleming.

And for this without loss of time he was transferred to the dark.

All the chaplain's professional feelings were also roused by another incident that transpired not long after his arrival. It was discovered that a prisoner, George Anderson, a man of colour, who had been educated at a missionary college, had through the connivance of a warder been endeavouring to sow the seeds of disbelief in the minds of many of the prisoners. He had turned the chaplain and his sacred office into ridicule, asserting that the services of the Church of England were nonsense from beginning to end, that the prayers contained false doctrine, that the Athanasian Creed was all rubbish, and that the church "went with a lie in her right hand." This man Anderson must have been a thorn in the chaplain's side, for they had more than once a serious scuffle in the polemics of the church. Mr. Russell got warm in the discussion of a certain passage in Scripture, and jumping up suddenly to reach his Bible, struck his leg against the table. After this Anderson had drawn a caricature of the scene, writing underneath, "Oh, my leg!" and from henceforth the chaplain went by the name of "Oh, my leg." At another time there was a long dispute as to the date of the translation of the Septuagint, and upon the service for "the Visitation of the Sick." Anderson, on returning to his cell from Mr. Russell's office, had been in the habit of taking off his coat, and shaking it, saying always: "Peugh—— I smell of fire and brimstone." One cannot refrain from observing here how much better oakum picking would have suited Anderson than theological controversy.

Fortunately among the prisoners were two—Johnson and Manister Worts—who were more than a match for the unorthodox black man. Anderson asserted that the Athanasian Creed was objected to by many able divines; he took exception to the title, "religious" given to the king in the prayer for the High Court of Parliament, whether he was religious or not; he maintained that his animadversions upon the church were the very words used by his former pastor, the Reverend Silas Fletcher, from the pulpit. The knowledge and acquirements of Johnson and Worts however enabled them "triumphantly to refute Anderson."

Nor were the women behindhand in giving the chaplain annoyance. In the middle of the service on one occasion a woman jumped up on to her seat, crying out, "Mr. Russell, Mr. Russell, as this may be the last time I shall be at church, I return you thanks for all favours." The chaplain replied gravely that the House of God was no place for her to address him, but the attention of the male prisoners in the body of the chapel below was

attracted, and it was with some difficulty that a general disturbance was prevented. At another time there was actually a row in the church. Just as the sermon began, a loud scream or huzza was heard among the females. At first it was supposed that some woman was in a fit, but the next moment half a dozen prayer-books were flung at the chaplain's head in the pulpit. With some difficulty the culprits were removed before the uproar became general; but as soon as the chaplain had finished his sermon, and said "Let us pray," a voice was heard audibly through the building replying, "No, we have had praying enough." A year or two later a more serious affair was only prevented with difficulty, when the women in the galleries above plotted to join the men in the body of the church below in some desperate act.

Mr. Whitworth Russell, however, through it all continued to exhibit the same unwearied activity and zeal. He never spared himself; and as the years passed by, he became known as one experienced in all that concerned prisons and their inmates. Therefore, when the cry for prison reform echoed loudly through the land, he was at once named one of Her Majesty's inspectors of prisons. His colleague was Mr. Crawford, who had made a lengthened visitation of the prisons in the United States, and the two divided the whole of Great Britain between them and vigorously applied themselves to their task.

Mr. Russell was succeeded as chaplain at Millbank by the Rev. Daniel Nihil, a gentleman who soon gave satisfactory evidence that he was worthy to wear his predecessor's mantle. All that Mr. Russell did, Mr. Nihil did also, and more. Ere long he found himself so firmly established in the good graces of the committee, that he was soon raised by them to wider, if not higher, functions, and in 1837 it was decided that he should hold the appointment of both governor and chaplain combined.

On the 15th of April in that year, the governor, Captain Chapman, wrote to tender his resignation for various reasons. "The changes that have taken place, those about to be introduced by the new Bill, his advanced age and indifferent health, induced him to consider it due to the public service to retire, for the purpose of enabling the committee to supply his place by the appointment of an officer who might begin the new system at its commencement." In reply came a gracious message from the committee, to the effect that they were aware of the "unwearied assiduity, zeal, and ability" with which he had discharged his arduous duties for fourteen years,

and they recommended him “for the most liberal and favourable consideration of the Secretary of State, on account of his long and faithful services.” At the same meeting it was at once mooted that Mr. Nihil should succeed to the vacancy.

Some account may here be given of the chaplain’s reign in the Penitentiary. It will be seen at once that his appointment as head of the establishment sufficiently shows the influences that were in ascendancy with the committee of the Penitentiary. This body was not alone and peculiar in its views; the general tone of public opinion at that time turned towards entrusting the ministers of religion with full powers to preach prisoners out of their evil courses into honesty and the right path. Far be it from me to detract from the efforts made in such a cause; but they are liable to be misconstrued. The objects of so much tender solicitude are apt to take the kindness that is well meant, for weakness, and wax in consequence insolent and unmanageable. The Millbank committee were sanguine still, in 1838, when Mr. Nihil came into power under them. We shall see now how far their agent, having *carte blanche* and every facility, prospered in this difficult mission. His real earnestness of purpose, and the thoroughness of his convictions, were incontestable.

Immediately on assuming the reins Mr. Nihil applied himself with all the energy of his evidently vigorous mind to the task before him, seeking at once to imbue his subordinates with something of his own spirit, and proclaiming in plain terms, to both officers and prisoners, his conception of the proper character of the institution he was called upon to rule. He considered it “a penal establishment, constituted with a view to the real reformation of convicts through the instrumentality of moral and religious means;” and in the official records made the following entry, wherein he intimated his views, and appealed to those under him for co-operation and support.

“Having, in my capacity of chaplain, observed the injurious effects arising from a habit which appears prevalent among the inferior officers, of regarding our religious rules as empty forms, got up for the sole purpose of prison discipline, and conceiving it right to let them understand the principles on which I propose to administer the prison, I drew up, and have since circulated, the following intimation:

“Having been appointed governor of this institution, I desire to express to the inferior officers my earnest and sincere hope that they will one and all bear in mind the objects of a penitentiary. The reformation of persons who have been engaged in criminal acts and habits is the most difficult work in the world. God alone, who rules the heart, can accomplish it; but God requires means to be used by man, and amongst the means used here, none are more important than the treatment of prisoners by the officers in charge of them. That treatment should always be regulated by religious principle. It should be mild, yet firm, just, impartial, and steady. In delivering orders to prisoners, care should be taken to avoid unnecessary offence and irritation, at the same time that those orders are marked by authority. Command of temper should be particularly cultivated. The rules require certain religious observances. It is of the greatest importance that the officers should always remember the reverence which belongs to sacred things, otherwise the prisoners will be apt to regard them not as religious services, but as matters of prison discipline. It should appear that officers themselves have a concern in religion and love and venerate it for its own sake. I do not by any means wish them to put on an appearance of religion which they do not feel—that would be hypocrisy,—but I wish them, as members of a religious institution, to cultivate the feeling and demeanour of true Christians—not only for the sake of the prisoners under their charge, but for their own.”

That the intention of this order was of the best no one who reads it can deny; but its provisions were fraught with mischievous consequences, as will soon appear. It struck at the root of all discipline. The prisoners were insubordinate and insolent, and needed peremptory measures to keep them in check; they were already only too much disposed to give themselves airs, and quite absurdly puffed up with an idea of their own importance. In all this they were now to be directly encouraged; for although the order in question was not made known to them in so many words, they were quick witted enough, as they always are, to detect the altered attitude of their masters. These masters were such, however, only in name; and one of them within a month complains rather bitterly that he is worse off than a prisoner. The latter, if charged with an offence, need only deny it and it fell to the ground, while a prisoner might say what he liked against an officer and it could not be refuted. The governor did not at first see how injudicious it was to weaken the authority of his subordinates, and continued to inculcate mildness of demeanour. In a serious case of disturbance, where several

prisoners were most turbulent and needed summary repression, he took a very old warder to task for his unnecessary severity. One of these mutineers, whom they had been obliged to remove by force, cried, "You have almost killed me," though nothing of the kind had occurred. This officer was injudicious enough to reply, "You deserve killing." Upon this Mr. Nihil, as I find it recorded, states, "I thought it necessary to reprove the warder for such language. If the prisoners are to be properly managed, it is by authority administered with firmness, and guided, not by passion, but by reason and principle."

Later he issued the following order: "In consequence of what the governor has sometimes observed, he wishes to impress on the inferior officers the importance of coolness and command of temper in the management of prisoners.... Cases will, of course, arise when prisoners by their violence give much provocation. At such times it is particularly necessary that the officers should endeavour to maintain calmness and self-possession. The best way is to use as few words as possible, taking care at the same time to adopt the necessary means of securing a refractory prisoner; but to fall into a passion, or to enter into a war of words, only lowers the authority of the officer, and adds to the irritation it is intended to allay." Excellent advice, but not always easily followed.

Indeed, the condition of his officers was hardly to be envied. They were mostly men of the camp, soldiers who had served their time in the army, little fitted either by previous training or the habits of their mind for the task required of them now. Mr. Nihil, to be fully served and seconded in his conscientious efforts to effect reformation, should have been provided with a staff of missionaries; though these were hardly to be got for the money, nor would they have been found of much assistance in carrying out the discipline of the prison. As it was, the warders had to choose between becoming hypocrites, or running the risk of daily charges of irreligious impropriety, and of losing their situations altogether. Placed thus from the first in a false position, there was some excuse for them in their shortcomings. It is not strange that many went with the stream, and sought to obtain credit by professing piety whether they felt it or not, using scripture phrases, and parading in the pentagons and ward passages with Bibles carried ostentatiously under their arms, though it could be proved, and was, that many of the same men when safe beyond the walls were notorious for debauchery and looseness of life. It was in these days that a

curious epithet came to distinguish all who were known as the chaplain's men. They were called in the thieves' *argot* "Pantilers," and the title sticks to them still. The "pantile," according to the slang dictionary, from which I must perforce quote, was the broad-brimmed hat worn by the puritans of old. From this strange origin is derived a word which, with the lower orders, is synonymous still with cant and a hypocritical profession of religion to serve base ends. Millbank was long known as the headquarters of the "Pantilers."

On the other hand, officers in whom the old mammon was too strong to be stifled altogether, occasionally forgot themselves, and when accused or suspected of unorthodoxy or unbelief they naturally went to the wall. Thus it was not likely that one who was reported to be a confirmed infidel would escape instant dismissal; though in one instance the information was given by a prisoner, and should at least have been received with caution. The substance of the complaint made by the prisoner was that the officer had asserted that the nature of man was sinful, but that the worst man that ever lived was no worse than God had made him, with other remarks of a carping and irreverent character. Mr. Nihil immediately sent for both officer and prisoner, and confronted them together, questioning the former as follows:—

"Mr. Mann, are you a member of the Church of England?"

"No, sir."

"To what church, then, do you belong?"

"I was brought up a Baptist, sir; but I am not a member of any society at present."

"Are you a believer in the Scriptures?"

"I would rather not enter into that subject."

"Did you not represent yourself a member of the Church of England when first employed?"

"I did not. I was never asked the question."

He was then asked if he had ever tried to controvert the religion of the Penitentiary, but he distinctly denied having done so.

Then came the prisoner's turn.

"I assure you, sir," he told Mr. Nihil, "that this officer on one occasion remarked to me that St. Paul took up several chapters in telling women

what sort of ribbons they wore in their bonnets." And on this evidence Mr. Mann lost his situation; for, says the Governor, "I considered his answers evasive throughout; while the prisoner being an exceedingly well-conducted man, I have no doubt, from the tenour of the whole proceedings, that he spoke the truth." Hard measure this, and scarcely calculated to maintain the discipline of the establishment.

Still harder, perhaps, was the dismissal of another officer, who was found using what was characterized as a species of low slang in speaking of prisoners. "It came out very artlessly," says Mr. Nihil, "as he was telling me of some boyish irregularity of a prisoner, whom he styled a 'rascal.' This, coupled with other appearances, determined me that the man may have meant no great harm, but that he was quite unfit for the moral charge here entrusted to him; and I thought it necessary, not only in regard to this offence, but that others might take a lesson from it, to mark my sense of the unfitness of one in the habit of familiarly using such language for the situation of warder." When a fate so severe overtook these two for the offences recorded, a third was not likely to escape who was proved to have occasionally sworn, and who admitted that he considered it was all humbug taking the prisoners to chapel. Although this culprit held the grade of taskmaster, and had completed a service of many years, he too was forthwith sent about his business. But then it was brought home to him that he had once been heard to say, "The governor thinks himself a sharp fellow—I think him the—— fool I ever knew." It also appeared that this officer's familiar language among other officers was very profane. He sometimes ridiculed religion; and at one time scoffed at the miracle of the sun standing still. On one occasion he spoke of the chaplain's lectures as humbug. "My own impressions of T.," says the governor-chaplain, "were that though he was an efficient officer, he was a conceited self-sufficient man, and of his moral principles I had no good opinion. Everything led to the conviction that he was a very dangerous character in an institution of this kind; his general bearing giving him influence over the inferior officers, and his principles and habits being such as to turn that influence to pernicious account." He was accordingly dismissed by the committee "with the strongest reprobation of his abominable hypocrisy."

Although thus studiously bent upon raising the moral tone of his officers, in many other respects, hardly of inferior importance, the utmost laxity prevailed. The rules by which the Penitentiary was governed, and by

which all undue familiarity between officers and prisoners was strictly prohibited; which forbade certain luxuries, such as tobacco, ardent spirits, and the morning papers; and which insisted upon certain principles to insure the safe custody of those confined—all these were often contravened or neglected. Upon no one point are gaolers bound to be more vigilant and circumspect than in the security of their keys. In all well-ordered prisons now the most stringent rules prevail on this head. To lose a key entails exemplary punishment, heavy fines, or immediate dismissal. Yet in these old Millbank days we find an officer coolly lending his keys to a prisoner to let himself in and out of his ward; and another who wakes up in the morning without them, asserts at once that they have been stolen from him in the night. In this latter case instant search was made, and after a long delay one key was found in the ventilator of a prisoner's cell, and below his window, outside, the remaining three. This man was of course accused of the theft; and a circumstantial story at once invented, of his escaping after school, repairing to the tower, and possessing himself of the keys. He would infallibly have suffered for the offence, had it not been accidentally discovered that the officer who had lost them was drunk and incapable on the night in question, and had himself dropped them from his pocket. There was more than one escape, which though ingeniously conceived and carried out could never have succeeded but for a want of watchfulness and supervision on the part of the officer. Of the improper intimacy there could be little doubt, when it was proved that officers and old prisoners were seen in company at public houses—the latter standing treat, and supplying bribes freely, to compass the conveyance to their friends, still inside, of the luxuries prohibited by the rules. All this came out one fine day, when it was discovered that, through the connivance of certain dishonest warders, several prisoners had been regularly supplied with magazines and morning newspapers. Wine, spirits, and eatables more toothsome than the prison fare, and the much-loved weed, found their way into the prison by the same reprehensible means. It is but fair to add here, that in this and in every other case, as soon as the irregularities referred to were brought to light, they were invariably visited with the condemnation they deserved.

Even a man of shrewd intelligence like Mr. Nihil could not fail to be occasionally taken in. On one or two points he was especially vulnerable. Signs of repentance, real or feigned, won from him at once an earnest sympathy which not seldom proved to be cruelly misplaced. There was also

a certain simplicity about him, and want of experience, that sometimes made him the dupe of his subordinates when they tried to curry favour by exaggerating the sufferings of the prisoners. One day when he was *en route* to the dark cells, intending to pardon a culprit therein confined, the taskmaster who accompanied him voluntarily observed, "You are quite right to release him, sir. His legs would get affected, I am afraid, if he were left there any time, like all the rest."

"What do you mean by that?" asked the governor at once. "Explain."

"I mean, sir, that whenever a prisoner is kept any length of time in the dark, his loins are always affected. It may be seen in their walk. Take the case of Welsh. Welsh is quite crippled from being so much in the dark."

"Do they never recover it?"

"Never."

Mr. Nihil was naturally much struck with this observation, and gave it credence, thinking the officer's opinion worth attention, as he was particularly shrewd and intelligent. But on consulting the medical man of the establishment, he found the statement quite without foundation. Nothing of the kind ever happened; there was nothing the matter with Welsh, and never had been. It was all pure nonsense.

Then there was the case of Stokes, a boy continually in mischief, an arrant young villain, who coolly tells the governor that it is no use sending him to the dark—the dark only makes him worse. The governor reminded him that he had often tried kind and gentle methods in vain, and asked what would make him better. Stokes replied that the only thing to cure him would be a good sound flogging—knowing full well that this it was not possible to inflict except for certain offences, all of which he studiously avoided. Three days later when liberated from the dark, to which he had been sent in default of corporal punishment, he tried a fresh tack with Mr. Nihil, who observes, "This boy sent for me, and spoke as from the very abyss of conscious depravity. He complains of the hardness and wickedness of his heart. He thinks there is something wrong about him. He cried much. I urged him to pray, but he said his heart was too full—too full of wickedness to pray. I have promised to visit him in his cell, when I shall endeavour to soften and raise the tone of his mind, and pray with him." Of course his new attitude is all hypocritical deceit. Almost the next day he breaks out in conduct more disorderly than ever, and after smashing his window, spends

his time in shouting to the prisoners below. The governor, now alive to his real character, declares “that the injury done to the discipline of the prison by the perpetual insubordination of this boy has become so serious, that I think he must be sent up to the committee as incorrigible.” Again he wavers, and again he changes his mind. “John Stokes applied to me yesterday evening, and spoke so sensibly, with such an appearance of a sincere desire for reformation, that I must beg to suspend my recommendation for his removal to the hulks. The result of such removal would probably be to consign him to the destroying influences of the worst companions.” Stokes did not remain long in this way of thinking, and continued still to be a thorn in the governor’s side for many a month to come.

But we have in this an instance of the extreme pains Mr. Nihil was at to do his duty conscientiously by all. And if he had sometimes to deal with designing hypocrites, he was not always wrong—at least, in cases like the following, the imposture, if any, was well concealed.

A woman came forward of her own accord to confess that she had made a false charge against another prisoner.

“What led you to make the charge?” (She had accused the other of calling her names.)

“Spite.”

“And what leads you now to confess?”

“I was so much impressed by the sermon I heard yesterday from the strange gentleman.”

The governor admitted that it was a most impressive discourse, well calculated to awaken the guilty conscience. “Being anxious,” he says, “to foster every symptom of repentance, I did not punish this woman. She freely acknowledged she deserved to be punished, but I thought it might tend to repress good feeling were I, under the circumstances, to act with rigour.”

Another woman, named Alice Bradley, sent for the governor, and told him that she had put down her name for the sacrament, but that she could not feel happy till she had told him all the truth. “I encouraged her to make the communication,” says the governor, “whereupon,” with a subdued voice and many tears, she said, “I was guilty of what I was sent here for.”

“This girl had invariably,” goes on Mr. Nihil, “with much appearance of a tender conscience, and a spirit wounded by injustice, protested her innocence. This perseverance in her protestations had now lasted six months, and it appeared that the girl had imposed a persuasion of her innocence on her nearest relations. I was much gratified with the contrition that was now developed under the system of this place, so consolatory amidst the numerous instances of a contrary description which we daily witness; and I endeavoured to trace the prisoner’s impression to some distinct instrumentality, which might be improved to further usefulness. She could only attribute her recent feelings to prayer.”

Again, he states the case of George Cubitt, who had been extremely well-conducted since he came to the Penitentiary. “He looks ill, and much altered within a short time, and seems much distressed. He told me he had of late been affected with the most dreadfully wicked thoughts, that he had a strong temptation to sell himself to the devil, and feared he had done so. That, on Friday week, when in bed, he was much oppressed with these thoughts, which he long resisted, but at last gave way, and made an oath to himself to sell himself. He got up immediately, and felt a chill all over him, as if his nature was quite changed. Ever since he has been subject to the most shocking thoughts and fears. He attributed the calamity to his having been alone, and seemed to dread the idea of returning to a cell by himself. I see no signs of pretence about this boy, and greatly pity him. His nerves have evidently been shaken by confinement. I prayed with him, and said what I could to dissipate his terrors, and bade him make the goodness of God his protection. I could wish that in a case of this kind the discipline of the prison admitted of a little labour in the garden; but I see great practical difficulties in making practical arrangements for the purpose.”

Of course Mr. Nihil was in his element in dealing with a case of this kind; just as the following claimed at once the whole of his sympathy and attention.

A prisoner was seized suddenly with an attack of hydrophobia. The only cause known was that he had been badly bitten by a dog six or seven years before. “The poor patient was in a most distressing state, being a fine intelligent youth, and in an admirable spirit of Christian resignation. He observed to me repeatedly that he was a poor friendless boy, and that this was a wise and merciful providence, for if he lived to get his liberty he might get into trouble and come to a bad end. When I saw him next

morning, most edifying was the whole tenour of his observations and his prayers. That night he grew to be in a state of high excitement, continually imploring me and every one for tea, while unable to taste a drop out of a basin which he held in his hand. About midnight he took a turn—no longer expressed any bodily want, but, as from a mind stored with scriptural truths, poured out the most appropriate ideas and expressions, though in a raving and delirious manner. It was most gratifying to observe the just views he exhibited, and the expressions of his deep repentance and humility. But dreadful to our feelings was the succeeding phasis which his disorder assumed. He seemed to struggle with a deadly foe, beating about his arms, and striving with incessant violence, while he uttered the language of abhorrence towards his enemy. Then, after a while, he began to give utterance to the most senselessly obscene and filthy language and ideas, nor were we able to repress them; but with these were mixed pleasing expressions of a pious, confiding tendency. This mixed and incongruous exhibition continued till about 3 A.M., when he sunk into death.”

Even if it could have been proved against Mr. Nihil that he was lacking in the resolute peremptoriness of persons bred to command, this chaplain-governor was, however, not wanting in many of the qualities of a good administrator. It must be recorded to his credit that he brought in many reforms, of which time has since proved the wisdom. There was for instance the change he instituted in the system of hearing and adjudicating upon charges of misconduct. It had been the custom for the governor to rush off post-haste to the scene of action, and then and there administer justice. Now, Mr. Nihil resolved to take “the reports” the same hour every morning, “thereby economizing time, and having the advantage of previous calm consideration. Besides,” he says, “officers and prisoners are both much irritated when the offence is still fresh, and the frequent interruptions took the governor often away from other subjects which at the time had full possession of his mind.” Again, after a daring and successful escape, he recommends that every prisoner at night should be obliged to put outside his cell gate all the tools, etc., with which he has been at work during the day. An obvious precaution, perhaps, which is the invariable rule now with all men, especially “prison breakers,” but the necessity of it was not recognized till Mr. Nihil found it out. Although in his management of his officers he erred somewhat in being too anxious to obtain a standard of impossible morality, still he knew that more than mere admonition was

needed to maintain order and obedience to the regulations. With this in view he instituted a system of fines, as the best method of insuring punctuality and exact discharge of duties. It is really a marvel how the Penitentiary had been governed for so long without it. Nor did his tenderness and solicitude for the spiritual welfare of the prisoners prevent his entering a sound protest against over-much pampering them in food. "I have frequent occasion to observe," he remarks in one part of his journal, "the extreme sauciness of prisoners with regard to their victuals. It appears from Mr. Chadwick's report, and the evidence that he collected, that the industrious labourers are the worst fed; the next best are the poor-house paupers; the next, convicts for petty thefts; the best are felons, with the exception of transports, who are still more abundantly supplied abroad. The idle and the profligate act upon the knowledge of these facts, and we have in the Penitentiary several of that description. Their fastidiousness and impertinence strangely illustrate the fact that our diet is much too high for the purposes of a prison."

Certainly the calls upon his time were many and various. Now for the first time, in consequence of the great complaints made against the county gaols, arising chiefly from the want of separate cells, the Penitentiary became the receptacle for soldiers sentenced to imprisonment by court-martial. And with the introduction of this new element he brought about his ears a crowd of new questions and new difficulties—a different dietary scale, different labour, and a great accession of misconduct of a new description; above all, new officials to deal with, and plenty of punctilious red-tapism, to which, as a civilian, he was altogether unaccustomed. Then, through strong representations made to the Government of the scandalous manner in which female transports were shipped to the penal colonies, it was decided that most of those who came from a distance should be lodged in Millbank to await embarkation. All these women were the scum of the earth, and added greatly to the governor's trials. They came to the Penitentiary in a miserable state of rags and wretchedness, shoeless, shiftless, and filthy. They were often accompanied by their children of all ages, from infancy to fourteen or fifteen years; and in nearly every case the conduct of all was violent and outrageous beyond description. Knowing they had nothing to gain by a conformity to the rules of the establishment, and that by no possibility could they escape transportation, they gave vent to their evil passions and set all authority at defiance.

Another vexation, which pressed perhaps more sorely on him than any I have described, was the invasion of his territory by a Roman Catholic clergyman, appointed under a recent Act of Parliament to visit Roman Catholic prisoners. I do not suppose that Mr. Nihil was more intolerant than were others of his cloth in those days, when antagonism between churches ran unusually high, and there is much excuse for the remarks he makes on the subject. By the Act provision was made for the payment of the priest from the prison fund. This Mr. Nihil characterizes as tantamount to "establishment." He does not see the necessity for anything of the kind, especially as the scruples of all the Roman Catholic prisoners have hitherto been most punctiliously respected. He foresees trouble and difficulty: Where was the line to be drawn with respect to discipline? Would not friction and difficulty arise from the Roman Catholic prisoners placing themselves under the patronage of the Roman Catholic priest in opposition to the governing authority of the prison? Happily, these anticipations proved almost groundless, and, except in one or two trivial instances, which are hardly worth recording, no evil results followed the occasional admission of the priest to the Penitentiary.

CHAPTER VII

INGENIOUS ESCAPES

The case of Pickard Smith—Sent repeatedly to the Penitentiary—Escapes again and again—Best methods of preventing escapes as seen in modern Prisons—Remarkable case of Punch Howard—Escape ingeniously effected—Cleverly recaptured—Jack Robinson at Dartmoor—George Hackett at Pentonville.

THE most annoying of the many anxieties that weighed upon Governor Nihil at this time was the deportment of a certain Pickard Smith, who seemed more than a match for all the authority of the place. His case is interesting as an example of the length to which a prisoner can go, even in times when better influences were, it was hoped, at work with all.

On the day he arrived at the Penitentiary under the name of Smith, it was discovered that he had been there before as Pickard, when he was known for notorious misconduct, though towards the end of his sentence he had assumed an appearance of reformation. On his recommittal he was at first quiet and amenable to discipline, but he seemed to have conceived suddenly a desire to be sent abroad to the colonies. From henceforth his conduct was detestable. At length he destroyed everything in his cell: furniture, clothing, glass, books, including "Bishop Green's Discourses," and then he endeavoured to brain the officer who came to expostulate. "If I am to go to the dark, I may as well go for something," he said; and after he was removed it was found that he had written the following lines on the back of his cell door:

"London is the place where I was bred and born,
Newgate has been too often my situation,
The Penitentiary has been too often my dwelling-place,
And New South Wales is my expectation."

Not a very high poetical flight, to which the governor-chaplain remained insensible, and had the poet forthwith flogged.

The magistrate came as before from the nearest police office, for the express purpose of passing sentence. Seventy-five lashes out of three hundred ordered were inflicted, greatly to the benefit, it is recorded, of other unruly prisoners, all of whom were brought out to witness the punishment. "They appeared much subdued in spirit," says Mr. Nihil, and for some days afterwards the prison exhibited quite an altered character. But upon the culprit himself the sentence had no effect whatever. He spent his time from that day forth in whistling, idleness, and impertinence, sometimes in his own cell, oftener in the dark. His insolence grew more and more insupportable; he told the governor to hold his jaw, and his warder to go about his business. One fine morning it was found that he had gone. His cell was empty, and he had disappeared.

"The mode of escape," said the governor in his journal, "was most ingenious, daring, and masterly, though the prisoner is only eighteen years of age. There was a combination of sagacity, courage, and ready resource, indicating extraordinary powers, both mental and bodily."

He had got, unknown to his officer, an iron pin used for turning the handle of the ventilator of the stove. The stove not being in use the handle was not missed. The prisoner was let out of his cell by himself, being kept apart from other prisoners in consequence of frequent insubordination and the mischievous tendency of his example. With this pin he had made a hole in the brick arch which formed the roof of his cell large enough to admit his body. The iron pin, stuck into one of the slits for ventilation in the wall, served as a hook, to which he had probably suspended a small ladder, ingeniously constructed of shreds of cotton and coarse thread (it was found in the roof); and with such assistance to his own activity and strength he had got through the ceiling and into the roof, along the interior of which he had proceeded some distance, till he was able at length to break a hole in the slates. But the battens to which the slates were fastened were too narrow to let him through, so he travelled on till he found others wider apart, and here, making a second hole, he contrived to get out on to the roof. The descent was his next difficulty, but he had provided for this by carrying with him a number of suitable articles to assist him in his purpose. It must be mentioned that he had chosen his time well: not only were the officers later coming in on Sunday mornings, but on Saturday evenings the prisoners

receive their clean clothes (their dirty ones were not returned till next morning), so that Smith had in his cell two sets of clothes—two shirts, two pairs of long stockings, and two handkerchiefs. He had washed his feet also on Saturday night, and had been given a round towel to dry them. Having torn his blankets and rugs into strips, he had sewn them together by lengths, making each, like the round towel, a link in a chain to which his neckerchiefs and pocket-handkerchiefs, similarly prepared, added further lengths. With all of these, and attired in his clean shirt, he had ascended as already described to the roof, where he must have found his chain too short, for he had added his shirt to the apparatus. This rope he fastened to one of the rafters of the roof, and then slung himself down to where he judged the attic window was to be found, and he judged accurately. The sill of the window formed the first stage, and to its bars he fastened part of his chain, thus economizing its length, instead of having one long rope from the roof downwards. Descending in like manner to the second window, he repeated the process, and again to the third (or first floor), after which he reached the ground in safety. His next difficulty was to scale the boundary wall. Much work happened to be going on in the rebuilding of parts destroyed by fire, and a quantity of masons' and carpenters' materials were lying about. First he contrived to remove a long and prodigiously heavy ladder (which two men ordinarily could not carry), from against the scaffolding, and this he dragged to the iron fence of the burial ground, against which he rested it, but he could not rear it the whole height of the boundary wall. Next he got two planks, and lashing them firmly together with a rope he picked up, he thus made an inclined plane long enough to allow of his walking up it to the top of the wall. Weighting one end with a heavy stone, he easily got the planking on to the wall and thus got over.

As soon as the escape was discovered immediate search was made in all adjoining lurking-places. Officers acquainted with Pickard's haunts were despatched to a far-off part of the town, information was lodged at Bow Street, and a reward of £50 offered by authority of the Secretary of State. He was eventually recaptured through the connivance of his relatives. Soon anonymous letters reached the governor, offering to give the fugitive up for the reward. A confidential officer was despatched to a concerted place of meeting, and by the assistance of the police, and his own friends, Pickard Smith was secured and brought back to the Penitentiary. Mr. Nihil was much exercised in spirit at his return. It appeared that he belonged to a

family which had all been transported. He came to the Penitentiary himself as a boy, grew up in it to manhood, and five months after his release was again convicted and returned under a new name. Mr. Nihil says: "Had it been known that the benevolent system of the Penitentiary had been previously tried in vain upon him, he would not probably have been sent here a second time. It is plain that he was not a fit subject for it, and his previous experience within our walls, and probable acquaintance with their exterior localities, acquired during the interval of his freedom, rendered him a dangerous inmate. After his flogging continued misconduct rendered it necessary to keep him apart from other prisoners—a circumstance which facilitated those operations by which he lately accomplished his escape. It is now highly dangerous to keep him in the same ward with other prisoners, our means of preventing intercourse being extremely inadequate. On the other hand, conversant as he is with the localities of the prison, aware of the aid to be derived from the materials strewed about in consequence of the extensive repairs after the late fire, and flushed with his former success, it becomes no less objectionable to place him apart where he may be less liable to any interruption in any attempt he may make. A man of his capabilities ought not to be kept in a prison with so low a boundary wall as ours. I do not fear his escape, watched as he now will be, but I fear his attempts."

Nevertheless, though repeated efforts were made to get this prisoner removed to the hulks or to some other prison, the Secretary of State would not give his consent. He said it would be considered discreditable to the Penitentiary if prisoners were transferred on account of its inability to secure them. "Why not chain him heavily?" asks the Secretary of State. "Why not?" replies Mr. Nihil. "Because if he is prosecuted and receives an additional sentence of three years, we cannot keep him all his time in chains. The peculiarity of our system," goes on the governor, "hardly appears to be considered as an objection to his continuance here." The principle of the Penitentiary was that it was not merely a place of safe custody and punishment, but a place of reformation; and, therefore, if it failed of this latter object in any instance, a power was reserved of sending away the prisoner as incorrigible, for fear of his interfering with the progress of the system among other prisoners. Next day he was told he would have to remain three years extra in the Penitentiary, whereupon he promised, of his own accord, to abstain from making any further attempts at

escape, provided he were allowed to go among the other prisoners. He was so much more tractable and so much improved in temper that his request was granted, and he was brought once more under ordinary discipline.

Having remained quiet for a month or more, just to lull suspicion, he was again discovered—and just in the nick of time—to be on the verge of a second evasion. The window of his cell was found to have the screws taken out, with other suspicious symptoms. Smith declared that the state of his window was the result of accident. He was removed to another cell, and Mr. Nihil himself proceeded to examine the one he had left. His hammock when unlashd revealed the state of his rug and blankets. They had been torn up into convenient strips for scaling purposes. When the prisoner was himself searched, between his stockings and the soles of his feet were pieces of flannel, and in one of them was a small piece of metal, ingeniously formed into a kind of picklock. A piece of iron, for this purpose no doubt, was missed from one side of the cell window. He was placed in the infirmary “strong room” for safety; then apart in F gallery by day, sleeping at night in a small cell below. But soon he destroyed everything in F gallery, and then he was handcuffed. His next method of disturbance was to make a violent noise by beating with his handcuffs against the door; upon which he was ordered to be removed to a dark cell, not for punishment, but to prevent disturbance. Presently a noise of loud hammering was heard in this same dark cell. The officers on duty rushed to the spot, and found that by some extraordinary contrivance Smith had possessed himself of one of the staples by which the iron work was made fast on the back of the door to the dark cell. By means of this instrument he had worked away an iron grating fixed for ventilation, and had been engaged making a hole in the wall by which he would have soon escaped. Smith was handcuffed and taken to another cell.

The governor is almost bewildered, and begs the committee to get rid of this prisoner. It would be inexpedient to place him among other prisoners, and yet that can hardly be avoided, owing to the influx of both military and other prisoners. “As to corporal punishment, he has already experienced it very severely without any beneficial effect. His knowledge of the localities, and the present unsafe condition of the prison, owing to the extensive repairs, will breed perpetual attempts, however unsuccessful, to escape,” writes the governor.

Soon afterwards Smith asked to be relieved from his handcuffs. "What's the good of keeping them on me?" he said, "I can always get 'em off with an hour's work." He was told they would be fastened behind his back. "I can slip them in front; you know that," he replied.

"I threatened, then," says Mr. Nihil, "to fetter his arms as well as his hands, and that seemed to baffle him. To-day I held a long conversation with him, and cannot but lament that the powerful qualities he possesses should have been so greatly perverted. He spoke with great candour of his former courses. He exhibited an affectation of religious impressions, though he acknowledged much of the evil of his character. By and by I asked him if he wished to have the handcuffs taken off. He did, much, because they made him feel so cold.

"Will you promise if I take them off not to attempt to escape?"

"I'll never make another promise as long as I am here. I have made one too many, and I am ashamed of myself for having broken it."

"What am I to do with you? Where am I to send you?"

"It's no use sending me anywhere, sir. If you let me go among the other prisoners I am satisfied; from what I know of the place, there isn't a part from which I couldn't escape."

But Pickard Smith cannot remain forever in the dark. Exercise in the open air becomes necessary, and the first time he is taken out is in a dense fog. Almost at once he eludes his officer's observation, and, slipping off his shoes, clambers up a low projecting wall that communicates with the boundary wall of the yard, mounts it, jumps over on the other side, and runs for the infirmary staircase where he hopes to hide. Fortunately the taskmaster, coming out of the tower, catches sight of his legs disappearing through the door, and running after him captures him on the stairs. The fellow was quite incorrigible. Again he goes to the dark, again and again is he released and recommitted, till at length his health breaks down. If in the end he was tamed, it was of his own failure of strength, and not of the discipline of the place. I believe he died in the Penitentiary a year or two later, but I have been unable to find any authentic record of the fact.

I have lingered thus long over his story, which is at best but sad and disheartening, because it is a good illustration of the methods of coercion tried in those days in the Penitentiary, and moreover it opens up the whole question of escapes from prison. Of course the convicted criminal shares

with all other captives an ever-present unsatisfied longing to be free. Like a caged blackbird, or a rat in a trap, the felon who has lost his liberty will certainly escape whenever the opportunity is offered to him. To leave gates ajar, or to withdraw a customary guard, would supply a temptation as irresistible as a bone to a hungry dog; and a prisoner's faculties are so sharp set by his confinement, that he sees chances which are invisible to his gaolers. A resolute and skilful man will brave all dangers, will exhibit untold patience and ingenuity, will endure pain and lengthened hardship, if he sees but a loophole for escape in the end. The fiction of Edmond Dantes and his famous escape from the Chateau d'If, is but the embroidery of a poetical imagination working upon a sober groundwork of fact. The records of all ancient prisons contribute their quota of similar legends, showing how the fugitive triumphed over difficulties seemingly insurmountable. Baron Trenck's escape from Spandau, and Casanova's from the Piombi, are as familiar to us as household words.

In this present time escapes are of rarer occurrence, and for many reasons. It is not that prisons are really more secure *per se*:—so far as construction can be depended upon, a gaol like Newgate seems as safe as stone and iron can make it:—but the principles of security are so much better realized and understood. Our forefathers trusted to physical means, and thought enough was done. To-day our reliance is placed on the moral aid of continuous supervision. An escapade like that of Pickard Smith would be next to impossible now. He would have been defeated with his own weapons. To compass his ends a prisoner must have privacy; hours of quiet undisturbed by the intrusive visit of a lynx-eyed official, and a cell all to himself. He has now the cell to himself—at least he has with him no companion felon—but he is for ever tended by an “old man of the mountain,” in the shape of his warder, who is always with him—“turning him over,” as the prison slang calls it; searching him, that is to say, several times a day, both his person and the cell he occupies. To conceal implements, to carry on works like the removal of bricks, of flooring, or of bars, is next to impossible, or feasible only through a lack of vigilance for which the official in fault would be called seriously to account. The whole system as pursued in British Government prisons even where prisoners work in the open air miles beyond prison gates or boundary walls depends on the close observance of certain principles which have come to be regarded as axioms almost with the officials. No prisoner is allowed to be

for one moment out of an officer's sight; that officer starts in the morning with a certain number of convicts in charge: he must bring in the same number on his return to the prison. Beyond the vigilant eye of these officers in charge of small parties ranges a wide cordon of warder-sentries, who are raised on high platforms and have an uninterrupted view around. A carefully prepared code of signals serves to give immediate notice of escape. A shrill note on the whistle, a single shot from a sentry's breechloader sounds the alarm—"A man gone!" Next second, the whistles re-echo, shot answers shot; the parties are assembled in the twinkling of an eye, and a force of spare officers hasten at once to the point from whence came the first note of distress. It is next to impossible for the fugitive to get away: if he runs for it he is chased; if he goes to ground they dig him out; if he takes to the water he is soon overhauled. The cases are few and far between of successful evasion. In every case the luck or the stratagem has been exceptional—as when at Chatham a man was buried by his comrades brick by brick beneath a heap, and interment was completed before the man was missed; or when at Dartmoor, another broke into the chaplain's house, stole clothes, food, and a good horse, on which he rode triumphantly away.

At Millbank from first to last the escapes, successful and unsuccessful, have been many and varied. Pickard Smith's was not the first nor the last. The earliest on record occurred in April, 1831. One night about 10 o'clock it was reported to the governor that the rooms of three of the officers had been entered and a quantity of wearing apparel abstracted therefrom. Almost at the same moment the sergeant patrol came in from the garden to say that the patrol on duty in going his rounds had discovered two men in the act of getting over the garden wall by means of a white rope, made of a "cut of cross-over."^[4] Both men were on the rope, and when it was shaken by the patrol they fell off and back into the garden; but they attacked the officer, knocked him down, and then ran off in an opposite direction. The patrol, as soon as he could recover himself, gave the alarm, and presently the governor, chaplain, surgeon, steward, and a number of other officers arrived on the spot. They separated in parties to make search, while the governor took possession of the cross-over cut, which was fastened to the top of the wall by means of a large iron rake twisted into a hook. This rake was used in the ward for bringing out large cinders from the long stove. It was thought at first that, in the patrol's absence when giving the alarm, the fugitives must have got over the wall; but the search was continued in the

dark, in and out of the tongues between the pentagons, and through all the gardens. Just by the external tower of Pentagon four, the governor and chaplain, who were together, came upon two men crouching in close under the wall. These were two prisoners, named Alexander Wallie, the wardsman, and Robert Thompson, the instructor of C Ward, Pentagon five. Thompson said at once, "You are gentlemen; we will surrender to you. We will make no resistance." But the governor being immediately joined by the other officers, it was as much as he could do to protect the prisoners from attack and assault, as the former were greatly excited. One of the prisoners was dressed in a fustian frock and trousers belonging to Warder Hay; the other had no coat, but a waistcoat and trousers belonging to some other officer.

At the top of the tower in C Ward, Pentagon five, out of one of the loopholes near the water cistern, another cut of cross-over had been found hanging, by which the prisoners had evidently descended. On going up to the place there were found close by, a large hammer, a chisel, and a screwdriver, articles used in repairing the looms, and the large poker belonging to the airing stoves. Several bricks had been removed from one side of the loophole, leaving a space wide enough for one person to get through. To the iron bar in the centre of the loophole one end of the cross-over was made fast; the other reached the ground. The prisoners' prison clothing was close by this cistern, and in Wallie's pocket was a skeleton key made of pewter, which opened many of the officers' bedroom doors. The prisoners confessed they had let themselves out of their cells by means of false keys made of pewter, and four of these were found near the place where the prisoners had been caught crouching down. The keys were partially buried into the ground. There were two check-gate keys, one cell key, and a skeleton key made of pewter.

Attempts at escape were not unknown in the interval between this and the time when Pickard Smith bewildered Mr. Nihil. But they were abortive and hardly worth recounting. It was not till years after the Reverend Governor had resigned his command that serious efforts at evasion became really frequent and successful. This was when Millbank had become changed in constitution, and from a Penitentiary had been made a depot for all convicts awaiting transportation beyond the seas. I shall have occasion to refer to this change in another volume, but will so far anticipate as to include in the present chapter some of the escapes that happened later. The

prison was filled to overflowing with desperate characters; every hole and corner was crammed; there had been no commensurate increase of official staff, and therefore those indispensable precautions by which only escapes could be prevented were greatly neglected. Weak points are soon detected by the watchful prisoner, and in these days every loophole of escape was quickly explored and turned to account. That some of these convicts were resolute in their determination to get free may be believed when it is stated that one, *en route* from Liverpool to Millbank, offered his escort a bribe of £600 to allow him to escape. There was no doubt that accomplices were close at hand ready to assist him, but happily the virtuous officers resisted temptation.

One of the first attempts of those days was made by a man named Cummings, who broke through the ceiling of his cell. He traversed the roof of his pentagon, but could get no further. Then he commenced to sing and to shout, and by this he was discovered. A ladder having been placed for him to descend, he was secured. The prisoner himself stated that he got through the arch by means of a hole he made with a nail he had picked up in the ward. The man was evidently cowed when he found himself on the top of the Penitentiary, and declared while they were trying to secure him that he would throw himself down. He had made no provision for his own descent; his rug, blanket, towels, etc., were found in his cell untouched. He had, however, traversed the roof along one side of the pentagon.

Soon afterward seven prisoners made their escape in a body from the prison. They were lodged in a large room—afterward the officers' mess—the windows of which were without bars; and they were able therefore to climb through them on to the roof. They took their blankets with them, and making a ladder, descended by it. The policeman on duty outside roused the lodge-keeper, to say he had seen a man scale the boundary wall between one and two in the morning, by a heavy ladder reared against the wall. All the officers were roused and stationed round the prison; while close search was made in the numerous gardens, stone-yards, etc. At half-past four, two officers came back with four prisoners in a cab. They had been tracked almost from the walls of the prison and captured at Chiswick. The other three were caught at Watford by a recruiting-sergeant and an inspector of the Hertfordshire police. They were on their way to Two Waters.

Next day a conspiracy was detected among the prisoners, who brought in coke from the garden, to escape while so employed. Almost immediately

afterwards four other prisoners were caught in the very act of escaping through the top of the cell they occupied. They had broken away the lath and plaster ceiling of the cell, removed the slate slab above it, and had taken off the roof slate to a sufficient extent to allow of easy egress; their sheets had been torn up and were knotted together, and everything was ready for their descent.

The next attempt, within a week or two, was made by a prisoner who found that the mouth of the foul air shaft, to which his cell was adjacent, was not protected by bars; accordingly he broke through the wall of his cell, and having thus gained access to the shaft, would have gained the roof easily had his artifice not been discovered just in time. Two others picked the lock leading to the garden, meaning to escape in the evening; and just then by chance it fell out that the prisoner bookbinders had been long maturing a plan of escape. They had made a large aperture in the floor of their cell, which hole had been concealed by pasteboard. The whole of the party (three in number) were privy to the plot, and each descended in turn to the vault below the cell, which was on the ground floor, to work at the external wall of the prison. This, when their plot was discovered, they had cut three parts through. They had also prepared three suits of clothing from their towels, and had hidden these disguises beneath some rubbish in the vault, where were also discovered a mason's hammer, the blade of a shears, and a cold chisel. A rope ladder had also been made for scaling the boundary wall, but it had been subsequently cut up as useless. The intending fugitives thought of making a better ladder from broom handles, to be supplied by a brush-maker in an adjoining cell, who was also in the plot. They had worked at night by candlelight. In this case it is not too much to say that the officials in charge of these prisoners were really much to blame. Had they exercised only ordinary vigilance the scheme could not have remained so long undiscovered. By the prisoners' own confession the hole had been in existence for more than three months, and therefore the cell could never have been searched.

But the most marvellous escape from Millbank was effected in the winter of 1847, by a prisoner named Howard, better known as Punch Howard. He had been equally successful before both at Newgate and Horsemonger Lane Gaol; but the ingenuity and determination he displayed in this last affair was quite beyond everything previously accomplished.

He was sentenced to transportation, and had only been received a few days when he was removed to a cell at the top of the infirmary, part of the room called later on E Ward. The window in this cell was long and narrow, running parallel to the floor but at some height above it. The extreme length is about three feet, the width but six inches and a half.^[5] It was closed by a window that revolved on a central bar forming an axle. This bar was riveted into the stone at each end of the window. In those days the prisoners used ordinary steel knives, which were given them at meal times, and then immediately removed. Howard at dinner-time converted his knife into a rough saw, by hammering the edge of the blade on the corner of his iron bedstead, and with this sawed through one rivet, leaving the window *in statu quo*. The whole thing was effected within the dinner hour: saw made, bar cut, and knife returned. No examination of the knife could have been made, and so far luck favoured the prisoner. As soon as the warders went off duty, and the pentagon was left to one single officer as patrol, Howard set to work. Hoisting himself again to the window, by hanging his blanket on a hammock hook in the wall just beneath, he removed the window bodily—one rivet having been sawn through, the other soon gave way. The way of egress, such as it was, was now open—a narrow slit three feet by six inches and a half. Howard was a stoutly built man, with by no means a small head, yet he managed to get this head through the opening. Having accomplished this, no doubt after tremendous pressure and much pain to himself, he turned so as to lie on his back, and worked his shoulders and arms out. He had previously put the window with its central iron bar half in, half out of the orifice, meaning to use it as a platform to stand on, the weight of his body pressing down one end while the other caught against the roof of the opening, and so gave him a firm foothold. He had also torn up his blankets and sheets in strips, and tied them together, so as to form a long rope, one end of which was fastened to his legs. He was now half way out of the window, lying in a horizontal position, with his arms free, his body nipped about the centre by the narrow opening, his legs still inside his cell. It was not difficult for him now to draw out the rest of his body, and as soon as he had length enough he threw himself up and caught the coping-stone of the roof above. All this took place on the top story, at a height of some thirty-five feet from the ground. He was now outside the wall, and standing on the outer end of the window bar. To draw out the whole lengths of blanket and sheeting rope, throw them on to the roof, and clamber after,

were his next exploits. He thereupon descended into the garden below, which encircles all of the buildings, and is itself surrounded by a low boundary wall. This garden was patrolled by six sentries, who divided the whole distance between them. He could see them very plainly as he stood on the roof between Pentagons three and four. He took the descent by degrees, lowering himself from the roof to a third floor window, and from third floor to second, from second to first, and from first to the ground itself. The back of the nearest patrol just then was turned, and Howard's descent to *terra firma* was unobserved. Next moment he was seen standing in his white shirt, but otherwise naked, in among the tombstones of the Penitentiary graveyard, which is just at this point. Concluding he was a ghost, the sentry, as he afterwards admitted, turned tail and ran, leaving the coast quite clear. Howard was not slow to profit by the chance. Some planks lay close by, one of which he raised against the boundary wall, and walked up the incline thus formed. Next moment he dropped down on the far side and was free. His friends lived close by the prison in Pye Street, Westminster, and within a minute or two he was in his mother's house, got food and clothing, and again made off for the country.

Naturally the excitement in the prison on the following morning was intense. Howard was gone, and he could be tracked by his means of exit from his cell to the roof, down the outer wall, across the garden, and over the boundary wall. Here the trail stopped; and though his home in Pye Street was immediately searched, no one would confess to having seen him. It was felt that recapture was almost hopeless. It occurred, however, to Denis Power, the warder of Howard's ward, that this man had come to prison with a "pal," a certain Jerry Simcox, who had been convicted at the same time and for the same offence. Mr. Power thereupon visited Simcox in his cell.

"So Punch has gone, sir?"

"How did you know that?"

"Why, sir, you couldn't keep him. We was in Newgate together, him and me, and in Horsemonger too; but we got out of both. There ain't no jail 'll hold Punch Howard."

"Oh, you got out together, did you?" said the officer, growing interested.

"Yes, and could again out of any 'stir' in the three kingdoms, and they could not take us either. We got to too safe a crib for that."

“Ah—?” Power spoke unconcernedly. If he had appeared too anxious Simcox would have remained silent.

“Punch has got an uncle down Uxbridge way who works at some brick fields at West Drayton. Six or eight hundred of them—Mr. Hearn’s lot, they is. That’s where we went, and the police daren’t follow us there. They don’t allow no ‘coppers’ on the premises thereabouts, Mr. Power. That’s the place to hide.”

“No doubt,” thought Mr. Power; “and Howard’s gone there now.”

Within an hour he had obtained the governor’s permission to go in pursuit, with a brace of pistols in his pocket, and unlimited credit.

At the inn of West Drayton he bought from the ostler a suit of navvy’s clothes, and went thus disguised with a spade over his shoulder towards the brickworks. The field was full and busy. There was an alehouse close by, and it was early morning, no one about but a sort of serving wench, a middle-aged woman, one-eyed, and bearing on her face the marks of a life of dissipation and rough usage.

“Morrow, mistress. Any work going?” said Power.

“Ah! work enough,” replied the woman, fixing him with her one eye, which was as good as four or five in any other head. “But you don’t want no work.”

“No?”

“No; I know you. You’re not what you seem. That spade and them duds ain’t no sort of good. You’re after work, but not that sort of work.”

Doubtful whether she meant to help or thwart him, Power could only trust himself to order a pot of ale.

“Have a drain, missus.”

“And I’ll help you too—no, not with the ale, but to cop young Punch.”

“Punch?”

“Aye—Punch Howard. That’s the work you’re after; and you shall get it too, or my name’s not Martha Jonas. This three-and-twenty years I’ve lived with his uncle, Dan Cockett, man and wife, though no parson blessed us. Three-and-twenty I slaved and bore with the mean white-faced hound, and now he leaves me for a younger woman, and I am brought to this. Help you!—by the great powers, I’d put a knife in Dan Cockett too.”

“And how am I to take him?”

“Not by daylight. Bless you, if you went into that field they’d never let you out alive. Why, no bobby durst go there, nor yet a dozen together.”

“Is Punch Howard in the field with them?”

“There; look yonder. D’ye see that lad in the striped shirt and blue belcher tie, blue and big white spots? Can’t you tell him a mile off?”

Sure enough it was Punch Howard, standing by a brick “table,” at which a number of others were at work, smoothing and finishing the bricks, or coming and going with the bearing-off barrows.

“Come to-night, master. They sleep mostly out there, on top of the brick stacks—and heavy sleep, for the beer in this house isn’t water. Come with a bobby or two, and look them all over. Punch’ll be among them, and you’ll be able to steal him away before the rest awake.”

So Power went back to the village, interviewed the superintendent of police, kept quiet during the rest of the day, and that night came in force to draw his covert. Stealthily they searched it from end to end. Among all the villainous faces into which they peered there was not one that bore the least resemblance to Punch Howard. Had the woman played him false? Power could hardly make up his mind to distrust her, so earnest and embittered had been her language against Dan Cockett. No doubt another night he would have more success. Meanwhile time pressed, and he resolved to try a plan of his own.

“Have you a good horse and four-wheeled shay?” he asked of his landlord next morning.

“The best in all England.”

“Every man’s goose is a swan,” thought Power. “Let’s see the nag.”

He was a good one, and no mistake; but an out-and-out good one was wanted for the job in hand.

At one end of the brick field—a spacious place covering two or three hundred acres—was an office for the time-keeper and foreman of the works. He was an old police sergeant, long pensioned off, but he had his wits about him still. The office was approached by a narrow lane, with room for one set of wheels only, a quarter of a mile in length, and branching off from the high road to Uxbridge. Up this lane, half hidden by the hedge, Mr. Power drove to the foreman’s shed. The ex-sergeant was alone, and readily fell in with the plan proposed. “Here!” he cried to a young fellow

who went his errands and assisted in the office; “run up to the field and ask Dan Cockett if he wants a job for that idle young nephew. I see he’s back in these parts. I need a lad to screen coal dust, and I’ll give him twelve shillings a week. Look sharp!”

The messenger went off immediately.

“A job for my nephew?” said old Dan. “Ay—heartily thank you too, master. You’re a gentleman. Hi! Punch, you’re in luck. They say they’ll take you on. Twelve shillings a week. Run along with the master: they want to ‘book you’ at the office.”

So unsuspecting Punch accompanied the other back to where Power was waiting for his prey. This warder was an extremely powerful man—tall, with tremendous shoulders, and just then in the prime of life and activity.

He stepped forward at once.

“What, Punch! What are you doing in these parts?”

“I’ll swear I never saw you in all—“ He never finished those words. His captor was on him and had him fast. In less time than it takes to describe, the handcuffs were locked upon his wrists, and, taking him up in his arms, Power fairly lifted him off the ground and carried him into the chaise. Without loosing his hold he took his seat too, gave reins to the horse, and started off at a hand gallop down the lane. He had the reins in one hand, the other arm tightly bound round Howard’s neck, and the hand used as far as it was possible as a gag. But though it was possible to hold this captive tight, it was not so easy to keep him silent. Before they had gone a dozen yards Howard had managed to send off more than one yell of distress, as a signal to his friends in the field. The sight of the galloping horse, the burly figure of the driver, and the lad crouching close by his side—all three betrayed the plot. Almost simultaneously several hundred men dropped work and gave chase—some down the lane, others trying to head the trap at the junction with the high road. Power had his hands full: in one, a struggling criminal, desperate, ready to fling himself out of the chaise at any risk; in the other a bunch of reins and a whip. However, he had the start and advantage of his pursuers. Once only was his escape in doubt: on reaching the road, the horse tried to turn sharp to the left, back to his stable at West Drayton, instead of to the right to Uxbridge. With a jerk that almost upset the trap, Power turned the horse in the right direction, and half an hour afterwards had left his pursuers miles behind, and was safe at the police station. Within

forty-eight hours of his escape Punch Howard was back in a Millbank cell, and Mr. Power was handsomely rewarded for the remarkable pluck and energy he had displayed.

A similar feat to Punch Howard's was accomplished by a man named Jack Robinson, at Dartmoor. This man had long pretended to be weak-minded, and had thus put his keepers off their guard. He was in the habit of exercising himself shoeless and bare-headed, and wearing an old hat without a brim. In his bosom he carried generally a few tame rats, which issued forth now and then to walk over his arms and shoulders, and to lick his hands and face. A frequent joke with Robinson was to tell the chaplain that he had put his feet too far through his trousers—which caused infinite amusement always to his convict audience. Jack, however, was fond of foretelling that he meant to make April fools of every one—and so in effect he did. One morning he had flown, and with him two companions. He had cut through the bars of his cell by some artful contrivance; which still remains a mystery to this day. Some think he used a watchspring, others some chemical process. He was not recaptured, but later was re-convicted for stealing a railway rug.



Prisoners Going to Work at Dartmoor

When transportation beyond the seas was discontinued, the old war prison at Dartmoor, long disused, was repaired by convict labor and became one of the best examples of the modern penitentiary idea. The convicts have reclaimed the vast tract of barren moorland, and in its place to-day are broad acres of fertile farm and pasture land.

No account of escapes from prison would be complete without some reference to George Hackett, who escaped from Pentonville in a manner nearly marvellous. Through some neglect he had been allowed to take his sheets and bedrope into chapel with him. At that time the chapel was divided into a number of small compartments, one for each prisoner. Hackett worked unobserved in his, till he had forced up the flooring, and so gained the gallery; whence, by breaking a zinc ventilator, he climbed through a window on to the parapet leading to the governor's house. This he entered, and stealing some good clothes, changed, and so got clean away. Soon afterwards he wrote the following letter to the governor of Pentonville:

“George Hackett presents his compliments to the Governor of the Model Prison, and begs to apprise him of his happy escape from the gaol. He is in excellent spirits, and assures the governor it would be useless to pursue him. He is quite safe, and intends in a few days to proceed to the continent to recruit his health.”

Hackett was a very desperate man. He had already escaped from a police cell at Marlborough Street, when confined on a charge of burglary. The cell was secured by two bolts and a patent Chubb lock. After his escape from Pentonville he remained at large till the following Derby day. He was then recognized going “down the road,” by a police officer, who proceeded to arrest him, but met with violent resistance. Hackett knocked down the policeman with a life preserver and made off, but was intercepted by a labouring man, who, though badly mauled, succeeded in capturing him. Hackett on all the charges was sentenced to fifteen years' transportation.

A later escape from Millbank was that of three prisoners on one Sunday, by working a hole in the floor. They were located on the ground floor, and having removed the ventilating plate which communicated with a shaft, thus got down into a cellar and so to a party wall with iron gratings. These removed, they issued out into the garden, where, as it was summer time, the thick vegetation concealed them. By and by a gentleman passing gave the alarm at the gate that he had seen two men climbing over the boundary wall. Some officers immediately gave chase, but the fugitives took a

hansom and drove off. Their pursuers followed in another cab, and presently ran down their men somewhere near St. Luke's. The third prisoner was caught in among the bushes of the garden, which he had never left.

In this case the officers of the ward were very seriously to blame. They were indeed suspected of collusion, and without that it is difficult to understand how the prisoners could have effected their purpose. They must have been long engaged in preparing to make good their exit, and in the cellar were found great quantities of weapons, tools, cards, and other things.

CHAPTER VIII

THE WOMEN'S WARDS

Various outbreaks among the women—Drumming on the doors—The dumb cell—What happened at Durham—The Ladies' Association—Greatest trouble from Convicts in passage to the Antipodes—McCarthy—Anne Williams—Julia Sinclair Newman's extraordinary persistence in wrong-doing—Supposed to be mad—Returned from Bethlehem as sane—Mr. Nihil's vain attempts to transfer her—No strait-waistcoat or means of restraint will prevail—Finally transferred to Van Diemen's Land.

It is a well established fact in prison logistics that the women are far worse than the men. When given to misconduct they are far more persistent in their evil ways, more outrageously violent, less amenable to reason or reproof. For this there is more than one explanation. No doubt when a woman is really bad, when all the safeguards natural and artificial with which she has been protected are removed, further deterioration is sure to be rapid and reform hopeless. Again, the means of coercion in the case of female prisoners are necessarily limited. While a prompt exhibition of force cannot fail sooner or later to bring an offending male convict to his senses, a woman continues her misconduct unchecked, because such methods cannot be put in practice against her. Although in some cases the men have made a temporarily successful fight against discipline, in the long run they have been compelled to succumb. On the other hand, there are instances known of women who have maintained for months, nay years, an unbroken warfare with authority, and who have won the day in the end. Never beaten, they continued till the day of their release to set every one at defiance. That obstinacy which has passed into a proverb against the sex, supported them throughout, of course, coupled with a species of hysterical mania, the natural outcome of the highly strung nervous system.

A curious example of their strength of physical endurance, and their almost indefatigable persistence in wrong-doing deserves to be mentioned

here, though it occurred some years later on. A strange fancy all at once seized a number of women occupying adjoining cells to drum on their doors with the soles of their feet. There is no evidence to show when or how this desire first showed itself; but in less than a week it had become general almost throughout the female prison. To accomplish her purpose a woman lay full length on her cell floor, just the right distance from the door, and began. She was immediately answered from the next cell, whence the infection spread rapidly to the next, and so on till the whole place was in an uproar. These cell doors being badly hung, were a little loose; they rattled, therefore, and shook, till the whole noise became quite deafening and incredible. Some women were able to keep up the game for hours together, day after day; in several cases it was proved that they had drummed in this way for several weeks. They soon worked themselves into a state of uncontrollable excitement, amounting almost to hysteria. After a time many became quite prostrate and ill, and had to be taken to the infirmary for treatment. The physical exertion required in the operation was so great that women so employed for barely an hour were found literally soaked in perspiration from head to foot, and lying, without exaggeration, in pools of moisture. In numbers the kicking superinduced diseases of the feet, the whole skin of the sole having been worn away; for it is almost needless to observe that very early in the affray shoes and stockings were altogether destroyed, and it came to be a question of bare feet. Several methods were tried to put an end to this unpleasant practice—strait waistcoats, dietary punishments, and so forth—but all without avail. In that particular instance the disturbances continued till the women had fairly worn themselves out.

Later outbreaks of a similar character were met and subdued in an altogether different fashion. The introduction of “ankle straps,” which confine the feet as handcuffs do the wrist, was found a highly efficacious treatment—this, and the invention of the “dumb cell.” From the latter no sound can possibly proceed; however loud and boisterous the outcry within, outside not a whisper is heard. When women feel that they are shouting and wasting their breath all to no purpose, they straightway succumb. But even more has since then been accomplished by purely moral methods than by these physical restraints. It has been found that the simplest way to tame women thus bent upon misconduct is to take no notice of them at all. When a woman discovers that she ceases to attract attention by her violence, she alters her line of conduct, and seeks to attain her ends by other and more

agreeable means. The most potent temptation with them is the desire to “show off” before their companions. A curious sort of vanity urges them on. It is all bravado. Hence we find that when these tremendous “breakings out,” as they are termed in prison parlance, occur, they originate almost entirely among the women who are associated, in other words, who are free to come and go and communicate with one another. Separate them, keep them as much as possible apart and alone, and you remove at once the strong temptation to gain an unenviable notoriety at the expense of the discipline of the establishment. This was proved by the experience of later years. Thus at Millbank in 1874 there were only three instances of this sort of misconduct, and in the previous year only four.

Weakness in enforcing the rules, yielding too readily to the women’s tantrums, and letting them have their own way are soon taken advantage of by the turbulent spirits in a gaol. I had a notable experience of this much later in a northern prison, when one of Her Majesty’s inspectors. The female prison population in the north are a rough, headstrong lot, very difficult to manage, and at that time the chief matron was a timid person, who found it pleasanter to give way than to drive, and, of course, the warder staff took their tone from her. It transpired afterwards that it was the custom to let the prisoners who should have been in cellular separation collect together in parties of four or more in one of the large workrooms, where they could gossip and idle their time away for hours together, never doing a hand’s-turn of work, and thus persistently breaking the regulations. I had a suspicion that the female “side” was in bad order, and on one of my visits—I never gave notice of them, but dropped in always by surprise—I went immediately to that part of the prison. The warder who answered my bell and opened the door looked flurried at the sight of me, and I passed in quickly, to find the interior in some confusion. There was a scurrying of feet, a jangle of excited voices, and a loud banging of cell doors, clear indications that things were not all right. If I had any doubt, it was removed by the sight of the matron, who was stooping over a trap-door that gave access to the heating-chamber below, and pitifully entreating the women to “Come up all of you and be good girls.” I guessed what was wrong. It was the winter season, and the place below warm and cosy, just where such women would love to linger. There could be no doubt what was happening, and stepping across hastily I added my voice to the matron’s, bidding them peremptorily to “come up.”

“Lord save us, it’s the major!” was the affrighted reply. They knew my voice and obeyed, creeping up the stairs one by one, till all, a dozen nearly, stood ranged in a row before me, and I desired the matron to take their names down, then to lock up each woman in her own cell. Next moment they were off, running for their lives in an entirely opposite direction. With a suddenness that was startling they broke away and made for the staircase, and up it to the top story of the prison building, above the highest ward, and into the close gallery just under the roof, whence they could reach the skylights and clamber out on to the slates. We knew they had reached the upper air, for their shouts were heard all over the prison, and they could be seen from the yards below, from the neighbouring streets indeed, dancing and performing wild antics on the roof above. We were all greatly puzzled how to deal with them. Persuasion was futile and it would be both difficult and dangerous to climb along the sloping roof, seize each woman in turn, and drag her down. After much debate I decided to leave them where they were—a “night out” would cool their blood, and they could neither do nor come to great harm in the alley under the roof, to which they would no doubt return of their own accord.

Meanwhile I sent to a friendly magistrate hard by, begging him to meet me at the prison next day early, for I wished to have recourse to his powers of punishment, having none myself. I made other preparations to deal with my mutineers, and, passing on to an adjacent town, saw the Governor of the prison there, requisitioned from him all his “figure-of-eight” handcuffs, and carried them back with me next morning in a bag. The situation remained unchanged; the women were still under the roof, but no longer had access to the slates, for by means of a ladder the skylights had been reached and secured from the outside. Then the male officers went upstairs and, after a sharp scuffle, extracted the women from the alley under the roof, and brought them one by one to their cells. No sooner were they incarcerated than the magistrate and I visited them, and he ordered each woman to be handcuffed, as the law permits when fears are entertained that she will do herself or another mischief. There was never another outbreak among the female prisoners there.^[6]

But to return to Mr. Nihil. It appears that during his reign the condition of the female pentagon was always unsatisfactory. We find in his journal constant reference to the want of discipline among the female prisoners. Thus: “The behaviour of the female pentagon is frightfully disorderly,

calling for vigorous and exemplary punishment. Women contract the most intimate friendship with each other, or the most deadly hatred." The bickering, bad feeling, and disputes were increasing. After inquiring into one case, the governor observes, "Before the afternoon was over the combatants had the whole pentagon in an uproar. One smashed her windows to bits, and so did the other. They had to be taken to the dark; but Walters produced a knife, and would have wounded the matron." Again, "I had to reprove strongly the taskmistress and warders for the laxity of discipline prevalent therein." Later on, when the rules of greater seclusion came into force, he again remarks, "On the female side there is great laxity, no discipline, no attempt to enforce non-intercourse. Instead of a rule by which each individual would be thrown on her own reflections, and secluded altogether, the female pentagon is in fact a criminal nunnery, where the sisterhood are linked together by a chain of sympathies and by familiar and frequent communications.... Although, to the ladies who visit them, the females repeat Scripture and speak piously, the communications which many of them carry on with each other are congenial with their former vicious habits, their minds being thus kept in a state at once the most depraved and hypocritical."

These ladies to whom the governor refers were members of the celebrated "Ladies' Association," headed by Mrs. Fry, whose long ministrations among female convicts at Newgate have gained them a world-wide reputation. Having undoubtedly done excellent work where crying evils called for reform, they were eager for fresh fields of labour. Accordingly they came and tried their best. It would be hardly fair to deny them all credit, or to assert that, because the women continued ill-conditioned throughout, the counsels and admonitions of these ladies had altogether failed of effect. It is obvious, however, from Mr. Nihil's remarks, that their services tended to produce hypocrisy rather than real repentance. The fact was there was a marked distinction between the work they had done at Newgate and that to which they put their hands in the Penitentiary. In this latter place the women were really sedulously cared for; they had an abundance of good food, clean cells, comfortable beds; they bathed regularly; they had employment, books, and the unceasing ministrations of a zealous chaplain.

Newgate, on the other hand, when first visited by Mrs. Fry, was a perfect sink of abomination, rivalling quite the worst pictures painted by

Howard. There could hardly have been a more terrible place than the women's side. All that Mrs. Fry and her companions accomplished is now a matter of history.

But the condition of Millbank under Mr. Nihil was not that of Newgate and other prisons in 1816. It could not be said the Penitentiary prisoners were neglected. No fault could be found with their treatment generally, or the measures taken to provide for their spiritual needs. Long before the arrival of the "Ladies' Association" the religious instruction of the female prisoners may be said to have reached a point of saturation: the preaching and praying, if I may say so, had been already a little overdone. Hence it was that their advent deepened only the outward hypocrisy and lip service, and was productive of little good.

The most serious annoyance entailed upon the governor of Millbank was the charge of female transports awaiting transportation. None of these were worse than a certain Julia Newman, who was a Penitentiary prisoner, and whose case I shall describe at some length, taking it as a type of the whole.

But there were many others among the female convicts who were also very desperate characters indeed; such as the woman from Liverpool, concerning whom the governor of the gaol wrote to say that she was so desperate that he thought it would be necessary to send her tied up in a sack. Mary McCarthy, was another, who was brought in handcuffs from Newgate, with a note to the effect that she required the greatest attention. She had several times attempted to strangle herself, and had therefore been handcuffed day and night and constantly watched. "She is a most artful, designing woman, and will succeed, if not well looked after, in her attempts to destroy herself."

Mr. Nihil found McCarthy submissive and tractable, but after the above caution he thought it advisable to continue the handcuffing, intending to withdraw the restraint as soon as she abandoned her intention to commit suicide. At the end of two days she managed to rid herself of her handcuffs, having very small wrists; but as she evinced no signs of violence or intractability they were not replaced, the governor thinking, from his experience with Newman, that effectual and complete restraint was impossible if the prisoner was determined. McCarthy was, however, constantly watched, and for ten days she remained quite quiet. On the 21st

of October, a fortnight after her admission, she begged her warder, Mrs. West, to come into her cell and teach her to stitch. Mrs. West did so readily, and all was calm and peaceable for a while. Suddenly, without giving Mrs. West a moment's warning, McCarthy stabbed her from behind, inflicting one severe wound on the forehead and the other under the ear. She appears to have used the utmost violence. Mrs. West got up, streaming with blood, and made for the cell door, which she bolted behind her, thus securing the prisoner inside. Assistance was called at once, but on going back to the cell McCarthy was found on the floor insensible, with a big bruise on her forehead. She continued in this kind of trance for twenty-four hours. It was a marvel to every one how she had got the weapon, for in consequence of her known suicidal tendencies she had been furnished with neither knife or scissors. However, on returning from exercise, as it was afterwards ascertained, she had seen a knife lying on the floor in the passage, and stooping, as if to pull up her shoe, had managed to secrete the knife in her sleeve. So unprovoked and murderous an attack, coupled with the previous attempts at suicide, indicated a maniacal ferocity. The succeeding trance corroborated the suspicions; and although the prisoner had exhibited great art in concealing her weapon, such cunning was not inconsistent with mania. She had also attempted to effect her escape by making a large hole in the ceiling of her cell. Therefore, a well known physician, Dr. Monro, was now sent for, and at once, on hearing the whole story, certified the prisoner to be insane. She was now in the infirmary, her feet and arms bound to the bed by several ligatures. The surgeon removed those on her arms, on which the governor thought it prudent to put her into handcuffs. In the night she was caught in the act of getting her feet loose, and was evidently bent on some further mischief. Thus baffled, she remained sullen for some time, then sent for the governor and made a clean breast of it, having been moved thereto by a passage in one of the Psalms, which another prisoner who watched her had been reading aloud. The expression she noticed was about "going away like lost sheep." She told the governor that while she was in the trance she knew some gentlemen had come to see her, and that one of them was a mad doctor. "I don't think doctors know much about madness," she added, "or they'd a' understood me better." Mr. Nihil was now pretty sure that McCarthy was no lunatic, but Dr. Monro and Dr. Wade adhered to their former opinion, so she was removed to Bethlehem.

Another woman, Ann Williams, who was received from Bath, proved a very desperate character. The governor of Bath gaol, who brought her up to London, declared he had never had so much trouble with any prisoner before. She also was determined to make away with herself, and the first time left alone she had jumped out of a window an immense height from the ground. This country gaoler, on seeing the cell to which she was destined in the Penitentiary, protested that it would be highly dangerous to allow her to have pewter pint, or spoon, or cell stool. The moment her hands were loosened she would be sure to thrust the spoon down her throat, or attack some one with the stool. Even the sheets should be removed, for she was capable of tearing them into slips to make herself a halter. Directly she arrived at Millbank she tried to dash her brains out by striking her head violently against the wall—emulating in this respect another prisoner for whom, some years later, a special head-dress was provided, a sort of Turkish cap padded at the top, merely to save her skull. Williams' language was dreadful, and she refused all food. The governor now suspected her strongly of artifice, and the doctor recommended that she should be punished with bread and water diet. That night she grew extremely turbulent. She was then tied down to her bedstead, and a sort of gag, brought from Bath for McCarthy, used, which was effective in curbing her rage. This gag was a wide piece of strong leather, having perforated holes to admit of breathing, but which completely silenced her horrible and violent expressions. After starving herself for four days she had still strength enough left to get out of her handcuffs, and would have done much mischief had not the other prisoners who were watching her held her down by the hair. After greasing her wrists it was found possible to replace the handcuffs. This was another case in which it was thought advisable to give the prisoner the benefit of the doubt, and she was also removed to Bedlam.

It was quite within possibility that in these two cases madness was proved. But it is often difficult to draw the line between madness and outrageous misconduct; and the latter is sometimes persisted in order to make good a pretence of deranged intellect. Among the female prisoners there are numerous instances of this—and as a matter of fact among the males also. Cases of “trying it on,” or “doing the barmy,” which are cant terms for feigning lunacy, used at one time to be more frequent than they are now, when longer experience protects prison physicians from deception.

The case of Julia St. Clair Newman—or Miss Newman, as she was commonly called in the prison and out—attracted considerable attention in its time, becoming indeed the subject of frequent discussion in Parliament, and being referred at length to a Select Committee of the House of Lords. Inside the walls Julia Newman was for many months the centre of all interest; she was a thorn in the side of all officials, visitors, governor, doctor, matrons, and even of her fellow-prisoners. Apparently of Creole origin—at least it was certain that she had been born in one of the West India Islands—she came home while still a child, and was educated at a French boarding-school. When sixteen she returned to Trinidad with her mother, remained there a year or two, and again came to England to live on an allowance made them by Julia's guardian. But whether this allowance was too small, or their natural proclivities would not be repressed, they soon got into bad ways. Repeatedly shifting houses, they moved from one lodging to another, always in debt, and not seldom under suspicion of swindling and fraud. Three months in the King's Bench was followed by a lengthened sojourn in Whitecross Street Gaol; then came more shady transactions, such mistakes as pledging their landlady's plate for their own, making away with wearing apparel and furniture, or absconding without payment of rent. At length, having left the apartments of a certain Mrs. Dobbs in a hurry, they packed up—quite by accident—in one of their trunks a silver spoon, some glasses, and a decanter, the property of the aforesaid Mrs. Dobbs. For this they were arrested, and as soon as they were in custody a second charge was laid against them for stealing a ring from a woman in the King's Bench, which Julia indignantly denied, declaring that she had picked it up in the pump yard—where of course there were plenty of rings to be had simply for the trouble of stooping. Naturally the jury disbelieved the Newmans' explanation of both counts, and mother and daughter were found guilty and sentenced to transportation.

They were evidently a pair of ordinary commonplace habitual swindlers, deserving no special notice. But their rumoured gentility gained for them a species of misplaced sympathy; and they were excused transportation, to be sent instead, for reformation, to the Penitentiary, where they arrived on the 11th March, 1837. Of the mother it will be sufficient to say at once that she was an inoffensive tractable old woman, who bore her punishment with patience, and eventually died in prison. But Julia was cast in a different mould. Under thirty,—according to her own statement she was

only nineteen,—full in figure, and florid of complexion, possessed, as was afterwards proved, of extraordinary physical strength, she displayed, from the first moment almost, an incorrigible perversity which made her in the end a perfect nuisance to the whole establishment. There was something ladylike about her when she was in a peaceable mood. Inexperienced people would have called her a gentlewoman. Not handsome or even good looking, but decidedly “interesting,” the matrons said when questioned before the Select Committee. She was accomplished: could draw and paint, and was very musical; sang beautifully—and certainly during her stay at Millbank she gave plenty of proof of the strength and compass of her voice; and with all this she was clever, designing, and of course thoroughly unprincipled.

The day after her reception she endeavoured to tamper with the wardswoman; seeking to obtain paper and pencil “to write a letter to her mother.” When taxed with this breach of rules, she declared the wardswoman wanted to force the things upon her. Then she was found to have cut a page out of “The Prisoner’s Companion,” a book supplied to all. Questioned privately, Newman with many expressions of grief confessed her guilt. Mr. Nihil, who was still quite in the dark as to her real character, pardoned this offence. She was next charged with an attempt to induce a fellow-prisoner to pass on a message to her mother—the substance of which was that the elder Newman was to impose upon the chaplain by a hypocritical confession, in order to obtain thus the daughter’s release, Julia promising when free to contrive means by which the mother should also be discharged. The “dark” became her lot for this, and to it she again returned the following week, for refusing to clean out her cell. When the governor reasoned with her, she merely said she would be happy to pay some other prisoner to do it for her. This second visit to the dark brought her under the doctor’s notice, who ordered her to the infirmary, as she declared she was too weak to walk downstairs. Her face having grown quite pale and ghastly, help was sent for, when it was discovered that she had whitened it with chalk. She again visited the dark, and when released began again to communicate with her mother. Several “stiffs”^[7] were intercepted, in which she tried to persuade her to smuggle a letter out to their solicitors. This discovery led to a strict search of Julia’s cell and person, when large quantities of writing paper were found upon her, though “how she procured the paper, or the pen, or how she manufactured the ink, continued a mystery

implying great laxity of supervision.” Her anxiety to write thus checked in one direction found vent in another: with the point of her scissors she had scratched upon the whitewash of her cell wall four verses of poetry. The words were harmless, and as she asserted that she felt it a severe restriction being kept apart, the governor admonished her well for this offence.

This leniency was quite thrown away. A fresh attempt at clandestine correspondence came to light within a week or two. Newman passed a letter at chapel to Mary Ann Stickley, which was found in the other’s bosom, the substance of it being that Newman professed a great regard for Stickley, and begged of her to excite the hatred of all the other prisoners against Ware for her recent betrayal of Newman. A second letter was picked up by Alice Bradley in front of Newman’s cell, addressed to a prisoner named Weedon, whom she abused in round terms for making a false charge against the governor to the effect that he had called her (Newman) by some horrid epithet—“which she could *never* believe of that good man.” Newman’s cell was again searched, when an ink bottle was found in the hopper,^[8] and some substitutes for pens. Her letters were found replete with artifices respecting modes of communication. Her next form of amusement was to manufacture a big rag doll for herself, out of a breadth of her petticoat. When this was discovered Newman was at exercise walking in the yard, and she heard that her cell was about to be thoroughly searched. Whereupon she ran as fast as she could, back to her ward, and endeavoured to prevent the matrons from entering her cell. When searched herself she resisted violently, but with the assistance of the wardswoman some written papers were taken from her, also some leaves from the blank part of her prayer-book, also written over.

“I understand,” says the governor, “a most extraordinary scene took place when the prisoner apprehended a search. She rushed to the stove and thrust certain papers into it, which but for the promptitude of the wardswoman, who behaved admirably, would soon have succeeded in putting them beyond investigation. They were however rescued, upon which she threw her arms round the warder’s neck, kissed her vehemently, went on her knees, supplicated concealment, tore her hair, and by such passionate demonstrations evinced the great importance she attached to the papers. The warder wept, the taskmistress contributed her tears, the wardswoman was overcome, but all stood faithful. In the midst of the

screaming and confusion came the schoolmaster, who was also assailed with all the tender importunities of the fair prisoner, but all in vain.”

By this time the governor arrived upon the scene, the officers partially recovered from their consternation, and Newman, much less excited, was disposed to make light of the document recently esteemed so precious. She said it was only a copy; the original had been torn up. “What is it then?” “A paper from which my mother and I expect to gain our liberty. It relates to a person who was the cause of all our misfortunes.” On inspection it proved to be a statement, or dying confession, of one Mary Hewett, tending to exculpate the Newmans at her own expense—probably a draft of what Julia Newman wished Hewett to say.

Three days later Julia was reported to be in a state of fury. Loud screaming proceeded from her cell. “I found her in a most violent paroxysm of rage,” says the governor. “It was most painful to see it. Not genuine madness did she evince, but that species of temporary frenzy to which an actress by force of imagination and violent effort could attain. Towards me she expressed the utmost abhorrence, and slammed the door in my face. I sent for the surgeon and some male officers, for her screams and yells, her violence in tearing her hair, and knocking her head against the wall, made it probable that forcible restraint would be necessary.”

The surgeon did not wish to have her placed in a dark cell, nor even in a strait waistcoat, and at his recommendation she was taken to the infirmary and put in a room by herself; but she was not removed without a continuance of violent screaming, to the disturbance of the whole place. Papers were found in her cell, on one of which was written “a lampoon, composed in doggerel verses, in which she vented the bitterness of her revenge. I (Mr. Nihil) was the principal object of her ridicule. It is melancholy to see a young girl of talent and some attainments so bent upon deception, and when foiled in her artifice abandoning herself alternately to studied malice and furious rage.” She remained in the infirmary for three days at the special wish of the surgeon, though the governor wanted to have her back in her cell. All the time she continued to feign insanity—a clear imposture of which the doctors, the governor, and the assistant chaplain were all convinced. The governor visited her to endeavour to convince her of the folly and hopelessness of this course; but the moment she saw him she addressed him with the most insulting expressions, and seizing a can full of gruel threw it at his head. She was restrained from further violence,

but continued to use the most outrageous exclamations, to the disturbance of the whole prison. The surgeon now consented to have her removed to a dark cell; and the governor remarks, "I can account for her personal hostility to myself thus. She has been defeated in several attempts to carry on clandestine communications. Until Monday last she cherished a hope of getting back among the other prisoners, where she might still prosecute her schemes; but on that day I again refused her, and my refusal was such as it was hopeless for her to try to alter it." She continued in the dark, amusing herself by singing songs of her own composition, "too regular and too much studied for the productions of a genuine mad-woman." She slept well, and ate all the bread they gave her. The visitor, Mr. Crawford, saw her, and recommended another medical opinion. Accordingly Mr. White, the former surgeon to the establishment, was called in, and stated that her madness was assumed, but he recommended she still should be treated as a patient.

Goaded at length by the continued annoyance, the governor writes to the committee as follows: "I submit that the case of Julia Newman calls for some decisive proceeding. There has been time enough—eleven days—to put to the test whether she is mad in reality or only in pretence. She has contrived to set all discipline at defiance, continually singing so as to be heard in every part of the establishment. Her conduct excites universal attention, and furnishes an example of the grossest insubordination. If the prisoner is mad, she ought forthwith to be sent to a mad-house; if not, she ought to be sent abroad as incorrigible. Yesterday she showed a disposition to return to her senses, as if tired of the effort of simulation, but did not know how to get out of her assumed character. To-day she is as bad as ever. No doubt in time she would come all right, but in the meantime what is to be done with her? I cannot venture to place her among other prisoners. If she is to be kept apart the whole time of her imprisonment (of which three and a half years are unexpired), there is every reason to expect a constant recurrence of violence and other modes of annoyance; for she has no respect for authority, and after assaulting the governor and counterfeiting madness with impunity, she will be emboldened to act as she likes. If put into a dark cell doubts as to her sanity will arise, and perhaps her own self-abandonment to violence may superinduce real madness, and then it will be said that our system at the Penitentiary had driven her out of her mind. She is far too dangerous a character to be sent into a ward with other prisoners. She has already tampered with eight or ten other prisoners, perhaps more."

There was no end to her deception. In one of the papers taken from her she asserted that certain property was secreted in a flower-pot, and buried in a garden in Goswell Street, at the house of one Elderton. The governor applied to Sir F. Roe, at Bow Street, who said, "Newman has been before me already. She was charged in an anonymous letter with infanticide; but on investigation, I found the letter was a malicious composition of this Mr. Elderton. The letter contained many revolting particulars, and charged Newman with the utmost barbarity." The letter was sent for and examined by Mr. Nihil, who at once recognized the writing as Newman's own; and she had evidently written it with the object of ruining Elderton's character, and to appear herself as the victim of a conspiracy. "So wily, ingenious, clever, and unprincipled a deceiver as this prisoner cannot, I submit, after all that has passed, be placed amongst others without endangering the subordination and discipline of the whole ward; and unless the committee are prepared to direct that she be kept altogether apart, I hope they will bring the matter to a crisis and send her abroad," wrote the governor.

For a month this violence of demeanour continued. She was found uniformly ungovernable. In her cell, when searched at regular intervals, clandestine writings were always discovered; in one of which was a long and critical examination of the character of the young Queen, who had just come to the throne. Mr. Nihil began to despair. "Julia Newman having continued her pretended madness up to the present time, to the frequent disturbance of the prison, and having committed innumerable breaches of order, it became my duty to put a stop to her proceedings," he says.

There was no chance of getting rid of her by transportation, as the last shipload of female convicts for that season had sailed, and there would be no other till the spring. "This being the case, I thought it necessary to converse with the prisoner, with a view of convincing her of the folly of carrying on her attempts, and warning her of the consequence of any further disturbance. I found her with her head fantastically dressed, and other ridiculous accompaniments. She would not hear me—darted out of her cell—stopped her ears, and uttered several violent exclamations. I made several attempts at expostulation, but in vain, and therefore I sent her to the dark." The surgeon thought her madness all deception. Again: "As my visits to Julia Newman are only signals for violence, I have abstained from visiting her in the dark, but inquired into her demeanour from the surgeon. He said that in his presence she affected to beat herself violently, and passionately

to wish for death. Afterwards, in a manner very unlike a mad-woman, she said she had been put into a dark cell, but it was a matter of perfect indifference to her whether she was in a dark or light cell. As the surgeon turned away she swore at him violently." Next day she hammered out her drinking-cup quite flat; and when being locked up for the night, asserted loudly that she was quite well, singing and shouting violently. There was an obvious effort of bravado in her madness. Still the same report comes from the surgeon: "J. N. continues her affected madness." The governor sends word he will let her out of the dark as soon as she promises to behave herself; and then Miss Neave, one of the lady visitors, goes to her by the governor's request, "in the hope that the conversation of a lady, against whom she could have no prejudice, might have a salutary effect." It proved ineffectual. The prisoner said she did not want to be preached to; would not listen to a word from Miss Neave, threw water at her, singing also, and shouting in a most powerful voice, so as to baffle all her attempts. Miss Neave was quite convinced the prisoner's insanity was feigned, and that she was only acting a part. At length she was removed to a sleeping cell in the infirmary for treatment, and here after a first paroxysm of rage, in which she smashed a basin into atoms, she assumed a timid aspect, and when spoken to by the taskmistress, wept like a child. "In the hope she might be a little softened," says Mr. Nihil, "I spoke to Miss Frazer, another of the visiting ladies, who agreed to go to Newman, saying that Julia had always received her with gentleness and apparent pleasure. On this occasion, however, Newman behaved with frightful violence, refusing to have any visit, dashing her can upon the table, and seeming as if she would strike Miss Frazer if she could. She had already blackened her own eyes, and she appeared so possessed by despair, that Miss Frazer thought she might do herself some serious injury, and that her hands should be secured."

Two days later we read: "Julia Newman is worse than ever. The doctors say she is not mad, at least Dr. Monroe did. Mr. Wade is doubtful." The governor himself was of opinion that she was only carrying on a deep scheme: He says, "I suggested to Mr. Wade, a day or two ago, that if any circumstance had arisen to make it probable that she was really deranged, we had better have another opinion, and send her to Bedlam; but there does not seem any ground for this step. But is the prisoner to defy all authority, now that the doctor has removed her from the dark to the infirmary? Certainly not. I therefore called upon the doctor to report whether there was

any danger in subjecting her to fresh punishment for fresh offences. The surgeon thinks there would be considerable risk in sending her to the dark cell on bread and water at present. Had I received a different answer, I should have proceeded forthwith to act upon the reports against her; but the committee will see how I am situated. She is too ill for punishment, and gets more violent and refractory than ever. Her acts of misconduct are: refusing to take her dinner, tearing up her prayer-book, singing loudly all the fore-part of the evening, and refusing her breakfast; grazing her nose, so that her face presents the most frightful appearance; asking for a can of water and then throwing it all over the taskmistress." No further steps are taken at the moment, beyond providing a special strait waistcoat to be used in case of emergency. But she still continues in the infirmary. About 7 o'clock that evening she is heard screaming loudly. After some time the governor sends to ask the surgeon if he was aware of it. Answer comes to say that he is ill in bed. Second message (oh, cunning governor-chaplain!): "Would it be objectionable to her health to remove her to the dark?" Surgeon, asking only to be left in peace, replies, "Nothing to prevent her being placed anywhere." This is all the governor wants. Off she goes to the dark, where she remains till she is reported to be singing as loudly as ever in her cell, and won't give up her rug. Next she is found lying on her back, with a handkerchief knotted tightly around her neck. As soon as she was better, she uttered the following impromptu:—

"What a pity hell's gates are not kept by dame King,
So surly a cur would let nobody in"—

Mrs. King being the infirmary warder. Then the assistant chaplain visited her, and was treated with the utmost insolence. She attacked Mrs. Dyett, another matron, and knocked the candlestick out of her hand, "triumphing at the same time at her exploit. Upon this I ordered her to be confined in the strait waistcoat made expressly for her under the directions of the surgeon." Some time after this the doctor visits her, and finds she has not only rid herself of the restraint, but she has also torn the waistcoat and most of her own clothes to atoms. Nevertheless, he thinks her so unwell that he removes her again to the infirmary. From this, in the course of a few days, she returns to her ward. The cell, however, could not hold her, and she soon forced her way out into the passage. Another new, and much stronger strait waistcoat, specially constructed, was now put on her by a couple of

male officers. Within an hour or two it was found slashed to ribbons, and on a close search a pair of scissors were discovered under her arm, accounting no doubt for the destruction.

Her next offence is to slap a matron in the face. Again the strait waistcoat is tried, this time a newer and a still stronger one; but it is found too large to be of any use, so the old method is resorted to and she is sent to the dark instead. For a time she appears tamed, and for quite a month she remains quiet, though still “unconformable.” She is, however, next reported for making three baskets from the straw of her mattress and part of the leaves of her Bible. She has written a long incoherent statement, probably with a stocking needle for pen, and some blood and water for ink. The warders when questioned showed great lack of desire to perform their duties. The truth is, the prisoner was very difficult to deal with, and they were all more or less afraid of her. “It is no wonder,” says the governor, “that a person of her strength, violence, and mental superiority, combined with reckless determination and obstinacy, should inspire these terrors; and I really cannot blame these officers. Without perpetually searching her person, as well as her bedding, it would be impossible to guard against the practices just reported, but this would occasion perpetual disturbance, leading to no good end, but doing much mischief in the Penitentiary.” Convinced that Millbank’s means of punishment are totally inadequate to attain the end of reforming her, or compelling obedience, the governor, to avoid constant worry, was content to leave her quite to herself, keeping her apart—in itself a heavy punishment—and restricting her to bread and water when she broke the rules.

Newman, however, would not consent to be forgotten. Her next offence was to refuse to give out her cell stool, and when the door was opened she flung it with great violence at her warder’s head, but the latter fortunately evaded the blow. The governor and the male officers together repaired to the spot in order to remove this most rebellious and dangerous prisoner to the dark. Her subsequent conduct was all of the same stamp. None but the most prominent features admit of being reported, her life here being in fact one continued system of insult and contempt. “In the dark cell she levelled her tin can at the surgeon, and the contents fell upon the taskmistress; had either of them been struck by the vessel it might have been of serious consequence. Her cell has since been examined, and several figures and other articles have been discovered. They exhibit extraordinary resource

and ingenuity, unhappily directed to the flagitious purpose of destroying property and manifesting contempt of authority.”

As soon as she went to the dark, the surgeon recommended that she should be removed to the infirmary, as she appeared much exhausted. “I thought it necessary to remonstrate against this,” says the governor, “as it appeared ill-timed lenity. I am very reluctant to liberate the prisoner from punishment for several reasons. Every fresh victory which under the plea of ill-health she has achieved, has been productive of increased insolence; and I have often lamented to see her indulged with arrowroot and similar niceties at the very time she has been defying all authority. The female officers entertain just apprehensions in waiting on her in the usual manner when restored to a sleeping cell, and with regard to the mode of punishing her on fresh offences I am quite perplexed. I might again send her to the dark, again to be restored in an unsubdued state to a sleeping cell, and so on continually, but I am obliged to resort to male assistance, and this I find by experience has a very injurious effect upon the other female prisoners, many of whom take it into their heads to brave all female authority, and require the men to be sent for before they will submit.” The governor thinks, “All prisoners whose insubordinate spirit does not yield to the ordinary method of treatment, should be reported as incorrigible and removed.... The moral injury they do to the residue by long continued examples of rebellion is incalculable.”

The assistant chaplain reported on 12th December, that he found Julia Newman exceedingly exhausted, and that the news of a letter from Trinidad to her mother failed to rouse her. She had only eaten a little of the crust of her bread, and he was alarmed as to the consequences which might follow if she were allowed to remain longer in the dark cell. Mr. Nihil was still firm. He says: “I remarked that her exhaustion was owing not to confinement in a dark cell, but to an obstinate refusal to eat her bread; and that I could not compel her to eat; if she would not eat unless humoured in this instance, she might as well refuse to eat unless I let her out of the prison, and that I should not be justified in complying from apprehension of danger to her health thus wilfully incurred. In like manner it seemed now as if she chose to starve herself because she was not allowed to throw stools at the heads of officers. But of course I have no desire to keep her under punishment a moment after she shows a disposition to conform to the regulations and maintain that quietness I am here to enforce.”

The surgeon was now sent for, and asked what he thought. He was afraid it would be necessary to remove her on the ground of safety, being persuaded she would sacrifice her life sooner than yield.

“If you think she cannot be kept under punishment with safety, I must submit to your opinion,” said the governor. “It is for you to determine that, otherwise I must distinctly object; for the duties of my office will not permit me to give in to her while she continues insubordinate.”

“It’s not the dark cell,” replied the doctor, “that constitutes her danger, but her persistent refusal to eat so long as she is kept there.”

“Very well then,” said the governor; “you may remove her. I cannot stand in the way and prevent you from acting on your own judgment.”

The surgeon went, and in five minutes returned.

“Well?”

“There’s not much the matter with her yet. Directly she saw me she began to sing and scream, with a voice as loud as if she had lived always on solid meat. She pelted me with bread—refused to come and have her pulse felt—abused, insulted me in every way, and finally said she was just as well in the dark as anywhere else.”

Under these circumstances it was decided to leave her where she was for the present, especially as a forcible removal might have created a general disturbance in the prison.

The next step in the case was her removal to Bethlehem Hospital as mad. But even this was misconstrued; for when, in the February following (1838), a discussion arose in the House of Lords as to alleged ill-treatment of prisoners in the Penitentiary, Newman’s case was mentioned as one in which, on the other hand, culpable leniency had been shown. Those who found fault declared that she had been sent to an asylum, not because she was mad, but because by birth a lady. The same people declared that it was well known that she was not mad, and that she never had been. The matrons at Bethlehem knew this well, and had told her to her face that she was only feigning; whereupon she ceased to feign. Then as it was clear she was not mad, it was equally clear that Bethlehem was not the place for her.

Accordingly, she was returned to the Penitentiary; and back she came, exhibiting throughout the most sullen contempt, and persistently refusing to open her lips. Directly she arrived she again began her tricks. Deliberately insolent refusals to execute the orders she received, and open contempt of

punishment, were the leading points on which she differed with the authorities. Again the governor urges on the committee that she may be removed by transportation, she being, under existing circumstances, both intractable and incorrigible. "If I am to maintain discipline where she is, it must be by entering perpetually into fresh and perplexing contests, the outcome of which may be very awful as respects the prisoner and exceedingly embarrassing as respects the institution," he writes. She next pretends to wish to lay hands upon herself, and her rug is found torn up and converted into a noose. It was hanging to a peg in her cell, like a halter ready for use. The authorities considered it advisable therefore to place her in restraint, in a new strait waistcoat which fitted close. In an hour or two she had torn it all to pieces. The next proceeding was to confine her hands in a very small pair of handcuffs, and to pinion her arms with strong tape. The waistcoat appearing to have been cut, she and her cell were searched, but no knife or scissors could be found, and only a piece of broken glass which she must have used for the purpose. She soon afterwards loosened the tape, and was then bound with strong webbing to the bedstead. Next morning she was found to have got rid of the handcuffs, had cut the webbing to pieces, broken her windows, and destroyed her bedding. One of the female warders was therefore sent to a surgical instrument maker's to purchase some effectual instrument of restraint, and returned with a muff-belt and handcuffs, all united, and ingeniously contrived to defeat the struggles of lunatics—quite a new invention. Before long she completely destroyed the muff and got rid of the handcuffs attached to it. She was next secured to the wall by a stout chain.

An officer, Mrs. Drago, who visited her just now, asked her why she should make such a figure of herself, pretending to be mad too, when she wasn't. "I've been advised to do it by my solicitor. If I can only get out, I'll soon manage to get my mother out. I'm a person of large fortune, and can make it worth any one's while to do me a good turn. Mrs. Bryant used to, but she's gone. That used to be my larder, over there,"—pointing to the window blind. Her evident object was to tamper with Mrs. Drago, and this of itself gave evidence that she could not be very mad.

The chain by which she was now confined was put round her waist, passed through a ring in the wall, and padlocked. "This security was of short duration," says the governor, "before morning she had slipped through the chain. It was again placed on her in a more effectual manner, under,

instead of outside her clothes.... As she had destroyed so much of her bedding I ordered her to have no more bedclothes. In the evening she made the most violent demand for a blanket, and said she was dying of cramp and cold.... As a matter of discipline I thought it my duty to refuse the blanket unless ordered by the surgeon. When she heard this she quite frightened the female officer with the frightful and horrible imprecations she uttered.”

In consequence of her getting out of her chain the manufacturer of restraints for the insane came to devise some fresh expedient for confining her. He made a pair of leather sleeves of extra strength, and fitted them himself. They came up to her shoulders, were strapped across, then also strapped round her waist, and again below, fastening her hands close to her side.

Next morning the taskmistress took the sleeves to the governor. In the night Julia had extricated herself from them, and then cut them into ribbons, using a piece of glass she had secreted. A new strait waistcoat was now made for her, and she was specially measured by the manufacturer already mentioned; but it could not be ready before the morning, so she was left without restraint that night. Many of the officials were afraid she would commit suicide, but not Mr. Nihil. However, next morning she was found with her clothes torn to rags, and part tied tightly round her neck. As a measure of precaution the new strait waistcoat was then put on, after she had been first carefully searched. A strong collar was also put round her neck to prevent her biting at the waistcoat with her teeth. “I lament exceedingly,” says Mr. Nihil, “the necessity of resorting to such measures; but what is to be done with this violent and obstinate girl?” Next morning she was found to have got at the waistcoat with her teeth in spite of the collar, then one hand loose, after which she relieved herself of the apparatus altogether.

She was now left free, while fresh devices were sought to restrain her, but in the midst of it all came an order for her removal to Van Diemen’s Land, whither she was in a day or two conveyed in the convict ship *Nautilus*. And here the curtain falls upon her stormy life.

CHAPTER IX

THE MILLBANK CALENDAR

Millbank as a depot for convicts sentenced to transportation—Identified with a large proportion of the criminals of the day—Notorious robbers who spent some period of their sentence there—Burglars—Jewel robberies—The receivers of stolen goods—Thieves at the Custom House—Great Gold Dust robbery—"Money Moses"—Fraudulent shipwreckers—Forgeries to obtain stock—Gentlemen convicts—Gigantic commercial fraud—A modern Bluebeard—A racing parson—"Men of the world"—Striking the Queen—Bank of England robbed—Cauty, "father of the robbers"—A famous receiver—The Police Officers' gang—Some female thieves—Alice Grey or "Brazil"—Emily Laurence—Daring thefts.

For some time past Millbank had doubled its uses; a penitentiary for reformation and a depot for those awaiting transportation quickly beyond the seas. It had ceased to receive only selected prisoners and worked under the general system of secondary punishment; and many of the most notorious criminals of the day made it a temporary resting-place. We have seen in previous chapters how persistently turbulent were the inmates of the prison and we shall better understand this by a survey of the most prominent offenders of the time, and the misdeeds for which they were in durance *en route* to penal exile. Criminal methods for the most part remained unchanged or the same crimes flourished under different names.

Although highway robbery was now nearly extinct, and felonious outrages in the streets were rare, thieves or depredators were by no means idle or unsuccessful. Bigger "jobs" than ever were planned and attempted, as in the burglary at Lambeth Palace, when the thieves were fortunately disappointed, the archbishop having, before he left town, sent his plate-chests, eight in number, to the silversmith's for greater security. The jewellers were always a favourite prey of the London thieves. Shops were broken into, as when that of Grimaldi and Johnson, in the Strand, was

robbed of watches to the value of £6,000. Where robbery with violence was intended, the perpetrators had now to adopt various shifts and contrivances to secure their victim. No more curious instance of this ever occurred than the assault made by one Howard upon a Mr. Mullay, with intent to rob him. The latter had advertised, offering a sum of £1,000 to any one who would introduce him to some mercantile employment. Howard replied, desiring Mr. Mullay to call upon him in a house in Red Lion Square. Mr. Mullay went, and a second interview was agreed upon, when a third person, Mr. Owen, through whose interest an appointment under Government was to be obtained for Mullay, would be present. Mr. Mullay called again, taking with him £500 in cash. Howard discovered this, and his manner was very suspicious; there were weapons in the room—a long knife, a heavy trap-ball bat, and a poker. Mr. Mullay became alarmed, and as Mr. Owen did not appear, withdrew; Howard, strange to say, making no attempt to detain him; probably because Mullay promised to return a few days later, and to bring more money. On this renewed visit Mr. Owen was still absent, and Mr. Mullay agreed to write him a note from a copy Howard gave him. While thus engaged, Howard thrust the poker into the fire. Mullay protested, and then Howard, under the influence of ungovernable rage, as it seemed, jumped up, locked the door, and attacked Mullay violently with the trap-ball bat and knife. Mullay defended himself, and managed to break the knife, but not before he had cut himself severely. A life and death struggle ensued. Mullay cried “Murder!” Howard swore he would finish him, but proved the weaker of the two, and Mullay got him down on the floor. By this time the neighbours were aroused, and several people came to the scene of the affray. Howard was secured, given into custody, and committed for trial. The defence he set up was, that Mullay had used epithets towards him while they were negotiating a business matter, and that, being of an irritable temper, he had struck Mullay, after which a violent scuffle took place. It was, however, proved that Howard was in needy circumstances, and that his proposals to Mr. Mullay could only have originated in a desire to rob him. He was found guilty of an assault with intent, and sentenced to transportation for fourteen years.

At no period could thieves in London or elsewhere have prospered had they been unable to dispose of their ill-gotten goods. The trade of fence, or receiver, therefore, is very nearly as old as the crimes which it so obviously fostered. One of the most notorious, and for a time most successful

practitioners in this illicit trade, passed through Newgate into Millbank and beyond. The name of Ikey Solomons was long remembered by thief and thief-taker. He began as an itinerant street vendor at eight years of age, at ten he passed bad money, at fourteen he was a pickpocket and a “duffer,” or a seller of sham goods. He early saw the profits in purchasing stolen goods, but could not embark in it at first for want of capital. He was taken up when still in his teens for stealing a pocket-book, and was sentenced to transportation, but did not get beyond the hulks at Chatham. On his release an uncle, a slopseller in Chatham, gave him a situation as “barker,” or salesman, at which he realized £150 within a couple of years. With this capital he returned to London and set up as a fence. He had such great aptitude for business, and such a thorough knowledge of the real value of goods, that he was soon admitted to be one of the best judges known of all kinds of property, from a glass bottle to a five hundred guinea chronometer. But he never paid more than a fixed price for all articles of the same class, whatever their intrinsic value. Thus, a watch was paid for as a watch, whether it was of gold or silver; a piece of linen as such, whether the stuff was coarse or fine. This rule in dealing with stolen goods continues to this day, and has made the fortune of many since Ikey.

Solomons also established a system of provincial agency, by which stolen goods were passed on from London to the seaports, and so abroad. Jewels were re-set, diamonds re-faced; all marks by which other articles might be identified, the selvages of linen, the stamps on shoes, the number and names on watches, were carefully removed or obliterated after the goods passed out of his hands. On one occasion the whole of the proceeds of a robbery from a boot shop was traced to Solomons’; the owner came with the police, and was morally convinced that it was his property, but could not positively identify it, and Ikey defied them to remove a single shoe. In the end the injured bootmaker agreed to buy back his stolen stock at the price Solomons had paid for it, and it cost him about a hundred pounds to re-stock his shop with his own goods.

As a general rule Ikey Solomons confined his purchases to small articles, mostly of jewelry and plate, which he kept concealed in a hiding-place with a trap-door just under his bed. He lived in Rosemary Lane, and sometimes he had as much as £20,000 worth of goods secreted on the premises. When his trade was busiest he set up a second establishment, at the head of which, although he was married, he put another lady, with

whom he was on intimate terms. The second house was in Lower Queen Street, Islington, and he used it for some time as a depot for valuables. But it was eventually discovered by Mrs. Solomons, a very jealous wife, and this, with the danger arising from an extensive robbery of watches in Cheapside, in which Ikey was implicated as a receiver, led him to think seriously of trying his fortunes in another land. He was about to emigrate to New South Wales, when he was arrested at Islington and committed to Newgate on a charge of receiving stolen goods. While thus incarcerated he managed to escape from custody, but not actually from gaol, by an ingenious contrivance which is worth mentioning. He claimed to be admitted to bail, and was taken from Newgate on a writ of *habeas* before one of the judges sitting at Westminster. He was conveyed in a coach driven by a confederate, and under the escort of a couple of turnkeys. Solomons, while waiting to appear in court, persuaded the turnkeys to take him to a public-house, where all might “refresh.” While there he was joined by his wife and other friends. After a short carouse the prisoner went into Westminster, his case was heard, bail refused, and he was ordered back to Newgate. But he once more persuaded the turnkeys to pause at the public, where more liquor was consumed. When the journey was resumed, Mrs. Solomons accompanied her husband in the coach. Half-way to Newgate she was taken with a fit. One turnkey was stupidly drunk, and Ikey persuaded the other, who was not much better, to let the coach change and pass Petticoat Lane *en route* to the gaol, where the suffering woman might be handed over to her friends. On stopping at a door in this low street, Ikey jumped out, ran into the house, slamming the door behind him. He passed through and out at the back, and was soon beyond pursuit. By and by the turnkeys, sobered by their loss, returned to Newgate alone, and pleaded in excuse that they had been drugged.

Ikey left no traces, and the police could hear nothing of him. He had in fact gone out of the country, to Copenhagen, whence he passed on to New York. There he devoted himself to the circulation of forged notes. He was also anxious to do business in watches, and begged his wife to send him over a consignment of cheap “righteous” watches, or such as had been honestly obtained, and not “on the cross.” But Mrs. Solomons could not resist the temptation to dabble in stolen goods, and she was found shipping watches of the wrong category to New York. For this she received a sentence of fourteen years’ transportation, and was sent to Van Diemen’s

Land. Ikey joined her at Hobart Town, where they set up a general shop, and soon began to prosper. He was, however, recognized, and ere long an order came out from home for his arrest and transfer to England, which presently followed, and he again found himself an inmate of Newgate, waiting trial as a receiver and a prison-breaker. He was indicted on eight charges, two only of which were substantiated, but on each of them he received a sentence of seven years' transportation. At his own request he was reconveyed to Hobart Town, where his son had been carrying on the business. Whether Ikey was "assigned" to his own family is not recorded, but no doubt he succeeded to his own property when the term of servitude had expired.

No doubt, on the removal of Ikey Solomons from the scene, his mantle fell upon worthy successors. There was an increase rather than an abatement in jewel and bullion robberies in the years immediately following, and the thieves seem to have had no difficulty in disposing of their spoil. One of the largest robberies of its class was that effected upon the Custom House in the winter of 1834. A large amount of specie was nearly always retained here in the department of the receiver of fines. This was known to some clerks in the office, who began to consider how they might lay hands on a lot of cash. Being inexperienced, they decided to call in the services of a couple of professional housebreakers, Jordan and Sullivan, who at once set to work in a business-like way to obtain impressions of the keys of the strong room and chest. But before committing themselves to an attempt on the latter, it was of importance to ascertain how much it usually contained. For this purpose Jordan waited on the receiver to make a small payment, for which he tendered a fifty-pound note. The chest was opened to give change, and a heavy tray lifted out which plainly held some £4,000 in cash. Some difficulty then arose as to gaining admission to the strong room, and it was arranged that a man, May, another Custom House clerk, should be introduced into the building, and secreted there during the night to accomplish the robbery. May was smuggled in through a window on the esplanade behind an opened umbrella. When the place was quite deserted he broke open the chest and stole £4,700 in notes, with a quantity of gold and some silver. He went out next morning with the booty when the doors were re-opened, and attracted no attention. The spoil was fairly divided; part of the notes were disposed of

to a travelling “receiver,” who passed over to the Continent and there cashed them easily.

This occurred in November 1834. The Custom House officials were in a state of consternation, and the police were unable at first to get on the track of the thieves. While the excitement was still fresh, a new robbery of diamonds was committed at a bonded warehouse in the immediate neighbourhood, on Custom House Quay. The jewels had belonged to a Spanish countess recently deceased, who had sent them to England for greater security on the outbreak of the first Carlist war. At her death the diamonds were divided between her four daughters, but only half had been claimed, and at the time of the robbery there were still £6,000 worth in the warehouse. These were deposited in an iron chest of great strength on the second floor. The thieves, it was supposed, had secreted themselves in the warehouse during business hours, and waited till night to carry out their plans. Some ham sandwiches, several cigar-ends, and two empty champagne bottles were found on the premises next day, showing how they had passed their time. They had had serious work to get at the diamonds. It was necessary to force one heavy door from its hinges, and to cut through the thick panels of another. The lock and fastenings of the chest were forced by means of a “jack,” an instrument known to housebreakers, which, if introduced into a keyhole, and worked like a bit and brace, will soon destroy the strongest lock. The thieves were satisfied with the diamonds; they broke open other cases containing gold watches and plate, but abstracted nothing.

The police were of opinion that these robberies were both the work of the same hand. But it was not until the autumn that they traced some of the notes stolen from the Custom House to Jordan and Sullivan. About this time also suspicion fell upon Huey, one of the clerks, who was arrested soon afterwards, and made a clean breast of the whole affair. There was a hunt for the two well-known housebreakers, who were eventually heard of at a lodging in Kennington. But they at once made tracks, and took up their residence under assumed names in a tavern in Bloomsbury. The police lost all trace of them for some days, but at length Sullivan’s brother was followed from the house in Kennington to the above-mentioned tavern. Both the thieves were now apprehended, but only a small portion of the lost property was recovered, notwithstanding a minute search through the room they had occupied. After their arrest, Jordan’s wife and Sullivan’s brother

came to the inn, and begged to be allowed to visit this room; but their request, in spite of their earnest entreaties, was refused, at the instigation of the police. A few days later a frequent guest at the tavern arrived, and had this same room allotted to him. A fire was lit in it, and the maid in doing so threw a lot of rubbish, as it seemed, which had accumulated under the grate, on top of the burning coals. By and by the occupant of the room noticed something glittering in the centre of the fire, which, to inspect more closely, he took out with the tongs. It was a large gold brooch set in pearls, but a portion of the mounting had melted with the heat. The fire was raked out, and in the ashes were found seven large and four dozen small brilliants, also seven emeralds, one of them of considerable size. A part of the “swag” stolen from the bonded warehouse was thus recovered, but it was supposed that a number of the stolen notes had perished in the fire.

The condign punishment meted out to these Custom House robbers had no deterrent effect seemingly. Within three months, three new and most mysterious burglaries were committed at the West End, all in houses adjoining each other. One was occupied by the Portuguese ambassador, who lost a quantity of jewelry from an escritoire, and his neighbours lost plate and cash. Not the slightest clue to these large affairs was ever obtained, but it is probable that they were “put up” jobs, or managed with the complicity of servants. The next year twelve thousand sovereigns were cleverly stolen in the Mile End Road.

The gold-dust robbery of 1839, the first of its kind, was cleverly and carefully planned with the assistance of a dishonest employee. A young man named Caspar, clerk to a steamship company, learned through the firm’s correspondence that a quantity of gold-dust brought in a man-of-war from Brazil had been transhipped at Falmouth for conveyance to London. The letter informed him of the marks and sizes of the cases containing the precious metal, and he with his father arranged that a messenger should call for the stuff with forged credentials, thus anticipating the rightful owner. The fraudulent messenger, by the help of young Caspar, established his claim to the boxes, paid the wharfage dues, and carried off the gold-dust. Presently the proper person arrived from the consignees, but found the gold-dust gone. The police were at once employed, and after infinite pains they discovered the person, one Moss, who had acted as the messenger. Moss was known to be intimate with the elder Caspar, father of the clerk to the steamship company, and these facts were deemed sufficient to justify

the arrest of all three. They also ascertained that a gold-refiner, Solomons, had sold bar gold to the value of £1,200 to certain bullion dealers. Solomons was not straightforward in his replies as to where he got the gold, and he was soon placed in the dock with the Caspars and Moss. Moss presently turned approver, and implicated "Money Moses," another Jew, for the whole affair had been planned and executed by members of the Hebrew persuasion. "Money Moses" had received the stolen gold-dust from Moss' father-in-law, Davis, or Isaacs, who was never arrested, and passed it on to Solomons by his daughter, a widow named Abrahams. Solomons was now also admitted as a witness, and his evidence, with that of Moss, secured the transportation of the principal actors in the theft. In the course of the trial it came out that almost every one concerned except the Caspars had endeavoured to defraud his accomplices. Moss peached because he declared he had been done out of the proper price of the gold-dust; but it was clear that he had tried to appropriate the whole of the stuff, instead of handing it or the price of it back to the Caspars. "Money Moses" and Mrs. Abrahams imposed upon Moss as to the price paid by Solomons; Mrs. Abrahams imposed upon her father by abstracting a portion of the dust and selling it on her own account; Solomons cheated the whole lot by retaining half the gold in his possession, and only giving an I. O. U. for it, which he refused to redeem on account of the row about the robbery.

Moses, it may be added, was a direct descendant of the Ikey Solomons already mentioned. He was ostensibly a publican, and kept the Black Lion in Vinegar Yard, Drury Lane, where secretly he did business as one of the most daring and successful fencers ever known in the metropolis. His arrest and conviction cast dismay over the whole gang of receivers, and for a time seriously checked the nefarious traffic. It may be added that prison life did not agree with "Money Moses;" a striking change came over his appearance while in prison. Before his confinement he had been a sleek round person, addicted obviously to the pleasures of the table. He did not thrive on prison fare, now more strictly meagre, thanks to the inspectors and the more stringent discipline, and before he embarked for Australia to undergo his fourteen years, he was reported to have fallen away to a shadow.

As the century advanced crimes of fraud increased. They were not only more numerous, but on a wider scale. The most extensive and systematic robberies were planned so ingeniously and carried out so cleverly that they long escaped detection. Among the earliest of the big operators in

fraudulent finance was Edward Beaumont Smith who uttered false exchequer bills to an almost fabulous amount. Another fraud greatly developed was the wilful shipwreck and casting away of a ship which with her cargo, real or imaginary, had been heavily insured. The *Dryad* was a brig owned principally by two persons named Wallace, one a seaman, the other a merchant. She was freighted by the firm of Zulueta and Co. for a voyage to Santa Cruz. Her owners insured her for a full sum of £2,000, after which the Wallaces insured her privily with other underwriters for a second sum of £2,000. After this, on the faith of forged bills of lading, the captain, Loose by name, being a party to the intended fraud, they obtained further insurances on goods never shipped. It was fully proved in evidence that when the *Dryad* sailed she carried nothing but the cargo belonging to Zulueta and Co. Yet the Wallaces pretended to have put on board quantities of flannels, cloths, cotton prints, beef, pork, butter, and earthenwares, on all of which they effected insurances. Loose had his instructions to cast away the ship on the first possible opportunity, and from the time of his leaving Liverpool he acted in a manner which excited the suspicions of the crew. The larboard pump was suffered to remain choked up, and the long-boat was fitted with tackles and held ready for use at a moment's notice. The ship, however, met with exasperatingly fine weather, and it was not until the captain reached the West India Islands that he got a chance of accomplishing his crime. At a place called the Silver Keys he ran the ship on the reef. But another ship, concluding that he was acting in ignorance, rendered him assistance. The *Dryad* was got off, repaired, and her voyage renewed to Santa Cruz. He crept along the coast close in shore, looking for a quiet spot to cast away the ship, and at last, when within fifteen miles of port, with wind and weather perfectly fair, he ran her on to the rocks. Even then she might have been saved, but the captain would not suffer the crew to act. Nearly the whole of the cargo was lost as well as the ship. The captain and crew, however, got safely to Jamaica, and so to England, the captain dying on the voyage home.

The crime soon became public. Mate, carpenter, and crew were eager to disavow complicity, and voluntarily gave information. The Wallaces were arrested, committed to Newgate, and tried at the Old Bailey. The case was clearly proved against them, and both were sentenced to transportation for life. While lying in Newgate, awaiting removal to the convict ship, both prisoners made full confessions. According to their own statements the loss

of the *Dryad* was only one of six intentional shipwrecks with which they had been concerned. The crime of fraudulent insurance they declared was very common, and the underwriters must have lost great sums in this way. The merchant Wallace said he had been led into the crime by the advice and example of a city friend who had gone largely into this nefarious business; this Wallace added that his friend had made several voyages with the distinct intention of superintending the predetermined shipwrecks. The other Wallace, the sailor, also traced his lapse into crime to evil counsel. He was an honest sea-captain, he said, trading from Liverpool, where once he had the misfortune to be introduced to a man of wealth, the foundations of which had been laid by buying old ships on purpose to cast them away. This person made much of Wallace, encouraged his attentions to his daughter, and tempted him to take to fraudulent insurance as a certain method of achieving fortune. Wallace's relations warned him against his Liverpool friend, but he would not take their advice, and developing his transactions, ended as we have seen.

A clergyman nearly a century later followed in the steps of Dr. Dodd, but under more humane laws did not lose his life. The Rev. W. Bailey, LL. D., was convicted at the Central Criminal Court, in February, 1843, of forgery. A notorious miser, Robert Smith, had recently died in Seven Dials, where he had amassed a considerable fortune. But among the charges on the estate he left was a promissory note for £2,875, produced by Dr. Bailey, and purporting to be signed by Smith. The executors to the estate disputed the validity of this document. Miss Bailey, the doctor's sister, in whose favour the note was said to have been given, then brought an action against the administrators, and at the trial Dr. Bailey swore that the note had been given him by Smith. The jury did not believe him, and the verdict was for the defendants. Subsequently Bailey was arrested on a charge of forgery, and after a long trial found guilty. His sentence was transportation for life.

A gigantic conspiracy to defraud was discovered in the following year, when a solicitor named William Henry Barber, Joshua Fletcher, a surgeon, and three others were charged with forging wills for the purpose of obtaining unclaimed stock in the funds. There were two separate affairs. In the first a maiden lady, Miss Slack, who was the possessor of two separate sums in consols, neglected through strange carelessness on her own part and that of her friends to draw the dividends on more than one sum. The other, remaining unclaimed for ten years, was transferred at the end of that

time to the commissioners for the reduction of the National Debt. Barber, it was said, became aware of this, and he gained access to Miss Slack on pretence of conveying to her some funded property left her by an aunt. By this means her signature was obtained; a forged will was prepared bequeathing the unclaimed stock to Miss Slack; a note purporting to be from Miss Slack was addressed to the governor of the Bank of England, begging that the said stock might be handed over to her, and a person calling herself Miss Slack duly attended at the bank, where the money was handed over to her in proper form. A second will, also forged, was propounded at Doctors' Commons as that of a Mrs. Hunt of Bristol. Mrs. Hunt had left money in the funds which remained unclaimed, and had been transferred, as in Miss Slack's case. Here again the money, with ten years' interest, was handed over to Barber and another calling himself Thomas Hunt, an executor of the will. It was shown that the will must be a forgery, as its signature was dated 1829, whereas Mrs. Hunt actually died in 1806. A third similar fraud to the amount of £2,000 was also brought to light. Fletcher was the moving spirit of the whole business. It was he who had introduced Barber to Miss Slack, and held all the threads of these intricate and nefarious transactions. Barber and Fletcher were both transported for life, although Fletcher declared that Barber was innocent, and had no guilty knowledge of what was being done. Barber was subsequently pardoned, but was not replaced on the rolls as an attorney till 1855, when Lord Campbell delivered judgment on Barber's petition, to the effect that "the evidence to establish his (Barber's) connivance in the frauds was too doubtful for us to continue his exclusion any longer."

Foremost on the Millbank calendar stand those of the upper classes, who were afterwards styled in Australia, "specials," or "gentlemen convicts." It was said that of these there were at one and the same time in Millbank two captains, a baronet, four clergymen, a solicitor, and one or two doctors of medicine. The tradition is *ben trovato*, if not exactly true. Of course in such a prison there would be representatives of every class, and although the percentage of gentlemen who commit crimes is in the long run far below that of the middle or lower classes, there is no special natural law by which the blue blood is exempted from the ordinary weakness and imperfections of humanity. Most of these genteel people who found themselves in Millbank owed their fate to forgery or fraud. There was the old gentleman of seventy years of age, who had been a mayor in a north-

country manufacturing town, and who had forged and defrauded his nieces out of some £360,000. The officers spoke of him as “a fine old fellow,” who took to his new task of tailoring like a man, and who could soon turn out a soldier’s great-coat as well as any one in the prison. Another convict of this stamp was Mr. T., a Liverpool merchant in a prosperous business, who was a forger on quite a colossal scale. It was proved at his trial that he had forged thirty bills of exchange, amounting to a total of £32,811, and that he had a guilty knowledge of one hundred and fifteen other bills, which were valued in all at £133,000. In his defence it was urged that he had taken up many bills before they were due, and would undoubtedly have taken up all had not the discovery of one forgery exposed his frauds and put an end suddenly to his business. Still, said his counsel, his estate could have paid from twelve to fifteen shillings in the pound, and it could hardly be maintained against him that he had any moral intention of defrauding. Judge Talfourd appears to have commented strongly, in summing up, upon such an idea of morality as this; and then and there sentenced Mr. T. to transportation for life. Unfortunately for the criminal himself, his sentence came a little too late: had he gone out to New South Wales twenty years earlier, with his commercial aptitude and generally unscrupulous plan of action, he would have run well to the front in the race for wealth amidst his felon competitors.

More contemptible, but not less atrocious, was the conduct of Mr. B., who had taken his diploma as surgeon, and practised as such in many parts of the country. His offence was bigamy on a large scale: he was guilty of a series of heartless deceptions, so that it was said the scene in court when this Blue Beard was finally arraigned, and all his victims appeared against him, was painful in the extreme. He was brought to book by the friend of a young lady to whom he was trying to pay his attentions. This gentleman, being somewhat suspicious, made inquiries, and discovered enough to have him arrested. Four different certificates of marriage were put in evidence. It seemed that, although already married in Cornwall, he moved thence and took a practice in another county, where he became acquainted with a lady residing in the neighbourhood, who had a little money of her own. He made her an offer, married her, and then found that by marriage she forfeited the annuity she previously enjoyed. After a short time he deserted her, having first obtained possession of all her clothes, furniture, trinkets, and so forth, which he sold. His next affair was on board an East Indiaman bound to

Calcutta, in which he sailed as surgeon—wishing doubtless to keep out of the way for a while. Among the passengers was a Miss B., only fifteen years of age, who was going out to the East with her mother and sisters. He succeeded in gaining her affections, and obtained the mother's consent to the marriage on arrival at Calcutta. He made out, by means of fraudulent documents prepared on purpose, that he had inherited £5,000 from his father, and offered to settle £3,000 on his bride. The marriage came off in due course at Calcutta, and then the happy pair returned to England. Soon after their arrival, Mr. B. deserted his new wife in a hotel in Liverpool, and after that he began the affair which led to his detection.

Mr. B. is remembered in Millbank as a man of considerable attainments. He was well educated, and spoke several languages. One of his favourite feats was to write the Lord's Prayer on a scrap of paper not larger than a sixpence, in five different languages. In his appearance there was nothing to justify his success with the female sex. If anything he was plain, thereby supporting Wilkes, who asserted that he was only five minutes behind the best looking man in a room. In complexion Mr. B. was dark, almost swarthy; in figure, stout. He could not be called even gentlemanlike in his bearing. But he had a good address; spoke well and readily; and he was extremely shrewd and clever. As a prisoner his conduct was all that could be desired. He passed on like the rest eventually to Australia, where he again married.

The clergymen whose crimes brought them to Millbank were rather commonplace characters; weak men, mostly, who could not resist their evil propensities. Of course they were not always what they pretended to be. One of the most noteworthy was the Honourable and Reverend Mr.—, who was really an ordained minister of the Church of England, and had held a good living in Ireland, worth £1,400 a year. But he was passionately addicted to the turf, and attended every meeting. His luck varied considerably—sometimes up and sometimes down. He came at length to lose every shilling he had in the world at Manchester races. The inveterate spirit of gambling was so strong within him that he was determined to try his luck again. He had been staying at a friend's house—a careless man, of good means, who left his cheque-book too accessible to others. The Honourable and Reverend Mr.— went straight from the course to his friend's study, filled in a cheque, forged the signature, cashed the same *en route* to the races, and recommenced operations forthwith. Meanwhile his

friend went also, quite by accident, to the bank for cash. They told him a large cheque had only just been paid to his order.

“I drew no cheque!” he exclaimed.

“Why, here it is?”

“But that is not my signature.”

Whereupon the honourable and reverend gentleman was incontinently arrested in the middle of the grand stand. His sentence was transportation for life, and from Millbank he passed on in due course to the antipodes. He was a poor creature at the best times, and under prison discipline became almost imbecile and useless. After a long interval he gained a ticket-of-leave, and was last heard of performing divine worship at an out-station at the rate of a shilling a service.

Of a very different kidney was the Rev. A. B., a man of parts, clever and dexterous, who succeeded in everything he tried. He spoke seven languages, all well; and when in prison learned with ease to tailor with the best.

Somewhat similar to him in character was the Rev. Dr. B., a doctor of divinity, according to his own statement, whose career of villainy was of long duration. This man had served several long sentences, which in no wise prevented his return to crime. He also was a man of superior education, who could read Hebrew, so the warders said, as easily as the chaplain gave the morning prayers. Dr. B. was discovered one day writing in Hebrew characters in his copy-book at school time, just when a party of distinguished visitors were inspecting the prison. One of them, surprised, said, “What! do you know Hebrew?”

“Yes,” was the impudent reply, “I expect a great deal better than you do.”

A better story still is told of this man later, when set at large on ticket-of-leave. Through barefaced misrepresentation he had been permitted to take the duty of a beneficed clergyman during his absence from the parish. In due course came an invitation to dine with the local magnate, whose place was some distance from the rectory. Our ex-convict clergyman ordered a carriage and pair from the neighbouring town, and drove to the hall in state. As he alighted from the carriage, his footman, hired also for the occasion, recognized his face in the blaze of light from the open door. “Blow me, if that ain’t Slimy B., the chaplain’s man, who did his ‘bit’ along

with us at the ‘Steel,’” he exclaimed. Both coachman and lacquey were ex-convicts too, and after that the secret soon leaked out. The reverend doctor found his country parish rather too hot to hold him. Some of his later misdeeds consisted in decoying and plundering governesses in search of situations; he also established himself in various neighbourhoods as a schoolmaster, and more than once succeeded in obtaining church duty.

Of the military men, the most prominent was a certain Captain C., who belonged to an excellent family, but who had fallen very low, going by degrees from bad to worse. He was long known as a notorious gambler and loose liver. At length, unable to earn enough money to gratify his vices by fair means, he sought to obtain it by foul, and became allied to a mob of ruffians who styled themselves “Men of the World.” In other words, he took to obtaining goods under false pretences. Captain C. was principally useful as a respectable reference to whom his accomplices could apply when they entered a strange shop and ordered goods. “Apply to my friend Captain So-and-so, of such-and-such a square; he has known me for years.” Reference is made to a house gorgeously furnished, an establishment in every way *bien monté*, the master thereof a perfect gentleman. “Do I know Mr. ——? Oh, dear, yes; I have known him for a long time. He is one of my most intimate friends. You may trust him to any amount.” Unhappily the pitcher goes often to the well, but it is broken at last. And at this game of fraud the circle of operations grows naturally ever narrower. At length the whole conspiracy became known to the police, and Captain C. found himself ere long in Millbank. He seems to have been treated there rather too well for an idle, good-for-nothing rascal, who would do no work, and who expected—so said the officers—to be always waited upon. Undoubtedly he was pampered, had his books from the deputy-governor’s own library, and extra food. More than this, his wife—a lady once, also of good family, but fallen with her husband to an abyss of infamy and depravity which made her notorious for wickedness even in this wicked city—was frequently admitted to visit him, coming always in silks and satins and flaunting attire, which was sadly out of keeping with her husband’s temporary abode.

Another ex-military officer was Mr. P., whose offence at the time created wide-spread and righteous indignation. This was the gentleman who for some occult reason of his own, committed the atrocity of striking our young Queen in the face just as she was leaving the palace. The weapon he used was a thin cane, but the blow fell lightly, as the lady-in-waiting

interposed. No explanation was offered, except that the culprit was out of his mind. This was the defence set up by his friends, and several curious facts were adduced in proof of insanity. One on which great stress was laid, was that he was in the habit of chartering a hansom to Wimbledon Common daily, where he amused himself by getting out and walking as fast as he could through the furze. But this line of defence broke down, and the jury found the prisoner guilty. He himself, when he came to Millbank, declared that he had been actuated only by a desire to bring disgrace on his family and belongings. In some way or other he had seriously disagreed with his father, and he took this curious means to obtain revenge. The wantonness of the outrage called for severe punishment, and Mr. P. was sentenced to seven years' transportation; but the special punishment of whipping was omitted, on the ground of the prisoner's position in life. Whether it was that the mere passing of this sentence was considered sufficient, or that the Queen herself interposed with gracious clemency, this Mr. P. at Millbank was treated with exceptional leniency and consideration. By order of the Secretary of State he was exempted from most of the restrictions by which other prisoners were ruled. He was not lodged in a cell, but in two rooms adjoining the infirmary, which he used as sitting and bedroom respectively; he did not wear the prison dress, and he had, practically, what food he liked. He seems to have awakened a sort of sympathy on the part of the warders who attended him; probably because he was a fine, tall fellow, of handsome presence and engaging manners, and because also they thought his offence was one of hot-headed rashness rather than premeditated wickedness. Eventually Mr. P. went to Australia.

These are a few of the most prominent of the criminals who belonged to the upper or professional classes. Others there were, and will be, always; but as a rule such cases are not numerous. Speaking in general terms of the "gentleman convict," as viewed from the gaoler's side, he is an ill-conditioned, ill-conducted prisoner. When a man of energy and determination, he wields a baleful influence around and among other prisoners if proper precautions are not taken against inter-communications. His comrades look up to him, especially if he is disposed to take the place of a ringleader and to put himself forward as the champion of insolence and insubordination. They render him too, a sort of homage in their way, scrupulously retaining the titles which have been really forfeited, if indeed they were ever earned. Mr. So-and-so, Major This and Captain That, are the

forms of address used by Bill Sykes when speaking of or to a gentleman convict. For the rest, if not openly mutinous, these “superior” felons are chiefly remarkable for their indifference to prison rules, especially those which insist on cleanliness and neatness in their cells. Naturally, by habits and early education they are unskilled in sweeping and washing, and keeping bright their brass-work and their pewter utensils. In these respects the London thief or hardened habitual criminal, who knows the interior of half the prisons in the country, has quite the best of it.

Somewhat lower in the social scale, but superior also to the common burglar or thief, are those who occupy positions of trust in banks or city offices, and for whom the temptation of an open till or slack administration are too strong to be resisted. A good instance of this class was Mr. B., who was employed as a clerk in the Bank of England. With the assistance of a confederate who personated a Mr. Oxenford—there was no special reason for selecting this gentleman, in preference to any other Smith, Brown or Jones—he made over to himself stock to the amount of £8,000 standing in Mr. Oxenford’s name. His accomplice was a horse jobber. The stock in question was paid by a cheque on Lubbock’s for the whole sum, whither they proceeded, asking to have it cashed—all in gold. There were not eight thousand sovereigns available at the moment, but they received instead eight Bank of England notes for £1,000 each, which they promptly changed at the bank for specie, taking with them a carpet-bag to hold the money. The bag when filled was found to be too heavy to lift, but with the assistance of the bank porters it was got into a cab. They now drove to Ben Caunt’s public in St. Martin’s Lane, and there secured a room for the night; the money was transferred to their portmanteaus, several in number, and next morning they took an early train to Liverpool *en route* for New York. The steamer *Britannia*, in which they took passage, started almost immediately, and they soon got clear out of the country. But the detectives were on their track: within a day or two, officers followed them across the Atlantic, and landing at Halifax found the fugitives had gone on to Boston and New York. They were followed thither, and on, also, to Buffalo and to Canada. Thence back again to Boston. Here the culprits had taken up their residence—one on a farm, the other in a public-house, both of which had been purchased with the proceeds of the fraud; £7,000 had been lodged also in the bank to their credit. One of them was immediately arrested, and hanged himself. The other escaped in a boat, and lay hid in the neighbouring marshes; but

the reward that was offered led to his capture, and he was brought home to England, where he was tried, found guilty, and sentenced to transportation for life.

There were many other criminals who came in these days to Millbank who belonged to the aristocracy of crime, if not to the great world of fashion. Some of them, to use their own language, were quite top sawyers in the trade. None in this way was more remarkable than old Cauty, who was called the “father of all the robbers.” Few men were better known in his time and in his own line than Cauty. He was to be seen on every race course, and he was on friendly terms with all the swells on the turf. He had a large acquaintance also among such of the “best” people in town as were addicted to gambling on a large scale. He was in early life a croupier or marker at several west-end hells; but as he advanced in years he extended his operations beyond the Atlantic, and often made voyages by the West Indian packets. He liked to meet Mexicans and rich Americans; they were always ready to gamble, and as Cauty travelled with confederates, whose expenses he paid, he seldom lost money on the cards.

These, however, were his open avocations. “Under the rose” for many years he devoted all his abilities and his experience to planning extensive bank robberies, which were devised generally with so much ingenuity, and carried out with so much daring, that a long time elapsed before the culprits could be brought to justice. He had many dexterous associates. Their commonest plan of action was to hang about a bank till they saw some one enter whom they thought likely to answer their purpose. They followed and waited till the victim, having opened his pocket-book, or produced his cheque, was paid his money over the counter. At that moment a button dropped, or a slight push, which was followed by immediate apology, took off attention, and in that one instant the money or a part of it was gone—passed from hand to hand, and removed at once from the building.

Cauty came to grief at last. Of course he was known to the police, but the difficulty was to take him red-handed. The opportunity arrived when, with an accomplice, he made an attempt to rob the cashier of the London and Westminster Bank of his box. They were both watched in and out of the bank in St. James’s Square day after day. The police kept them constantly in sight, and the cashier himself was put on his guard. The latter admitted that the cash-box was at times left unavoidably within the reach of dishonest people, and that it contained property sometimes worth £100,000 or more.

But if the police were patient in the watch they set, the thieves were equally patient in waiting for a chance. Once at the moment of fruition they were just “sold” by the appearance of a police-sergeant, who came in to change a cheque. But at length, almost as a conjuror does a trick, they accomplished their purpose. Cauty went into the bank first, carrying a rather suspicious-looking black bag. Three minutes afterwards he came out without it, and raised his hat three times, which was the signal “all right” to his accomplice. The latter, Tyler, a returned convict, thereupon entered the bank in his turn, and almost immediately brought away the bag. The two worthies were allowed to go without let or hindrance as far as the Haymarket, and then secured. The black bag was opened—inside was the cash-box.

This brought Cauty’s career to an end. He got twenty years, and then it came out how extensive was the business he had done. Through his hands had passed not a little of the “swag” in all the principal robberies of the day—all the gold from the gold-dust robberies, all the notes and bills stolen from big banking houses. It was said that in this way he had touched about half-a-million of money.

Some years afterwards another leader and prince in the world of crime was unearthed in the person of a Jew—Moses Moses—whose headquarters were in Gravel Lane, Houndsditch, and who was discovered to be a gigantic receiver of stolen goods. He was only detected by accident. A quantity of wool was traced to his premises, and these were thereupon rigorously examined. In lofts and in many other hiding-places, were found vast heaps of missing property. Much was identified as the product of recent burglaries. There was leather in large quantities, plush also, cloth and jewelry. A wagon-load of goods was, it was said, taken away, and in it pieces of scarlet damask, black and crimson cloth, doeskin, silver articles, shawls, and upwards of fifty rings. An attempt was made to prove that Moses was new to the business, and had been led astray by the wicked advice and example of another man. But the Recorder would not believe that operations of this kind could be carried on by a novice or a dupe, and he sentenced Mr. Moses to transportation for fourteen years.

For unblushing effrontery and insolence, so to speak, in criminal daring, the case of King the police-officer and detective, is almost without parallel. Although supposed to be a thief-taker by profession, he was really an instigator and supporter of crime. He formed by degrees a small gang of pickpockets, and employed them to steal for him, giving them full

instruction and ample advice. He took them to the best hunting-grounds, and not only covered them while at work, but gave them timely warning in case of danger, or if the neighbourhood became too hot to hold them. His pupils were few in number, but they were industrious and seemingly highly successful. One boy stated his earnings at from £90 to £100 a week. King was a kind and liberal master to his boys. They lived on the fat of the land. Reeves, who gave information of the system pursued by King, said he had a pony to ride in the park, and that they all went to theatres and places of amusement whenever they pleased. The rascally ingenuity of King in turning to his own advantage his opportunities as an officer of the law savours somewhat of Vidocq and the *escrocs* of Paris. King got fourteen years.

But the most notorious prisoners in Millbank were not always to be found on the “male side.” Equally famous in their own way were some of the female convicts—women like Alice Grey, whose career of imposture at the time attracted great attention, and was deservedly closed by committal to Millbank on a long sentence of transportation. Alice Grey was a young lady of artless appearance and engaging manners. Her favourite form of misconduct was to bring false charges against unfortunate people who had never seen her in their lives. Thus, she accused two boys of snatching a purse from her hand in the street, and when a number were paraded for her inspection she readily picked out the offenders. “Her evidence was so ingenuous,” says the report, “that her story was implicitly believed, and the boys were remanded for trial.” As a sort of compensation to Miss Grey (her real name was “Brazil,” but she had several—among others, Anastasia Haggard, Felicia Macarthy, Jane Tureau, Agnes Hemans, etc.) she was given a good round sum from the poor-box. But she was not always so successful. She was sentenced to three months in Dublin for making a false charge, and eighteen months soon afterwards at Greenock. At Stafford she accused a poor working man of stealing her trunk, value £8; when put into the box she was taxed with former mistakes of this kind, whereupon she showed herself at once in her true colours and reviled every one present in a long tirade of abuse. Her cleverness was, however, sufficient to have made her fortune if she had turned her talents to honest account.

There was more dash about women like Louisa M. or Emily L. The former drove up to Hunt and Roskell’s in her own carriage to look at some bracelets. They were for Lady Campbell, and she was Miss Constance

Browne. Her bankers were Messrs. Cocks and Biddulph. Finally she selected bracelets and head ornaments to the value of £2,500, which were to be brought to her house that evening by two assistants from the shop, who accordingly called at the hour named. The door was opened by a page. "Pray walk upstairs." Miss Browne walks in. "The bracelets? Ah, I will take them up to Lady Campbell, who is confined to her room." The head assistant demurred a little, but Miss Browne said, "Surely you know my bankers? I mentioned them to-day. Messrs. Hunt and Roskell have surely satisfied themselves?" With that the jewels were taken upstairs. Half an hour passes. One assistant looks at the other. Another half hour. What does it mean? One rings the bell. No answer. The other tries the door. It is locked. Then, all at once discovering the trap, they both throw up the window and call in the police. They are released, but the house is empty. Pursuit, however, is set on foot, and Miss Constance Browne is captured the same night in a second class carriage upon the Great Western Railway, and when searched she was found to have on her a quantity of diamonds, a £100 note, rings and jewelry of all sorts, including the missing bracelets. She had laid her plans well. The house—which was Lady Campbell's—she had hired furnished, that day, paying down the first instalment of rent. The page she had engaged and fitted with livery also that very day, and the moment he had shown up the jeweller's men she had sent him to the Strand with a note. Here was cleverness superior to that of Alice Grey.

Probably Emily L. carried off the palm from both. As an adroit and daring thief she has had few equals. She is described as a most affable, ladylike, fascinating woman, well educated, handsome, and of pleasing address. She could win almost any one over. The shopmen fell at her feet, so to speak, when she alighted from her brougham and condescended to enter and give her orders. She generally assumed the title of Countess L., but her chief associate and ally was a certain James P., who was a lapidary by trade, an excellent judge of jewels, and a good looking respectable young fellow—to all appearance—besides. They were long engaged in a series of jewel robberies on a large scale, but escaped detection. Fate overtook them at last, and they were both arrested at the same time. One charge was for stealing a diamond locket, value £2,000, from Mr. Emanuel, and a diamond bracelet worth £600 from Hunt and Roskell. At the same moment there cropped up another charge of stealing loose diamonds in Paris to the tune of £10,000. Emily was sentenced to four years, and from

the moment she entered prison she resolved to give all the trouble she could. Her conduct at Millbank and at the prison to which she passed, was atrocious; had the discipline been less severe she would probably have rivalled some of the ill-conducted women to whom I referred in the last volume. But at the expiration of her sentence she returned to her evil ways outside. Brighton was the scene of her next misfortune. She there entered a jeweller's shop, and having put him quite off his guard by her insinuating manners, stole £1,000 worth from under his nose, and while he was actually in conversation with her. The theft was not discovered till she was just leaving Brighton. Apprehended at the station, she indignantly denied the charge, asserting that she was a lady of high rank, and offering bail to any amount. But she was detained, and a London detective having been called in, she was at once identified. For this she got seven years, and was sent to Millbank once more. This extraordinary woman, notwithstanding the vigorous examination to which all incoming prisoners were subjected, succeeded in bringing in with her a number of valuable diamonds. But they were subsequently discovered in spite of the strange steps she took to secrete them.

CHAPTER X

THE PENITENTIARY IMPUGNED

Charges of harshness and cruelty—Parliamentary enquiry—Charges entirely disproved—Increased efforts at reform by segregating prisoners—Their improved demeanour—Prison very quiet—Cases of weakened intellect and insanity—Rules relaxed and contemplated change in the penitentiary system—Millbank a failure—New uses devised for the prison—Becomes part of the new scheme for transportation.

WHILE the criminals of the period were passing in and out of Millbank, and Mr. Nihil, backed up by his committee, was working indefatigably and with the best intentions, the credit of the establishment was suddenly impugned in no measured terms. It was doubtful indeed whether the ship could weather the storm of invective that broke upon it. Had the managers of Millbank been ogres instead of painstaking philanthropists working for the public good, they could not have been more rancorously assailed. But here was a case where the people suffered because their rulers squabbled. It was a period when party warfare ran high and the Opposition hailed eagerly any opportunity of bringing discredit upon the Ministry. The attack made upon the Penitentiary was really directed against the Government.

On the 26th February, 1838, a noble lord rose in his place to call the attention of the House of Lords to a grave failure in the administration of criminal justice. "All London, the whole country, was ringing with it," said another noble lord. "It has been a topic of universal reprobation co-extensive with the hourly increasing sphere in which it has been known. All Westminster has talked of it, all Middlesex has turned its eyes to the quarter in which the abuse occurred. I will venture to say," continued his lordship, "that it has been more talked of, more discussed, more indignantly commented upon in every corner of this great town and of this populous country, than any one subject either in or out of Parliament, or in any one of

the courts of justice, civil or criminal.” It appeared that in Millbank, a prison exempt from the general jurisdiction of the county magistrates, and governed only by the Home Secretary, there had occurred five cases of unwarranted harshness and cruelty. Three little girls and two fine young men had been completely broken down by the system of solitary confinement therein practised. The children were mere infants: one, as it was alleged, was little more than seven years old; the other two were eight and ten respectively. Yet at this tender age they had been cut off entirely from the consoling influences of home and the kindly intercourse of relatives and companions, to be immured in solitary wretchedness for nearly thirteen consecutive months. So bitterly did these little ones lament the loneliness of their lengthened seclusion, that one asked piteously for a doll to keep her company, and all three were found at different times sleeping with their bedclothes twisted to simulate a baby, so earnestly did they yearn for something like ideal society in their dreary confinement. More than this: the punishment of continued solitude had produced in them a marked infirmity of mind, manifested by great impediment of speech, and general difficulty in the expression of ideas. A gentleman, one of the Middlesex magistrates, who had visited the Penitentiary, described the effect upon their speech such as to render their voices “feeble, low, and inarticulate—to produce a kind of inward speaking, visible to and palpable to every one who heard them.” So much for the children. As for the young men, one of them, who had previously been remarkable for great activity and intelligence, came out in a state of idiocy, and was afterwards retained as an idiot in St. Marylebone workhouse, reduced to such a state of utter and helpless imbecility as to be incapable of being employed even in breaking stones. The other was similarly affected. And yet all this was contrary to law. Here were prisoners subjected to uninterrupted solitary confinement for twelve and thirteen months, when by a recent Act it was expressly ordered that no such punishment should last for more than one month at a time, and never for more than three months in the year. Circumstances very disgraceful beyond doubt, if the charge were only proved, and entailing a weight of awful responsibility on those who were accountable to the public.

As the attack was made without a word of warning, Lord Melbourne, at that time the head of the Government, was unable to defend himself. All he could urge was that the House should reserve its opinion until upon a close

investigation the grievances and evils alleged should be proved to exist. He felt certain that the whole statement was exaggerated and over-coloured; of this he had, indeed, no doubt, but he must claim a little time before he made a specific reply.

The next night he stated that full inquiry had been made. In the first place the ages of the children had been understated. Each of them was at least ten years old. But this was not a point of any very material importance. They were all three very profligate children. One of the worst signs of the day was the great increase of crimes committed by children of tender age. The principal cause of this was, no doubt, the wickedness of parents, who made their children the instruments for carrying out their own evil designs. In the present instance the three girls had been guilty of theft and sentenced to transportation, but they were recommended for the Penitentiary solely to remove them for a lengthened period from the influence of their parents, and to give the Government an opportunity of effecting a reform in their character and conduct. The only place suitable for such an attempt was the Millbank Penitentiary, and to this they were removed. This establishment was governed by rules laid down by the Lords' Committee of 1835, and, therefore, if undue severity had been practised, it must have been in defiance of those very rules. But it was quite untrue that any of these prisoners had been subjected to protracted solitary confinement. There was no such thing in the Penitentiary except for prison offences, and then only for short periods. Separate confinement there certainly was, but solitary confinement—complete seclusion, that is to say, without being seen, without going out to public worship—as a general practice was practically unknown in the establishment.

“These children took exercise regularly twice a day, for half an hour at a time, in company with other prisoners of their ward; they had school also together twice a week; went to chapel on Sunday; and were regularly visited by benevolent Christian ladies (Mrs. Fry and her associates), who spent long hours in their cells. Surely their condition was not one of great hardship!

“The young men, Welsh and Ray, were notorious rogues, who had also been sent to the Penitentiary to effect, if possible, some reformation in their ill-conducted and irregular lives. Their behaviour had been very rebellious and disorderly, but though they had been frequently punished they had left

the Penitentiary at the expiration of their terms of imprisonment in perfect health and full possession of all their faculties.”

The Opposition laughed at the explanation. Not solitary confinement—what was it then? The children went out to exercise. Yes; but they were not allowed to communicate or talk to one another. They went to church, and to school, but only for a few hours together in the week, and for the rest of the time they were shut up in their cells alone, utterly alone. Was not this solitary confinement? Were these accusations all unfounded then? Had they been disproved? Let the Government wait till a committee of the House had been appointed to inquire and had reported upon the whole case.

A committee met, took evidence, and at the end of a month sent in their report. It was quite conclusive. The whole of the charges necessarily fell at once to the ground. “On the whole,” they stated, in summing up, “the committee think it due to the officers of the Penitentiary to state, that all the convicts have been treated with all the leniency, and—in the case of the female children particularly—with all the attention to their moral improvement that was consistent with the rules laid down for the government of the Penitentiary.” The children had come in dirty, ignorant, and in ill health; they were now cleanly, had learned to read, could make shirts, and were all quite well and strong. Nothing was wrong with their voices: one could shout as loud as any girl of her age, but she was shy before strangers; the second led the singing of the hymns in her ward, though her voice was only of ordinary power, and had been even husky from the time of her reception; the third usually spoke from choice in a low tone, but she had been heard to shout often enough to other prisoners. It was quite evident, then, that in these three cases, not only had the cruelty been distinctly disproved, but it was equally clear that their imprisonment in the Penitentiary had been a positive benefit to the children in question.

Nor was the charge a bit better substantiated in the case of the two “fine young men.” Both of them had been cast for death at the Old Bailey, which was commuted afterwards to one year in the Penitentiary. One, Welsh, was a good-for-nothing vagrant, who had spent most of the seventeen years he had lived inside the Marylebone workhouse, and to this he had returned on his release from Millbank. He was a clever but unruly prisoner; he could read and write well, and his faculties had been sharpened rather than impaired by his residence in prison. The master of the Marylebone workhouse was decidedly of opinion that he had improved much; he was

more civil now than before, and he was greatly grown. Welsh said himself he had no fault to find with the Penitentiary; in fact, he was quite ready to go back to it, if they would only take him in. But this Welsh was in the habit of counterfeiting idiocy, either to procure some extra indulgences, or to amuse himself and others, and he played the part so well that many who saw him were deceived.

William Ray, the other “victim,” was older, having reached his twenty-fifth year. He also had passed the greater part of his life in the Marylebone workhouse; but he had enlisted twice into the army, and had gone with Sir de Lacy Evans to Spain. He had been discharged for incompetence, and it was perfectly clear from the evidence taken, that he was a person of very weak intellect long before he became an inmate of the prison: he had a vacant countenance, a silly laugh, and a habit of blinking his eyes and tossing his head about. Still he perfectly understood what he was ordered to do. He had become a good tailor, and had improved in reading.

Thus all the charges were disposed of, and the system in force having been held blameless, it might fairly be continued without change. The system then was as follows: The prisoners slept in separate cells which opened into a common passage, and at the centre of the passage was the warder’s bedroom. The cells were ten feet by seven, and had a partition wall between them fourteen inches thick. The entrance to each cell had two doors—one of open iron work, the other of wood. At the first bell, every morning about daylight, the prisoners were let out to wash, about six or eight at a time; and they then returned to their cells for the rest of the day, except during their two hours’ exercise, and twice a week when they attended chapel and school. Their meals were brought to them in their cells by other prisoners let out for the purpose. The chaplain, assistant chaplain, and schoolmaster were continually visiting them. All day long the wooden door of the cell remained wide open, and there were plenty of opportunities of talking to their neighbours through the gate of iron grating, where even a whisper could be heard. They were always talking—at washing time, at exercise, even when in their cells with both doors locked and bolted. Now this was manifestly not solitary confinement. Nay, more, it was not even separate confinement. But yet, without the latter, without perfect isolation and the prevention of all intercourse and intercommunication, it was felt by Mr. Nihil that his efforts to reform his prisoners were vain. Whatever good his counsels might accomplish was immediately counteracted by the vicious

converse that still went on in spite of all attempts to check it. It was found that extensive communications were carried on; that prisoners learned each other's histories, formed friendships and enmities, and contrived in many ways to do each other harm. Unless this were ended all hope of permanent cure was out of the question. Mr. Nihil says, in 1838, that he is in great hope that by the thorough separation of the prisoners, important advantages in respect to the efficiency of imprisonment and the reformation of the convicts would ensue. "The more perfect isolation of the prisoner by non-intercourse with fellow-criminals, not only renders the punishment more effective, but places him in a condition more susceptible to the good influences with which we seek to visit him—now constantly frustrated by communication through the wards."

So eager were the authorities to restrict the means of intercourse, that they were not above taking the advice of a prisoner on the subject. His suggestions were such as a prisoner is qualified to give, being the fruits of experience, and an intimate acquaintance with the various devices that are practised. If talking was to be prevented, he said, several new arrangements must be made; thus the officer, when prisoners were at exercise, instead of standing motionless should walk on an inner circle, in an opposite direction to the prisoners, so as to see their faces. The prisoners always talked whenever the officer's back was turned. Nor should they be allowed to eat while in the yard: under the pretence of chewing they really were engaged in conversation. Again, to put an end to clandestine letters, all the blank pages of library books should be numbered and frequently examined, so that none might be abstracted and used as writing paper. Nor should any whiting be issued to clean the pewters: the prisoners only used it to lay a thick white coat upon any damped paper, thus making a surface to write upon. By scraping off the whiting the same paper could be used over and over again. To make a pencil they scraped their pewter pints, then with the heat from the tailors' iron, with which many were supplied, they ran these scrapings into a mould. Lastly, all searching of cells and prisoners should be more frequent and complete; care should be taken in the latter case to examine the cuff and collar of the jacket, the waistband and the lower part of the legs of the trousers, and the cap. The bedding in the cells, all cracks in floor or shopboard, and the battens or little pieces below the tables should be thoroughly overhauled. With such precautions as these much might be effected; nevertheless, said the informer, misconduct must always

continue, for prisoners often incurred reports solely to gain the character of heroes.

And so with the new year many further changes were introduced. All the governor's recommendations were adopted, and not a few of the suggestions last quoted, in spite of the source from which they came. Within a week or two—rather soon, perhaps—the governor considers that the new discipline works extremely well. Reports diminish, and the control of officers is more complete. Ill-tempered prisoners evinced great annoyance at the change; but by meeting this spirit by firmness and good temper it has, he thinks, been repressed. Three months later he notices a distinct improvement in behaviour, traceable beyond question to the new rules. Prisoners formerly constantly reported are now quite quiet, and in a very good state of mind—tractable, submissive, and grateful. “Several had learned to read; and many evinced a softened and subdued tone of feelings, and thanked God they had been brought to the Penitentiary. Some expressed a grateful sense of the value of the late regulations. One youth told me that previously they might almost as well have been in the same room with a crowd.... In Thomas Langdale, a desperate housebreaker and a very depraved man, the most hopeful change has taken place. He has written a most artless and interesting letter to his wife.... Some prisoners have acquired a great mastery over their violent tempers, and look quite cheerful and happy.... A few only still manifest great discontent.”

All that year the principle has ample trial. In April, 1840, the governor asserts that in his opinion the state of the prison is highly satisfactory. The prisoners, as testified by their letters (which were meant for him to see), were as happy as the day was long. They had good food, good clothing, and spoke with gratitude of the provision made for their religious instruction. Moreover, now the reins are as tight as they can be drawn. “Separation has within the last two years been much more carried out than formerly, and the effect has been very materially to reduce offences and punishments, and to promote reformation,” says Mr. Nihil. His great difficulty now is that he cannot ventilate the cell without opening the door to communication. In fact he might seem to wish to seal up his prisoners hermetically; but he says, “I do not mean to advocate long separation from all social communication. I should prefer a system of regulated intercourse upon a plan of classification and superintendence and mutual education, guarded by occasional separation. What I object to is nominal separation accompanied with secret

fraudulent vicious communication. Health is certainly a great consideration, but are morals less? Ought health to be sought by the rash demolition of an important moral fence? If health is alone to be looked to it would be very easy to suggest very simple means for keeping the prisoners in general good health; but then the objects of imprisonment would be altogether frustrated. Considering these objects indispensable, and that one of them is the moral reformation of the prisoners, I conceive it would be much better to leave them to the remedy of opening their cell windows for fresh air.”

Mr. Nihil’s notions were certainly clearly developed. He was for no half measures. But in his extreme eagerness to push his theory as far as it could go, he actually courted disaster. He was apparently blinded by a misconception of phrases. So long as he steered clear of what was called solitary confinement he thought he was safe. But he forgot that the more separation was insisted upon, the more nearly solitude was approached. In point of fact there was absolutely no distinction between the separate confinement practised at Millbank, and that solitary confinement which had already been universally condemned, and which by law was not to be inflicted except for very limited periods of time. Naturally the same fatal consequences, the inevitable results that follow such imprisonment protracted beyond the extreme limit, began to be plainly visible. Cases of insanity, or weakened intellect came to light, first in solitary instances, then more and more frequently. The committee were compelled to run counter to Mr. Nihil, and relax the rigorous separation from which he hoped to effect so much. I find in their report for 1841 that they consider it necessary to make great alterations in the discipline of the institution.

“In consequence of a distressing increase in the number of insane prisoners, the committee, under sanction of the medical superintendent, came to the resolution that it would be unsafe to continue a system of strict separation for the long periods to which the ordinary sentences of the prisoners in the Penitentiary extend. They therefore propose that the system should be relaxed with regard to all classes of prisoners except two; viz., military prisoners whose sentences were extremely short, and persons convicted of unnatural offences; and that to all other prisoners the prohibition of intercourse should be limited to the first three months after their admission, and that upon the expiration of that period they should be placed upon a system of modified intercourse.” But they surrendered their views evidently with the utmost reluctance, and remarked further in this

report that “they are inclined to believe that no scheme of discipline in which intercourse between prisoners, however modified, forms an essential part, is ever likely to be made instrumental either to the prevention of crime or to the personal reformation of convicts to the same degree as a system of separation. Whether the latter system can be rendered compatible with the maintenance of the mental sanity of the prisoners is a subject of much controversy, and can only be determined by actual experiment, accompanied by such advantages as are proposed in the Model Prison.”^[9]

But it now becomes plainly evident that the waters are beginning to close over the Penitentiary. There are people outside its walls who are clearly not its friends, if not openly inimical. Thus dissatisfaction finds voice in the House of Commons, where, on the 15th March, 1841, Mr. Alderman Copeland asks for certain information which the prison authorities must have found it awkward to supply. This return called for was to show the numbers sent to the Penitentiary during the past five years; the number removed during that period for insanity, the number for bad health, and who had died; and it was to be stated how often the several members of the committee attended during the year.

From different causes, one difficulty added to another, the Penitentiary was drawing nearer and nearer to its doom. At length its death-blow fell, accelerated doubtless by the sweeping alterations contemplated in the whole system of secondary punishments. These changes, by which also the whole constitution of the Penitentiary was altered, will be detailed at length in another volume, and the closing chapter shall be devoted to the last days of old Millbank.

It was on the 5th May, 1843, that Sir James Graham, then Home Secretary, introduced a Bill for the better regulation of the Penitentiary. The House must be fully aware, he said, of the Report^[10] in which it was stated that as a *penitentiary* “Millbank Prison had been an entire failure.” Its functions, therefore, in that respect were now to cease. The next thing to be considered was what use might be made of it, for it was a large building and had many conveniences for a prison. Just at this moment, however, the Government had determined to carry out a certain new classification of all convicts sentenced to transportation. In other words, felons were to suffer this punishment in different degrees, according to their condition and character. But to ascertain in which category offenders should be placed a

time of probation and proof was needed, and this period should be passed at some general depot, where for nine or ten months the character of each convict might be tested. Millbank was admirably suited for the purpose. From here, after the necessary interval, the juveniles were to be sent on to the new prison at Parkhurst, the best and most promising convicts to Pentonville, the rest to the hulks, but one and all only *in transitu* to the antipodes.

Nothing now remained but for the Penitentiary Committee to go through the ceremony of the happy despatch; for by the new arrangements the control of the prison was to be vested in a body of government inspectors, and of a governor acting under them. Under the new system, the committee states, “there will be a rapid succession of transports continually passing through the prison; and the shortness of their confinement, though very desirable on the score of health, will necessarily militate against any great mental or moral improvement.” Nothing is intimated as to the nature of the discipline to which the transports are to be subjected during their detention here. The committee, however, “are satisfied that a vigorous system will be found necessary for the maintenance of order among criminals of so depraved and desperate a character as the male transports are evidently expected to be. In short, it is obvious that an entirely new state of things is at hand, one never contemplated by any members of the committee when they originally consented to act; one moreover which will require, in their opinion, an active and unremitting superintendence such as their other avocations render them incapable of undertaking.” Therefore one and all of them were glad to resign their functions into other hands. But they “cannot conclude without remarking that the new system contemplated would never be properly administered by a clerical governor, even if he considered it consistent with his sacred functions to undertake such a charge.”

I find in the minutes of the committee on the 9th June, 1843, all members were requested to attend at their next meeting, which was probably to be their last.

At the same time they passed votes of thanks also to the assistant-chaplain, the medical superintendent, the matron, manufacturers, steward, and officers generally. And from that time forth Millbank, as a penitentiary, ceased to exist.

CHAPTER XI

LAST DAYS OF MILLBANK

Captain Groves at Millbank—New Staff—Governor a strict disciplinarian—His methods unpopular—Discontent among old officers—Petition to House of Commons charging Captain Groves with tyranny and misconduct—Another Parliamentary enquiry—Prolonged investigation—Report fully absolves Groves—His task difficult—The boys' reformatory gives the most trouble—Mistaken methods employed, but Captain Groves' firmness in due course establishes peace—Later history of Millbank—"Wormwood Scrubs" to replace it—Erected on the same lines as Sing Sing built by Elam Lynds—Some of the later Millbank celebrities—Latest uses of Millbank—Closed in 1891.

WITH the changes which were instituted in Millbank in 1843, its character and constitution were alike materially altered. It was a penitentiary no longer, for it did not now deserve the high-sounding title. The lofty purposes with which it started were unfulfilled, and its future usefulness depended upon the wide area it embraced within its gloomy walls, rather than on the results its reformatory system might be expected to achieve. But as a plain prison, it might yet render more tangible service to the state. And just as Millbank became more practically useful than heretofore, so those who ruled it were no longer amateurs. The superintending committee, composed of well-disposed gentlemen of rank, were replaced by a board of three permanent inspectors, two of whom were already well known to prison history. Mr. Crawford, the senior member, had given much time to the examination of the American prisons; and Mr. Whitworth Russell, the second member, had been for years chaplain of Millbank. Both also had been long employed as inspectors of all prisons in England. Under them was a new governor—a person of a different stamp from mild Captain Chapman, or pious, painstaking Mr. Nihil. Captain John B. Groves, a gentleman of some position and not unknown in society, was also a military officer of distinction. He did not seek the appointment, but as

those in high places who knew his character thought him eminently well suited for the post, he was told that if he applied he could have it. A soldier, firm and resolute of will, but clear-headed, practical, able, Captain Groves had but one fault,—he was of an irascible temper. However, like many other passionate men, though quickly aroused, he was as speedily cooled. After an outburst of wrath he was as bright and pleasant as a summer landscape when the thunderstorm has passed. Added to this was a certain roughness of demeanour, which, though native often to men of his cloth, might easily be mistaken for overbearing, peremptory harshness. But that Captain Groves was well-suited for the task that had devolved upon him there could be little doubt. The Millbank he was called upon to rule differed more or less from the old Penitentiary which had just been wiped out by Act of Parliament. The population was no longer permanent, but fluctuating: instead of two or three hundred men and youths specially chosen to remain within the walls for years, Captain Groves had to take in all that came, *en route* for the colonies; so that in the twelve months several thousands passed through his hands. Moreover, among these thousands were the choicest specimens of criminality, male and female, ripe always for desperate deeds, and at times almost unmanageable; yet these scoundrels he had to discipline and keep under with only such means as Mr. Nihil had left behind; for the most part the same staff of warders and with no increase in their numbers. And with all the difficulties of maintaining his repressive measures, were the gigantic worries inseparable from a depot prison, such as Millbank had become. The constant change of numbers; the daily influx of new prisoners, in batches varying from twos and threes to forties and fifties, in all degrees of discipline—sometimes drunk, always dirty, men and women occasionally chained together; the continuous outflow of prisoners to the convict transport ships—a draft of one hundred one day, three hundred the next, all of whom must carefully be inspected, tended, and escorted as far as the Nore,—these were among the many duties of his charge.

But Captain Groves soon seated himself firmly in the saddle, and made himself felt as master. The promptitude with which he grasped the position is proved by his early orders. On the first day he found out that there were no standing regulations in case of fire. No fixed system or plan of action was established, but it was left to the governor, at the moment of emergency, to issue such instructions as might suggest themselves. There were no stations at which the several officials should take post on the first

alarm, no regular practice with the fire engine; the machine itself was quite insufficient, and the hose out of repair. There had been one or two fires already inside the prison, and the consequences had been sufficiently disastrous; yet no attempt had been made to reduce the chances by previous forethought and arrangement. Captain Groves begged therefore to be permitted to frame regulations in advance and in cold blood, instead of leaving the calamity to be coped with amid the excitement of an actual conflagration. The fire question disposed of, the governor turned his eyes upon the appearance of the men under his charge; and, true soldier again, I find him complaining seriously of the slouching gait and slovenly garb of the warders trained under the late regime. "I think," he says, "that the officers when together on parade, or at other times, should present something of the appearance of a military body." He wished, therefore, to give them drill, and a waist-belt, and a smarter uniform. Again, he found fault with the armoury, and remarked that all the fire-arms in the prison consisted of one or two old blunderbusses, with brass barrels exceedingly short, and he suggested a stand of fifty carbines from the Tower. Next he made a raid upon the dishevelled locks of the convicts, remarking: "The practice of cutting the prisoners' hair appears to be much neglected. I observe the majority of the prisoners' heads are dirty; the hair long, and the whiskers growing under the chin." To remedy this, he introduced forthwith the principles of the military barbers of that time,—the hair to be short on the top and sides of the head and whiskers trimmed on a level with the lower part of the ear—an innovation which the prisoners resented, resisting the execution of the order, one to the extent of saying that the next time he was given a razor he would cut his throat with it. But the rules were enforced, as all other rules that issued from Captain Groves. Not that the adjustment of such trifles satisfied his searching spirit of reorganization. He was much annoyed at the idleness and determined laziness of all the prisoners. They did not do half the work they might; the tailoring was a mere farce, and the little boys in Tothill Fields Prison picked twice as much coir-junk as full grown men in Millbank, and in a shorter time. As for great-coats, the average turned out was one per week, while they should have been able to complete three or four at least. The governor attributed this chiefly to the undercurrent of opposition to his orders from officers of the manufacturing department.

Indeed, not only from this branch, but from all his subordinates, Captain Groves appears to have got but half-hearted service. The double-faced backbitings, which had brought many to preferment in the last regime, were thrown away on the new governor. He preferred to see things with his own eyes, and he did not encourage officers to tell tales of one another. When a senior officer reported a junior for using bad language, Captain Groves remarked, "I must state my apprehensions that the practice which has prevailed of *watching* for bad or gross language uttered by warders off duty, and reported without their knowledge, accompanied by additions to the actual offence, will be most certain to introduce discussion and discord into the prison, and produce universal distrust and fear. No warder can feel himself safe when he knows that an unguarded word may be brought against him at some future day." The practical common sense of these remarks no one can deny; but those who knew Captain Groves will smile as they remember that his own language at times savoured "of the camps," and he possibly felt that under such a system of espionage he might himself be caught tripping. But in setting his face against the old practices he was clearly right, although it might bring him into disfavour with those hypocritical subordinates who felt that their day of favour was over. Of most of the Penitentiary officers, indeed, Captain Groves had formed but a low estimate. In more ways than one he had found them lax, just as he found that the routine of duties was but carelessly arranged. There was no system: the night patrols, two in number to every two pentagons, slept as they pleased half the night or more, and were seldom subject to the visits of "rounds" or other impertinences from over-zealous officials; no one was responsible for the prison during the night; by day, strangers came and went through the inner gates and passed on to the innermost part of the prison, ostensibly to buy shoes and other articles made by the prisoners, but really to see their friends among the latter; coal porters, irresponsible persons, often from the lowest classes (one was afterwards a convict), were admitted with their sacks into the heart of the wards, male and female, and could converse and traffic with the prisoners all day long. There was no notice board at the gates or elsewhere to warn visitors of the penalties of wrongdoing.

In all these matters the reform that was so urgently needed Captain Groves introduced, and that with no faltering hand. Naturally in the process he trod on many toes, rubbed up many old prejudices, and made himself

generally unpopular. Nor was the bad feeling lessened when it became known that he looked on the bulk of the old officers as inefficient, and recommended their dismissal *en masse*. Discontent grew and rankled among the majority; but although nearly all chafed under the tightened bit, few for a long time went beyond a certain insolent restiveness, though some were brave enough to complain against the governor's tyranny and to talk of active resistance. It was not, however, till Captain Groves had been in office nearly three years that all these muttered grumblings took shape in an actual combination against him. Of this he had notice, for a paper was put into his hand giving full disclosures and a list of the conspirators, many of whom he had thought trustworthy men; but he disdained to act on the information. The malcontents were not, however, to be disarmed by his magnanimity. Feeling certain that their case was strong, and that they could substantiate their charges against him, one of their number, in the name of all, presented a petition to the House of Commons, praying for an inquiry into the condition of Millbank Prison. This petition was signed by Edward Baker, ex-warder, and it was laid upon the table of the House by Mr. Duncombe, M. P.

Baker's petition set forth that he had filled the office of warder for more than three years, but that he had at length been compelled to resign "in consequence of the oppressive and tyrannical conduct" on the part of Captain Groves, the governor of the prison, towards the prisoners and officers themselves. He also impugned the character of the governor, charging him with drunkenness and the habitual use of foul language, and indirectly reflecting on the three inspectors, who in permitting such malpractices had culpably neglected their duties.

The first allegation was that on one occasion a prisoner, Chinnery, had a fit in the airing-yard, just before the governor entered it.

"What's the matter here?" asked Captain Grove.

"A prisoner in a fit."

"A fit—he's not in a fit!" (He was standing on his feet.)

"No, he's reviving."

"Nonsense," said the governor, "he never had a fit. If this man has any more of his tricks report him to me."

Further, the governor had sent the supervisor to bring up the prisoner for this same feigning of a fit, and had sentenced him, without medical

testimony, to three days' bread and water. Yet this very Chinnery had been in the prison under a previous sentence, and had been lodged always next door to a warder, so that assistance might always be at hand when he had a fit.

The next charge was that the governor had sentenced three boys for opening their Bibles in church, to seven days' bread and water, censuring them for such conduct, "which he considered irreverent." (The words are Baker's.)

The third charge was that a prisoner who had assaulted and wounded a warder with a pair of scissors, had not only been flogged, but the governor had specially sentenced him to be deprived henceforward of all instruction, religious or moral.

The fourth charge referred to a prisoner, Bourne, whom it was alleged the doctor had neglected, refusing to see him, although he was actually in a dying state. At length the officer of his ward sent specially to the doctor, who came and had Bourne removed to the infirmary, where he died two days afterward. "It was the governors plain duty to have prevented such a catastrophe," said Baker.

Fifth: a prisoner, Harris Nash, died of dysentery after three months of the ordinary discipline. "The body was what may be termed a perfect skeleton."

Sixth: another prisoner, a boy, Richmond, from Edinburgh, died after four months, having been confined in a dungeon on one pound of bread and two pints of water per diem, for an unlimited number of days. At night he lay upon the boards and had only a rug and blanket to cover him.

Seventh: several prisoners who had been present at the infliction of corporal punishment had immediately after hanged themselves, shocked by the sight they had seen.

Eighth: many instances were quoted of the governor's harshness and partiality: fines inflicted unequally, old officers punished through his misrepresentation, others deprived of their situations as inefficient, though for years they had been considered efficient; while several had resigned sooner than submit to such tyranny.

Ninth: Edward Baker further asserted that the reply furnished to the House to his first petition was garbled and untrue. It had been prepared secretly in the prison; it was altogether false; facts had been suppressed or

distorted; and that besides, the “cats” used were not those sanctioned by law.

Tenth: that the governor had exceeded his powers of punishment, and that in some cases prisoners had undergone as many as eighteen days’ bread and water in one month.

Finally, to quote the words of the petition, Baker urged that—“During the last three years the cruel conduct of the governor is known to have induced twenty prisoners to attempt suicide, and that four have actually succeeded in destroying themselves, and that others are constantly threatening self-destruction; forming a melancholy contrast with the system pursued during the twenty-three preceding years at the Millbank Penitentiary, that system being free from any such stain during that period:

“That the severity of punishments for alleged offences has led to the removal of many prisoners in a dying state to the invalid hulk at Woolwich, where every seventh man has since died, although when they came into the prison they were in good health. This cruel removal takes place to prevent the necessity for coroner’s inquests within the walls, and exposure of the discipline of the prison.”

The petitioner therefore prays for an immediate inquiry into the manner in which Millbank is conducted, the deaths that have occurred, the cruelties that are practised, the dying prisoners that have been removed; also into the numerous reports and irregular hours and conduct of the governor, and how far the inspectors have done their duty by allowing such irregularities to pass unnoticed; “such facts being notorious to all the prison.”

In consequence of this petition an inquiry was instituted by the House of Commons; and the Earl of Chichester, Lord Seymour, and Mr. Bickham Escott were appointed commissioners.

A very searching and patient investigation followed, the full report of which fills an enormous Blue-Book of hundreds of pages. It would be tedious to the reader if I were to go through the evidence, in anything like detail, of the many witnesses examined; the commissioners may be trusted to have done this conscientiously, and their summing up in deciding on the allegations against Captain Grove may be quoted here. The evident animus of the subordinates against their governor is very clearly shown in every page: nothing he did was right, and the complaints when not actually false, as in the case of prisoner Chinnery, were childish and almost beneath

consideration. One officer declared that Captain Groves did not like the old prison officers; that he had said openly “he would get them all out.” They could never please him; they got no credit however much they might exert themselves. Another told the governor he was breaking his (the officer’s) spirit and his heart. “He (Captain Groves), after making his rounds, would send for supervisors and warders in a body and reprimand them in his office. Once when an officer expostulated with him, Captain Groves struck him to the ground with his stick, and swore he’d have none of his d——d Penitentiary tricks.” Another officer, who had been sent to Pentonville and came back without an important document, complained that he had been sent again all the way to the Caledonian Road to fetch it. Mr. Gray (the victim) considered this was a great hardship, although he admitted that he was none the worse for his walk. All the officers were positive they had much more to do now than ever before. Mr. Gray, above-mentioned, complained also that he had been deprived of his lawful leave; yet he admitted that when all the paint work of the prison was filthily dirty and had to be scrubbed, it was badly done; and that the governor had only insisted on officers remaining on duty till the whole was properly cleaned.

It was indeed quite evident from cross-examination and from the evidence of Captain Groves, that the bulk of his officers were slovenly, slack in the execution of their duties, and contentious. Captain Groves, on the other hand, was doing his best to improve the tone of discipline. No doubt he was stern and peremptory in his dealings. We can quite understand that his reprimands were not couched in milk-and-water language; that he more than once said, “By this, or that,” and swore he would not suffer such doings to pass unpunished, and that those who opposed him should forthwith be dismissed. But it is also clear that he was not well served. Those who held under him important posts were not always reliable and fitted for the charge. On one occasion, for instance, an officer was so negligent of the prisoners in his charge, that the governor, as he came by, was able to remove one unobserved. This prisoner he took back to his cell, and then returned to the spot to ask the officer how many he had in charge.

“So many.”

“Are you sure? Count them.”

“No; I am one short!”

“Ah!” said the governor, and added something more in rather stronger language. Again, in the case of two barefaced escapes the governor expressed himself as follows:

“Prisoner Howard escaped under the very nose of No. 2 sentry. The night was clear and fine, and the governor cannot acquit the sentry of No. 2 beat of great negligence. It is quite impossible, on such a night as the night of last Friday, for any individual to have performed such work in the garden as raising planks, etc., against the boundary wall without detection had common care been taken.”

“In regard to the escape of Timothy Tobin, the operations he had recourse to, to break through the cell, made great noise, and attracted the attention of several of the night guard; and the governor is concerned to find that the principal warder in charge of the prison as orderly officer made no effort to detect the cause of the constant knocking in Pentagon five, but contented himself with the reports of inferior officers without rising from his bed or anticipating his intended time of going his rounds. The qualifications which entitle an officer to promotion in this and every other establishment, are intelligence, activity, and a sense of individual responsibility; and no person is fit for the situation of supervisor or principal warder who is not prepared to exercise them on all occasions.”

This was a reference to Mr. Gray; and it was he who, with others equally negligent, were so sensitive, that they felt aggrieved at Captain Groves’ seemingly merited reprimands. But in actual investigation all charges of this kind melted into thin air as soon as the commissioners looked into them. The charges of tyranny were not substantiated, because they were far-fetched and exaggerated. Such stories must have been difficult to find when one of the charges trumped up against the governor was that he had kept the chaplain’s clerk one day without his dinner. We should even assert that the whole inquiry was another monument of misdirected zeal, were it not that the original petition opened up serious topics which demanded attention. The mere details of administrative bickering might have been better settled by officials within the department than by parliamentary interference; but when it is alleged in an indictment that unfortunate prisoners, without a friend in the world, are done to death by ill-treatment, it is clearly necessary that the said charges should be sifted without delay. In this way the inquiry was distinctly useful, and I shall now give the decision at which the commissioners arrived.

“These petitions seriously impugned the character and conduct of the governor of Millbank Prison; and consequently imputed to the inspectors, under whose superintendence the government of this prison is placed, a culpable neglect of their duty in having permitted such maladministration to continue.

“First: the allegation respecting the treatment of Chinnery is the only charge on which the petitioner could prove anything from his own knowledge; and, since it occurred after he had sent in his resignation, could not be one of the instances of cruelty in consequence of which he resigned. The fault or innocence of the governor on this occasion depends entirely upon the validity of reasons alleged by him for concluding that the prisoner was only feigning a fit. There being no other witness but himself and Baker, we cannot pronounce a decided opinion upon so very doubtful a question. Reviewing, however, all the circumstances which were brought under our notice in connection with this case, we think the governor should, before awarding the punishment, have made a closer investigation into all the facts, and have consulted the medical officer for the purpose of testing the probable accuracy of his impressions. In this case, therefore, we are of opinion that the punishment, whether merited or not merited by the prisoner, was injudiciously inflicted by the governor.

“Second: The commissioners think the governor rather overstrained his powers in punishing the boys for reading their Bibles in chapel.

“Third: The prisoner Bunyan was sentenced and punished by flogging, as described, for an aggravated and malicious assault. The second allegation, that he was ordered to receive ‘no instruction, either religious or moral’ is untrue. He was visited by the chaplain, and had the usual access to religious books.

“Fourth: No evidence to support charge against the governor in case of H. Bourne; but the latter was certainly not well treated by the resident medical officer.

“Fifth: Harris Nash died of a severe attack of dysentery. He was an ill-conditioned, mutinous prisoner, who frequently attacked his officers; but, though he was often punished, his death was attributable to the dysentery and nothing else.

“Sixth: No responsibility rests with the governor as to Richmond’s death. No symptom of disease on him when first he arrived at Millbank, and

he was never punished when the disease showed itself.

“Seventh: There does not appear to be the slightest foundation for the suggestion insinuated in this charge; neither of the three prisoners named having witnessed any punishments calculated to produce a bad effect on their minds.

“Eighth: The charges of partiality were distinctly disproved; as were also the allegations contained under Ninth and Tenth, which were found to be quite ‘unfounded, in fact.’

“Upon the general charge of irregularity, and especially upon a charge of intoxication preferred by some of the witnesses, after a minute consideration of all the circumstances detailed in the evidence, we feel bound to acquit the governor, and to express our strong disapprobation of the manner in which the charge was attempted to be proved.

“Having thoroughly sifted the complaint against the governor, and made some allowance for exaggeration on the part of witnesses, whose accusations were seldom warranted by the facts which they attempted to prove, we have no hesitation in pronouncing our opinion that he (Captain Groves) has endeavoured to perform his duties with zeal and intelligence, and has done nothing to discredit the very high testimonials which he possesses from the officers in the army under whom he formerly served. His treatment of the prisoners, except in the two cases above mentioned, appears to have been judicious and considerate. Cases were indeed brought under our notice in which the prisoners complained of excessive severity; but the responsibility for these cases rests upon the subordinate officers, as it does not appear that the governor was made acquainted with these complaints. The substitution of the punishment of reduced diet in lieu of a dark cell appears to have been made by the governor from motives of leniency and with a view to preserving the health of prisoners.

“The only faults with which he appears justly chargeable are:—

“First: A too hasty method of dealing with his officers when reported to him by others, or detected by himself in some neglect of duty; not always giving them a sufficient opportunity for explanation or defence.

“Second: The occasional use of improper or offensive expressions, of which we should express our condemnation more strongly were it not that the instances adduced by all the witnesses amounted only to three.

“Third: An insufficient attention to the rules of the prison; it appearing from his own evidence that he was entirely ignorant of the legal force of the old penitentiary rules, and that in two important instances the rules actually stuck up in the prison were not strictly attended to by him.

“The want of a complete code of rules suited to the present government of the prison has apparently given rise to many of the charges and to much of the ill-feeling which have come under our observation during this inquiry.

“No doubt there existed a very extended feeling of discontent among the officers. It is probable that this may partly have originated in the changes which took place in the organization of the present establishment, by which the duties of the prison were necessarily rendered more irksome and severe.

“The old prison possessed more of a reformatory character: the prisoners were confined there for much longer periods, were under the influence of stronger motives to good conduct, and by habits longer exercised became more accustomed to the regular routine of prison life. In the prison, as now constituted, few of the adult convicts remain for more than two, or at most, three months; and of those who remain for a longer period, the greater part are criminals of the worst description, who are awaiting embarkation for their final destination, Norfolk Island.

“The effective government of these convicts can only be carried on by a very strict and vigilant attention on the part of the officers. We must add that these important changes had to be commenced and carried out by a new governor with an old set of officers, and, in our opinion, with an inadequate addition of strength. It was but natural that the old officers, receiving little or no increase of pay, while their duties were generally augmented, should have felt some dissatisfaction, and that a portion of it should have vented itself in personal feelings towards the governor, who appears to be both a zealous and energetic officer, giving his orders in a peremptory manner as a man accustomed to military life, and expecting them to be obeyed with soldierlike precision. We regret, however, to observe that, whilst these officers omitted to make a single complaint or suggestion of grievance to their legitimate superiors, they formed a kind of combination amongst themselves for the discussion of their supposed wrongs and for collecting matter for complaint against the governor.”

On the whole, then, Captain Groves came triumphantly out of the inquiry into his conduct. Beyond doubt his task was a difficult one. He had within the walls of his prison a large body of criminals who were not to be managed easily. Their offences were more deliberate, and their violence more systematic than anything which I have described in the Penitentiary days. When they assaulted officers, which they did frequently, from Captain Groves himself downwards, it was with the intention of murdering them; and when they wished to escape, as often as not they managed to get away. They stabbed their officers with shoemakers' knives, or dug scissors into their arms; while one, when searched, was found with a heavy cell stone slung to a cord, supplying thus a murderous weapon, of which he coolly promised to make use against the first who approached. Another ruffian, named Long, a powerful, athletic man, dashed at his officer's throat and demanded the instant surrender of his keys. Edward King, another, meeting the governor on his rounds, assailed him with abuse, then struck him on the mouth; whereupon Captain Groves promptly knocked him down.

Of all the annoyances, none equalled those that came from the "juvenile ward," as it was termed. In this Captain Groves had raised a sort of Frankenstein to irritate and annoy him, which he found difficult to control. Early in his reign he had felt the necessity for some special treatment of boy prisoners. There were nearly two hundred of these; and though styled boys, they were many of them youths of ages varying from seventeen to twenty years. After much anxious consideration he constructed from his own plans a large general ward to accommodate the whole number. This building long existed, although it was afterwards converted into a Roman Catholic chapel. It was built of brick, only one story high, with a light roof supported by slender iron rods. Around the wall were bays, holding each three hammocks by night, but in which these juveniles worked during the day. And they could work well if they pleased. For general intelligence and astuteness these boys were not to be matched in all the world. They were the *élite* of the London *gamins*, the most noted rogues, the cleverest thieves, and the most unmitigated young vagabonds of the whole metropolis. It was a similar gathering, but on a larger scale, to that with which we are familiar in the pages of "Oliver Twist." Properly directed, they had talent enough for anything. They were soon taught to be expert tradesmen; could stitch with the best tailors, and turn out an "upper" or a "half sole" without a flaw. It

was part of Captain Groves' scheme to drill them; and these active lads soon constituted an uncommonly smart battalion.

So far we see only the bright side of the picture; the reverse is not so exhilarating. The mere fact of bringing together in this way a mass of juvenile rascality, without adequate means of restraint, was to open the door to mutinous combinations and defiant conduct. Over and above the buoyancy of spirits natural to youth, which tempts every schoolboy to mischief, there was present among the inmates of this juvenile ward an amount of innate depravity, due to early training and general recklessness of life, which soon led them to the most violent excesses. Within a week or two of the opening of the ward under the brightest auspices, the governor recorded that already they exhibited strong tendencies to run riot. They used threatening language to their officers, were continually at loggerheads with each other, and their quarrels soon ended in blows. Presently one made a violent attack on his warder, and kicked his shins; but for this he was incontinently flogged, and for a time the lightheartedness of the ward was checked. But only for a time; within a week the bickering recommenced, and there were half a dozen fights in less than half a dozen days. Appeal was now made to the birch-rod, also for a time effectual. But the temptation to misconduct in marching to and fro from drill, exercise, or chapel was too strong for these young ragamuffins, and their next feat was to put out the gas as they went, then lark along the passages. The governor prayed for more power to punish them. "By their refractory and insolent conduct," he says, "they wear out the patience of every officer set over them, and turn him into an object of ridicule and contempt."

It occurred to them now that they could cause some considerable inconvenience by breaking out at night; so night after night, when the watch was set and the prison was quiet, they burst out into yells and general uproar, till the night guards were compelled to ring the alarm bells to call assistance. This continued to such an extent that Captain Groves feared it would be impossible to persuade officers to remain in the general ward after dark. Of course they were all experienced thieves. On one occasion an officer on duty had his pocket picked of a snuff-box. "I know where it is," volunteered a boy; but after a long search it could not be found in the place he indicated: then they searched the boy himself, and found the box secreted on his person. Another lad, with infinite cunning, nearly succeeded in effecting his escape. One night after midnight he left his bed, and

crawling under the other hammocks, got to a wide stone which covered the entrance to the ventilating flues. This stone he removed, and then descended into the flue, meaning to follow it till he reached the airing-yard; thence he meant to climb to the roof and descend again. In view of this he carried with him a long cord, made of sundry skeins of thread, which from time to time he had stolen and secreted. As it happened, a warder going his rounds set his foot on the mat which the boy had placed over the hole into the flue, tripped, and nearly tumbled in; then the prisoner, who was in the flue, fearing he was discovered, came out. But for this accident he might have got clean away. After this the uproarious behaviour of the boys waxed worse. The governor began to have serious apprehensions that discipline would greatly suffer. Stronger measures of repression were tried, but without effect. They continued to fight, to yell in concert after dark, and refused to work, assaulting and maltreating their officers by throwing brooms at their heads and kicking their shins. Throughout, too, their conduct in chapel was most disgraceful, and it became a serious question “whether they ought not to be kept away altogether from divine service, as their example would certainly attract followers among the general body of the prisoners.”

At length it came to pass that the ward must be broken up, and the boys distributed among the various pentagons. It was felt to be dangerous to keep so many elements of discord concentrated together in one room. This was accordingly done; but by and by, for reasons that are not given—probably on account of want of space in the crowded condition of the prison—the general ward was again occupied with these precocious juveniles. Yet, as I find it recorded, within a few days a scene took place in the room at a late hour of the night, which called for immediate decisive action.

About eleven o’clock the governor was sent for. The ward was described to be in a state of mutiny. On his arrival the prisoners appeared much excited, but comparatively quiet. At his order they assembled quietly enough and fell in by word of command. He then asked what it all meant, and heard that for a half hour there had been periodic shoutings, and this chiefly from one particular boy. As it rose at last to something serious, the alarm bell was rung, and on the arrival of the reserve guard the ringleader was pointed out, by name Sullivan, who had shouted the loudest. Ordered first to get out of his hammock, he obstinately refused to move, and when at last dislodged by force, he broke away from the officers, jumped on to the

hammock rails, and thence to the iron girders of the roof. An officer promptly followed him, and “a scene ensued which it is impossible to describe.” He was at length captured, and upon the whole incident the governor remarks as follows: “These circumstances afford matter for grave consideration. Hitherto, owing to strict discipline and energy on the part of the officers, the system of the juvenile ward has been successful, with occasional exceptions in regard to misbehaviour on the part of a few turbulent characters. Of late, generally speaking, their conduct has been insubordinate and disorderly, and the fact is that the officers in charge of them are under serious apprehensions for their own personal safety. Besides, as I have before noticed, owing to the paucity of their number, their rest is broken night after night by being obliged to rise from their beds to quell disturbances; whilst the night guards, who ought to be taking their rest in the day time, are obliged to attend at the prison for the purpose of substantiating their reports of the previous night.

“It is quite evident that there are so many prisoners (180) assembled an outbreak would be difficult to quell; and in my opinion the situation is a serious one, calling for immediate consideration. Many of them are athletic, and fierce in point of temper likewise.”

The governor decided to place patrols in the juvenile ward taken from the garden, although he was loath to denude the garden of guards, seeing that the prison was full to overflowing of convicts.

I have dealt in the last few pages with the misconduct of the boys as it showed itself in a comparatively short period of time.

The contumacy of these lads continued for more than a year: again and again they broke out, insulted, bearded, browbeat their officers till the latter stood almost in awe of their charges; night after night the pentagon was made hideous with their outcries and uproar. The governor was pressed to abolish the ward altogether; but the project was a pet one, and he hesitated to abandon it. He never quite got the better of the boys; but in the end firmness and a resolute exhibition of authority had its effect, and the ward, if not entirely quelled, was at least brought to something like subordination and order.

It is of course clear to the reader that the convicts who were now and hereafter contained within the Millbank walls comprised the worst of the criminal class. There is this difference between the calendars at Newgate and at Millbank, that at the former place the worst criminals passed without delay to the gallows, while at the large depot prison they remained to continually vex their keepers.

The life of Millbank was prolonged until the end of the nineteenth century, by which time the new and palatial buildings at Wormwood Scrubs, on the western outskirts of London, had been completed. A word is appropriate here as to this imposing edifice which was begun in a very small way by the writer, in the winter of 1874. The plan pursued was identical with that of Elam Lynds when he built Sing Sing on the banks of the Hudson. Lynds must have been a fine self-reliant character, of such unwavering courage that it gave him personal ascendancy over the dangerous elements in his charge. When they told him that a certain convict openly threatened to murder him, he sent for the man, who was a barber, and made him shave him. "I knew you had said you would kill me," he remarked quietly after the shaving was over. "I despised you too much to believe you would do it. Here alone, unarmed, I am stronger than you, and the whole of your companions."

The work at Wormwood Scrubs as at Sing Sing was almost entirely done by the convicts themselves under the supervision of the warders and directing staff.

An indispensable preliminary was the provision of a boundary fence enclosing an area of three acres of common land. This fence was of simple planking ten feet in height. Inside this space the shell of a slight temporary prison had also been erected, a two-storied building, of wood on an iron framework filled in with brick "nogging" (a single brick thick), the cells lined and separated with sheet iron. Nine of these cells were completed with locked doors and barred windows when they were at once occupied by nine "special class" prisoners, men who were in the last year of a lengthy sentence and little likely to run away and forfeit privileges already earned. From this germ or nucleus the whole establishment grew. The first comers laboured on the still unfinished cells and as they were gotten ready fresh arrivals were imported to fill them. In a short time the whole block of a hundred cells was completed, and with the numbers which could now be lodged there was strength sufficient for very extended operations: the

erection of a second block for another hundred convicts; and the preparation of clay for brickmaking, and the digging for the foundations of the main prison. Such rapid progress was made that within six months I had established the brick mills and had turned out a large number of “London stock,”—the sound, hard, light yellow bricks, the chief building material of our modern metropolis. The place was largely self-contained and self-supporting; we did everything as far as possible for ourselves; we had our own carpenters and smiths; we dressed stone for the window sills and cast the iron bars and framework for staircases. Ere long the prison population reached a daily average of from five to six hundred, and in less than five years we had built four large blocks containing 350 cells apiece, a spacious chapel, a boundary wall and beyond it numerous residences for the governor and staff. Throughout this period, Millbank was the parent prison, Wormwood Scrubs only an offshoot drawing support, supplies, cash, all necessities from the older establishment.

Millbank continued to be a centre of great criminal interest to the very end. As has been shown, it became the depot and starting-point for all convicts sentenced to penal exile, and when a peremptory stop was put to transportation, it worked in with the substituted system of Public Works prisons. For fifty years it was a receptacle for male and female convicts undergoing the first period of separate confinement, the preliminary to associated work with greater freedom. Notorieties of all kinds passed through it; and the names of almost all the celebrated prisoners of the time were to be found upon its registers. There were murderers who had scraped through and just escaped the death penalty, such as Dixblanc, the French cook who murdered her mistress in Park Lane. Constance Kent, who confessed to the mysterious crime of killing her infant brother, spent many years at Millbank; the cruel and infamous Stantons, who starved poor Alice—— at Penge, began their retribution there; Madame Rachel, the would-be benefactor to her sex which she desired to make beautiful for ever, tried her blandishments on more than one Millbank matron. It was my fate to welcome the Tichborne claimant to durance vile, to watch him wasting from excessive obesity to a decent and respectable size, lachrymose and repentant, but secretive and defiant to the last. The moving spirits in the De Goncourt affair, Kurr and Benson, made Millbank their medium of communication with the dishonest detective officers who for a time shook public confidence in the London police force.

Millbank served for other prison purposes. In its latest phases, part of its accommodation was leased to military authorities and it was long the home of court-martial prisoners. When the State finally acquired all prisons of every category in the country, it was used for the retention of venial offenders sent by petty sessions and police courts.

The end came in 1891, when Millbank was finally closed and the site surrendered by the prison authorities to the government Office of Works.

Here the London County Council have built dwellings for the poor; a handsome military hospital for the Guards and London District has been erected by the War Office; and the trustees of the Tait bequest have put up a fine gallery to house the valuable pictures with which that munificent patron has endowed London. Thus buildings of a new and very different character have now replaced the old Penitentiary.

FOOTNOTES:

- [1] Every cell at Millbank has two doors: one of wood, next the prisoner, the other a heavy iron trellis gate. The former was closed by a running bolt; the gate had a double lock.
- [2] Known as the “thieves’ whistle.”
- [3] The dress of women in the second or superior class consisted of dark green jacket and stuff petticoat; the first or lower class wore a yellow jacket.
- [4] A piece of long yarn issued to be worked up in the looms.
- [5] I can vouch for the accuracy of this measurement which I verified myself when Millbank was still standing.
- [6] The account of this experience I have ventured to extract from my work “Fifty Years of Public Service.” (Cassell & Co.)
- [7] “Stiffs” are letters written clandestinely by prisoners to one another on any scrap of paper they can find.
- [8] The “hopper” is a contrivance for preventing the inmate of a cell from looking out of the window. It is a board resting on the window ledge at a slant, rising to a height above the window, the sides filled in with other boards.
- [9] This model prison was that built at Pentonville, under the active supervision of Colonel Jebb, R. E., and a board of commissioners specially appointed by the Secretary of State. The first stone was laid in April, 1840, and it was occupied by prisoners in December, 1842.
- [10] The Eighth Report of the Inspector of Prisons.

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PENITENTIARY: AN EXPERIMENT IN REFORMATION ***

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